Request for Proposal (RFP)
For
Procurement, Implementation and Maintenance of Cloud CRM Solution

(REF No: IDBI-Bank/ITD/PPG /RFP/24-25/74: March 29, 2025

Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai - 400071.
Tel. No. 022 – 69310335

ABBREVIATIONS USED IN THIS DOCUMENT

1. CRM : Customer Relationship Management
2. QRCD : Query/Request/Complaint/Dispute
3. UDIR : Unified Dispute and Issue Resolution
4. NPCI : National Payments Corporation of India
5. ATM : Automated Teller Machine
6. SOW : Statement of Work
7. OOB : Out of Box
8. LOB : Line of Business
9. RM/VRM : Relationship Manager/Virtual Relationship Manager
10. BH : Branch Head
11. API : Application Programming Interface
12. CDC : Change Data Capture
13. ETL : Extract, Transform, Load
14. STP : Straight Through Processing
15. ESB : Enterprise Service Bus
16. DC-DR : Data Center/Disaster Recovery
17. MDM : Mobile Device Management
18. AD : Active Directory
19. ADFS : Active Directory Federation Services
20. CSAT : Customer Satisfaction
21. NPS : Net Promoter Score
22. HLD, LLD, DLD : High/Low/Data Level Diagram
23. CBS :Core Banking System
24. BRD : Business Requirement Document
25. SRS : Software Requirement Specification
26. CSP : Cloud Service Provider
27. RCA : Root Cause Analysis
28. OEM: Original Equipment Manufacturer
29. MIS : Management Information System
30. SPOC : Single Point of Contact
31. POC : Proof of Concept

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INVITATION TO BID

In order to fulfill the requirement of **Procurement, Implementation and Maintenance of Cloud CRM Solution** of IDBI Bank Limited, a Company incorporate and registered under Companies Act, 1956 (1 of 1956) and a Company within the meaning of Section 2(20) of Companies Act, 2013 (18 of 2013) and a Banking Company under Banking Regulation Act, 1949 with CIN L65190MH2004GOI148838 and having its Head Office, IDBI Towers World Trade Center Complex, Cuffe Parade, Colaba Mumbai 400005 (hereinafter referred to as **"IDBI Bank" / "the Bank")** proposes to invite Request For Proposal **("RFP")** tenders from established organizations (hereinafter referred to as **"Bidder")** who are capable and willing to undertake as required by the Bank within the given timeline in an efficient manner and as per details listed out in this document.

The RFP document will be available at the Bank's website www.idbibank.in under the section "Quick Links->Notices & Tenders."

The RFP bid document should be submitted through electronic mode through the e-Tendering Portal (**https://c1.eproc.in)**:

The RFP bid document should be submitted to the office of or online tendering:

Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai - 400071.
Email: dgm.itvmg@idbi.co.in

- Please note that all the information desired needs to be provided. Incomplete information may lead to non-consideration of the proposal.
- All Bids must be accompanied by Earnest Money Deposit (EMD) as specified in the Bid document.
- The Bank reserves the right to change/modify the dates/terms & conditions without assigning any reasons, mentioned in this RFP document as per its requirement, which will be communicated to the Bidders through IDBI Bank's Website.
- The information provided by the bidders in response to this RFP document will become the property of IDBI Bank and will not be returned. The Bank reserves the right to amend, rescind or reissue this RFP and all amendments will be advised to the Bidders and such amendments will be binding on them.
- **The bidders are advised to submit their bids well within time instead of waiting till the last date to avoid complications like internet connectivity issue, network problems, system crash down, power failure, browser compatibility issue, system compatibility issue, improper digital signature certificate problem etc. In view of this context, neither IDBI Bank nor C1 India Pvt. Ltd. (C1 India) will be responsible for such eventualities.**
- **All the documents to be submitted duly digitally signed by competent authority as per Bank's prescribed format only.**
- The amendments / clarifications to the tender, if any, will be posted on the IDBI Bank website (www.idbibank.in) and e-Tendering Portal (**https://c1.eproc.in**).

DISCLAIMERS

1. DISCLAIMERS

The information contained in this RFP document or information provided subsequently to Bidder(s) whether verbally or in documentary form/email by or on behalf of IDBI BANK LIMITED, **("IDBI Bank"/ "the Bank")** is provided to the Bidder subject to the terms and conditions set out in this RFP document and all other terms and conditions subject to which such information is provided.

This RFP is neither an agreement nor an offer and it is only an invitation by the Bank to the interested parties for submission of bids. The purpose of this RFP is to provide the Bidder(s) with information to assist the formulation of their proposals. This RFP does not claim to contain all the information each Bidder may require. Each Bidder should conduct its own investigations and analysis and should check the accuracy, reliability and completeness of the information in this RFP and where necessary obtain independent advices/clarifications. The Bank may in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information in this RFP. Such change will be intimated or made accessible to all Bidders on the official website of IDBI Bank. Any information contained in this document will be superseded by any later written information on the same subject made available / accessible to all recipients by IDBI Bank. No contractual obligation whatsoever shall arise from the RFP process until a formal contract is signed and executed by duly authorized officers of the Bank with the selected Bidder.

The Bank, its employees and advisors make no representation or warranty and shall have no liability to any person, including any Bidder under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this RFP or otherwise, including the accuracy, adequacy, correctness, completeness or reliability of the RFP and any assessment, assumption, statement or information contained therein or deemed to form part of this RFP or arising in any way for participation in this Bid Stage.

The Bank also accepts no liability of any nature whether resulting from negligence or otherwise, howsoever caused arising from reliance of any Bidder upon the statements contained in this RFP.

The issue of this RFP does not imply that the Bank is bound to select a Bidder or to appoint the selected Bidder or concessionaire, as the case may be, for the project and the Bank reserves the right to reject all or any of the Bidders or Bids without assigning any reason whatsoever. The Bidder shall bear all its costs associated with or relating to the preparation and submission of its Bid including but not limited to preparation, copying, postage, delivery fees, expenses associated with any demonstrations or presentations which may be required by the Bank or any other costs incurred in connection with or relating to its Bid. All such costs and expenses will remain with the Bidder and the Bank shall not be liable in any manner whatsoever for the same or for any other costs or other expenses incurred by a Bidder in preparation for submission of the Bid, regardless of the conduct or outcome of the bidding Process.

IDBI Bank reserves the right to reject any or all the responses to RFPs / Bids received in response to this RFP at any stage without assigning any reason whatsoever and without being liable for any loss/injury that Bidder might suffer due to such reason. The decision of IDBI Bank shall be final, conclusive and binding an all the parties directly or indirectly connected with the bidding process. Bids not satisfying the procedure prescribed in the RFP document will be treated as invalid and rejected summarily.

It may be noted that notice regarding corrigenda, addendums, amendments, time-extensions, clarifications, response to bidders' queries etc., if any to RFP, will not be published through any advertisement in newspapers or any other media. Prospective bidders shall regularly visit Bank's website www.idbibank.in (Notices and Tenders) for any changes / development in relation to this RFP. The amendments / clarifications to the tender, if any, will be posted on the IDBI Bank website and e-Tendering Portal (https://c1.eproc.in)

SCHEDULE OF EVENTS

Sr. No	Particulars	Time / Date / Other Details
1.	**RFP Reference**	**IDBI-Bank/ITD/PPG /RFP/24-25 /74**
2.	Date of commencement of Bidding process (Issue of RFP)	**March 29, 2025**
3.	Last date and time for receipt of written queries/e-mail for clarification from Bidders	**April 08, 2025 up to 16:00 hours** Queries to be sent as per Annexure-12
4.	Online Pre-Bid Meeting Date & Time.	**April 09, 2025 at 16:00 hours** Bidders have to register themselves by sending following details to the Bank official mail ID's mentioned below. Only two representatives from each bidder will be allowed to participate. **Company Name:** **OEM:** **Representative Name:** **Designation:** **Email ID:** **Contact:** **Note: The link will be shared to registered bidders through mail.**
5.	Last Date & Time for Bid submission.	**May 05, 2025 up to 16:00 hours** The bid documents have to be submitted through electronic mode through the e-Tendering Portal **https://c1.eproc.in** Please refer the instructions to the bidders for online mode (**Annexure-21**).
6.	Date and Time for opening of Bid	**May 05, 2025 up to 17:00 hours** The bid documents have to be opened through electronic mode through the e-Tendering Portal **https://c1.eproc.in**

7.	Place of opening of Bids / Communication	Dy. General Manager Procurement & Payment Group (PPG), Information Technology Department, IDBI Bank Limited, Ground Floor, Corporate Park, Chembur, Mumbai - 400071. Email: dgm.itvmg@idbi.co.in
8.	Bid Fee	**Non Refundable fee of Rs.25,000/- (Rupees) + GST (Currently 18% GST)**
9.	Earnest Money Deposit	**Rs. 50,00,000/- (Rupees Fifty Lakh Only). To be deposited separately.**
10.	Submission of Bid Fee and EMD	Bid Fee & EMD must be deposited by the Bidder through **electronic mode (NEFT) to IDBI Bank LTD, the name account is "ITD Account for Tenders" and the A/c No. – 18337000010848, IFSC Code – IBKL0000183 at its branch situated at Belapur, Mumbai 400614.** Bid not **accompanied** with Receipt on submission of Bid Fee and EMD will not be considered. **Note: Bid fee and EMD amount to be deposited separately**
11.	Security Deposit/ Performance Bank Guarantee (PBG)	Successful tenderer/s will have to give Security Deposit of **3 % of contract Value** in the form of Performance Bank Guarantee (PBG) Issued by a scheduled commercial Bank (other than IDBI Bank Ltd.) with a validity of **48** months (**36** months contract period + 12 months claim period) from the date of issue of PBG and directly forwarded to the Bank The PBG will have to be renewed / resubmitted with fresh validity of 18 months (includes 12 months Supplementary Contract Period + 6 months claim period) before 6 months of the expiration of the PBG. Previous PBG will be returned only when the renewed PBG is received by the Bank.

1. This tender document is the property of the Bank & is not transferable.
2. This bid document has **144** pages.
3. Proof of Concept (PoC), Demo, Presentation, Commercial / Online Reverse Auction (ORA) date will be informed to shortlisted bidder.

4. No queries will be entertained after the date and time mentioned in this schedule.
5. Micro and Small Enterprises – Procurements through MSEs will be done as per the policy guidelines issued by Ministry of Micro, Small and Medium Enterprises (MSME), GOI from time to time. MSEs registered under the SPRS (Single Point Registration Scheme) of NSIC and complying with all the guidelines listed there as well as those issued by GOI from time to time shall be eligible. Exemption from payment of EMD & Cost of bid document will be provided only on submission of proof of registration (A copy of NSIC / MSME Registration Certificate).

ELIGIBILITY CRITERIA

All eligibility requirements given below must be complied by the Bidders and relevant supporting documents must be submitted for the fulfillment of eligibility criteria failing which the Bids may be summarily rejected.

Sr No	Criteria	Supporting documents	Compliance (Y/ N)
1.	Bidder should be an Indian Company/ LLP/ Partnership firm registered under applicable acts in India. It should have been in operation for at least five years as on date of RFP.	• Copy of the Certificate of Incorporation along with copy of memorandum and articles of association/copy of Partnership Deed along with Registration certificate. • The bidder to also submit Annexure- 11, copy of PAN Card, GSTIN Certificate.	Yes/No
2.	Bidder must be an OEM or a Certified/Authorized Partner of the OEM in case the OEM does not deal directly as on date of bid submission	• Manufacturers Authorization letter from OEM in favor of Certified/Authorized Partner as per Annexure-5	Yes/No
3.	Bidder should have established partner relationship with OEM for last 2 (two) years from the date of RFP.	• Supporting proof / document to be submitted	Yes/No
4.	Bidder should have annual average turnover of Rs.250 crore (Rs.25 crore for MSE) in the last 3 financial years i.e. Annual turnover of only Bidder company and not of its group of companies shall be considered for this purpose. Relaxation for MSME the average annual turnover of MSME/MSME Bidder should be Rs. 25 Crores or above in the last 3 Financial years	• Copy of Audited Financial Sheet/Report of the last three financial years to be provided. • For F.Y. 2024-25 – If Audited financial statement is not available then bidder may submit provisional certificate duly signed by CA/Statutory Auditor.	Yes/No

Sr No	Criteria	Supporting documents	Compliance (Y/ N)
5.	Bidder should have positive Net Worth in the last 3 financial Years		
6.	Bidder should not have been blacklisted by any Govt. bodies / PSB / PSU during the last five years from the date of RFP.	• Self-Declaration on Company's letter Head signed by authorized signatory.	Yes / No
7.	**Micro and Small Enterprises (MSE):** Micro & Small Enterprises (MSEs) under Single Point Registration scheme (SPRS) are eligible to get the benefits under Public Procurement Policy for Micro & Small Enterprises (MSEs) Order 2012 as notified by the Government of India, Ministry of Micro Small & Medium Enterprises, New Delhi vide Gazette Notification dated 23.03.2012 and amendment vide order no. S.O. 5670(E) dated 9th November 2018. Please note that Traders are not eligible for this Scheme. MSEs will have to meet all other eligibility criteria laid down in this RFP.	• Micro and Small Enterprises (MSEs) involved in manufacturing & Services to submit a valid and active SPRS Certificate received from NSIC along with Udyog Aadhaar Memorandum (UAM) / Udyam Registration.	Yes/No
8.	In terms of Notification No. F.No.6/18/2019-PDD dated July 23, 2020 issued by Public Procurement Division of Department of Expenditure, Ministry of Finance, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. A copy of the aforesaid Notifications can be downloaded from Department of Expenditure website i.e. URL https://doe.gov.in/procurement-policy-	• Both OEM and Bidders have to submit the approval from Competent Authority. • Alternatively, Bidders should provide Certificate *"Model Certificate for Tenders"*, on their stamp paper, as indicated on Annexure III at Page 11 of the Notification No. F.No.6,18,2019-PDD dated July 23, 2020 issued by Public Procurement	

Sr No	Criteria	Supporting documents	Compliance (Y/ N)
	division-0. The Guidelines may be treated as an integral part of the tender documents.	Division of Department of Expenditure, Ministry of Finance.	
9.	The bidder should have proven implementation experience of the Proposed Cloud CRM solution for streamlining and automating sales, service & marketing processes having minimum CRM user count of 3000. Preferably in large scale banks or BFSI.	• Copy of Accepted Work order and self-certification.	Yes/No
10.	Bidder Should have Implemented at least 2 modules out of the 3 proposed modules in one or more scheduled commercial bank in India having minimum 2000 branches as on date of RFP with Minimum 3000 Licensed user on proposed cloud CRM Platform. If the bidder has implemented Native Cloud CRM in any BFSI directly or on behalf of any partner, then the bidder will be eligible to apply. No two partners can claim for same client implementation. However, in case two partners claim for the same client then the partner who had implemented cloud CRM at ground level shall be considered for eligibility and evaluation. Bidder has to bid with one OEM only for the Proposed CRM solution. Any bidder proposing more than one OEM solution will be summarily rejected	• Copy of Accepted Work order and self-certification. Supportive documents from client will be required for decision	Yes/No

Sr No	Criteria	Supporting documents	Compliance (Y/ N)
11.	OEM should have at least 2000Cr of revenue in last 3 years.	• Audited financial statements to be submitted. Additional Support Letter from CA certifying year wise turnover to be submitted	Yes/No
12.	OEM should be ISO27001, ISO27017 and ISO27018 certified	• Copy of valid certificate	
13.	CSP on which proposed CRM is hosted should be empanelled with MeiTY	• Copy of valid certificate	
14.	Bidder should have direct support Offices in Mumbai/ Navi Mumbai. In case direct support Office of the bidder is not present in Mumbai/ Navi Mumbai, an undertaking to be provided by the Bidder stating that direct support would be provided by the bidder, whenever desired by the Bank.	• Self-Declaration on Company's letter head, mentioning address and local contact details.	
15.	The bidder should have atleast 300 resources in the COE of the cloud CRM practice	• Self-Declaration on Company's letter head, mentioning the same	Yes/No
16.	The Proposed CRM Solution must have a Native Mobile App on Google Play Store & iOS App Store	• Proof of mobile app on both Google Playstore & ios App Store	Yes/No
17.	The proposed CRM solution must be in the Leader's quadrant of the latest Gartner's Magic Quadrant for the CRM Customer Engagement Center	• Latest Gartner Report	
18. `	The proposed CRM solution must have been implemented on cloud in more than 3 BFSI organizations in India of which minimum 1 must be scheduled commercial bank	• Documentary proof validating the clause to be submitted by Bidder/OEM	

Non-compliance of any of the criteria can entail rejection of the Bid. Photocopies of relevant documents / certificates must be submitted as proof in support of the claims made for each of the above-mentioned criteria and as and when the Bank decides, originals / certified copies must be

shown for verification purpose. The Bank reserves the right to verify / evaluate the claims made by the Bidder independently. Any deliberate misrepresentation will entail rejection of the offer ab-initio.

SECTION 1

A (SCOPE AND SPECIFICATION)

1. INTRODUCTION

IDBI Bank Ltd ("IDBI Bank" / "Bank" / "Purchaser") is a company incorporated and registered under Companies Act, 1956 (1 of 1956) and a company under section 2 (20) of Companies Act 2013 (18 of 2013) and banking company under section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) with CIN No.L65190MH2004GOI148838 having registered office at, IDBI Tower, World Trade Center Complex, Cuffe Parade, Colaba Mumbai 400005. The Bank is also a Scheduled Bank as notified by the Reserve Bank of India (RBI) under the Reserve Bank of India Act, 1939. The Bank is engaged in providing finance to industries and conducting Banking business.

2. OBJECTIVE

The objective of this RFP is to appoint bidders who are interested and capable to provide Cloud Customer Relationship Management (CRM) solution for Sales, Service & Marketing Automation & Management in terms of, procurement, implementation and maintenance, with all the features and enterprise security, accessible over Bank's Network and Internet as per the scope defined in the scope of work section. All work must be completed in accordance with all applicable standards and other specifications, terms and conditions as stated in this RFP. Bank expects the vendor to provide best in class comprehensive support with competitive pricing which meets the highest security standards.

In order to fulfill the requirement of Cloud CRM Solution for the Bank. The Bank invite Request for Proposal (RFP) tenders from established organizations (hereinafter referred to as "Bidder") who are capable and willing to meet the requirements as stated in the RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION as required by of the Bank within the stated timeline and quality in an efficient manner, as Stated in the RFP document.

The RFP document will be available at Bank's website, which could be accessed through URL address **https://www.idbibank.in/ (Quick Links-->Notices and Tenders)**

The RFP bid document should be submitted through electronic mode through the e-Tendering Portal**:** **https://c1.eproc.in**

Any communication related to the RFP should be communicated/submitted to the office of:
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,

Chembur, Mumbai - 400071.
Email: dgm.itvmg@idbi.co.in

- Please note that all the information required needs to be provided, incorrect information can lead to non-consideration of the Bid and /or disqualification.

- All Bids must be accompanied by all the documents as specified in the Bid document

- Bank reserves the right to change/modify the dates/terms & conditions mentioned in this RFP document as per its requirement, which will be communicated on IDBI Bank's website.
- The information provided by the bidders in response to this RFP document will become the property of IDBI Bank Limited and will not be returned. Bank reserves the right to amend, rescind or reissue this RFP and all amendments will be advised to the bidders and such amendments will be binding on them.

- Bidders are advised to submit their bids well within the stipulated timeline. It is further advised that bidders should submit the bid well within the time instead of the last date to avoid complications. Bid submitted beyond the stipulated date and time will not be considered. In view of this context, IDBI Bank will not be responsible for such eventualities.
- All the documents to be submitted duly digitally signed by competent authority as per Bank's prescribed format only**.**
- The amendments / clarifications to the tender, if any, will be posted on the IDBI Bank website **https://www.idbibank.in** (**Quick Links-> Notices & Tenders)** and e-Tendering Portal **https://c1.eproc.in**.

3. CONTRACT PERIOD

- The initial term of the agreement shall be for 3 years with an indexation of upto 7 percent (7%) based on the cost from the previous year, with subsequent annual renewals contingent upon the Bank's requirements.
- First such renewal (post completion of initial term of 3 year) will be for 2 Years, and thereafter yearly renewal. It may include an indexation of upto 7 percent (5%) based on the cost from the previous year.
- Bank may terminate the agreement by providing Three (3) months' written notice.

4. SCOPE OF WORK

The solution proposed by the bidder should accommodate the following SOW:

1.1. The Bank invites technically complete and commercially competitive bids from reputed bidders for Procurement, Supply, Deployment of the required licenses, Development, Installation, Maintenance and Customization of the Customer Relationship Management platform, to achieve the objectives of operational efficiency, streamlined processes, workflow automation, management reporting on Real Time basis and repertoire/Archives of previous engagements & interactions in the areas of Sales, Service & Marketing.

1.2. The period of engagement shall be for a period of 3 years including implementation, customization, configuration of all the modules & features of the CRM Platform to automate & streamline Sales, Service & Marketing processes in the Bank according to Bank's needs, support & maintenance of the CRM Platform.

1.3. Designed solution to be compliant with the latest guidelines from RBI, MEITY.

1.4. The successful bidder needs to complete the End-to-end migration of the existing features, functionalities & work-flows, QRCD Types, QRCD Products, Lead Products, Historical & in-process - data, transactions, leads, appointments, QRCDs, Incremental & scheduled programs/jobs, Reports & Dashboards from existing on-premise SAP CRM to new CRM Platform.

1.5. The system should support multi-level categorization for both leads and QRCDs.

1.6. This engagement will be on cloud where the Bidder will be entirely responsible for end-to-end Management of CRM solution implementation with uptime, entire IT operation, capacity management and support within agreed SLA.

1.7. Configuration of OOB features & integration with M365 to see the details of the QRCDs/Leads and work on the same by launching from within M365.

1.8. Key modules & functionalities:-Besides the mentioned functionalities, features and modules available in the platform, all the standard module/functionalities/features should be available for use as per Bank requirements. The proposed CRM platform should have the following important modules/functionalities/features but not limited to: -

1) Customer 360 Degree View of the Customer (for Multiple LOBs) –
   a) The platform must provide overall view of the customer, relationships, interactions and all sorts of analytical & historical information.
   b) Platform should support separate customer 360 (screens & data fields) specific to respective LOBs.

2) Sales Automation & Lead Management –
   a) Customer Creation & Lead Management -
   The platform should provide customer on-boarding and lead generation of all types of customers through various offline & online channels, applications.
   b) Rule based Lead Aging & Auto Escalation, lead assignment, lead notification.
   c) The platform should support uploading of Leads manually /automatically.
   d) The platform should support documents upload and should be able to push these to CBS or DMS.
   f) The solution should provide VRM workbench and give option to route/connect the customer to dedicated RM/VRM/Virtual BH.
   g) Appointment Management
   h) Task Management
   i) Geo Tagging of field Officers with map service integration.
   j) User Roles & Responsibilities based access control to data.
   k) Organization & Position Hierarchy for Sales, Service visibility should be configurable for visibility of transactions & objects (Leads/Appointments/Interactions/Cases)
   l) Offer management – displaying all the active offers that the customer is eligible for.
   m) RM Tagging – The solution should be able to provide tagging of specific customers to

particular Relationship Managers based on a particular RM tagging logic. Solution should have provision to provide multiple tagging logics.

n) Collections & Recovery Management with Recovery Officer Tagging– The solution should be able to provide tagging of specific customers to Recovery Officers based on existing RO tagging logic.

o) Separate Lead Management screens & workflows for different LOBs.

p) Retention Management

q) Collection & Recovery Management

3) Service, Complaints, Grievance & Dispute Management

a) Service Management

b) Case assignment

c) Case priority - Based on the case type/category, the priorities will be auto assigned and based on that the case position on the pending queue will vary.

d) Case Age & Auto Escalation

e) Case Execution & Closure

f) Service, Request, Complaint, Dispute Management channels – The platform should support these interaction types and should support omni channel interactions for creation/modification/tracking of interactions from the following sources but not limited to branches, call center, online & digital channels, ATMs, NPCI & social media platforms.

g) Complaint & Dispute Management: Platform should be able to handle Customer Complaints/ Service requests including its entire journey i.e. Complaint Creation, processing, rejection, escalation to Nodal Officer/ IO, closure etc.

h) Complaint/Dispute auto-assignment

i) Complaint/Dispute Priority

j) Agent/RM/ VRM scripts

k) Separate Service Management – screens & workflows for different LOBs/Business.

l) Contact Centre Management

m) The CRM platform should be able to automatically generate case/QRCD from email and auto assign/route it to the respective team/branch.

n) The platform should provide verification scripts.

o) Rule based QRCD Aging & Auto Escalation, assignment, notifications.

c) The platform should support uploading of QRCDs manually /automatically.

4) Marketing & Campaign Management –

a) The solution should be able to send Email, SMS, Whatsapp campaigns to the ETB/ NTB customers in bulk through customer segmentation as well as file upload

b) The solution should be able to send dynamic & static content through Email, SMS, Whatsapp

c) The solution should be able to identify & target high propensity customers.

d) The solution should be able to capture the campaign response and calculate the ROI

e) The same should also be available through downloadable reports

f) The solution should provide easy to operate campaign management involving no technical resource from the vendor so that bank project/operations team should be able to make and send campaigns and download the response report.

g) The solution should provide 2 level approval for sending campaigns.

5) Reports & Dashboards with drill-down and drag and drop features.
   a) The platform should have OOB native reporting and dashboard features.
   b) Business users should be able to generate reports & dashboards.
   c) Real time data should be available in Reports & Dashboards.
   d) Scheduling should be available for reports & dashboards
   e) Publishing of reports & dashboards should be available with notifications.

6) Integrations:-
   a) The platform should provide integrations of all existing applications through either APIs or capability to consume APIs.
   b) Omni-channel Integration of the CRM Platform to be done with different on-premises/on-cloud/external applications systems like EDW, CBS, ATM, Email Gateway, SMS Gateway, Chatbot, Whatsapp gateway, mobile Banking, inet Banking, Lakehouse, M365, third party leads/QRCD portals, social media, CIC, Bank Website, NPCI, NSDL, UIDAI portals for customer validation/CIC score fetching, using out of the box/in-built connectors etc.
   c) Bidders need to estimate the required third-party tools/API/Middleware/Gateway/CDC/ETL for the proposed CRM platform for STP, Non-STP methods & omni channel integrations for integrating with other on-premises and cloud applications of the Bank through web service/APIs/ ESB, file import etc. Integration should be using native in-box connectors. The connectors should be available for on-premises/on-cloud applications without any additional licenses cost.
7) Support the Bank in regards of compliance to Bank's policies but not limited to IS Security Policy, Cloud Adoption Policy, IT Outsource/IT Purchase policy/RBI/any statutory/regulatory' s requirements.
8) The CRM Platform should support low code/no code to customize/develop existing/new screen / feature/ workflow.
9) The platform should have native AI/ML/GenAI capabilities & features, sentiment analysis and customer insights for better customer & user experience.
10) The platform should provide configuration of native workflow management and automation tools for designing business processes, event-based flow triggers and scheduled workflow for data sync/updates.
11) Sales & Service modules should have native connectivity between them without the need of any integration efforts. All the above modules must be on same DC-DR infra in India.
12) All the major functionalities of CRM like Leads/Opportunities/Appointment/Cases QRCD and others should have web services/ APIs published for creation, update & status inquiry. Proper training must be provided by the vendor to the Bank's CRM team in creating & publishing web services.
13) The CRM platform (desktop web/mobile web/Mobile App) should interface with but not limited to:-Business Rule Engine, EDW, Data Lake/ Lake house, DMS, Third Party Tools

to get/validate/process the information online like e-KYC, Video KYC, e-Aadhaar, NeSL, CERSAI, EPFO, Online Due-diligence, Wilful Defaulter list, Central Fraud Registry, CRILIC, Fraud Risk Management System, Internal rating System, CIC Agencies, PAN / AADHAR/VID/Token / Identity validation, Business Analytics, Social Media Feeds, Analysis of IT Return / Financial Statement / Stock statement / Bank's statement, GST Returns, e-documentation, e-stamp, e-sign, etc. based on Bank's requirement.

14) The implemented CRM Platform is to be made accessible from Bank's intranet/Domain PCs and from internet (web browsers, tablets & mobile app (android & iOS)).
15) The Platform should be cloud based. The Proposed application for the requirement mentioned above should be secured over all channels within and outside domain over desktop, web, mobile app channels.
16) All software/ application licenses/subscriptions will be in the name of the Bank.
17) Integrations: The final solution should have the ability to natively integrate with current collaboration tools i.e. OEM Office365 and Teams. Following features are required (not limited to):-
    a. Ability to launch CRM from Teams App
    b. Ability to get approval either on email and get relevant notification on email

    Mobile App –

    a) The solution should have native mobile apps published in Google Play Store and iOS App Store and the customizations specific to the Bank and roles should be available in the mobile app.
    b) The mobile App should provide PIN based authentication through which the user will login after one time user registration/re-registration (in case of new mobile) through Azure AD authentication & user OTP.
    c) The mobile app should be compatible with MDM
    d) In addition to the mobile app, the solution should also have a responsive web view.

    c. Ability to sync employee information and role hierarchies from Azure AD/HRMS to CRM Platform.
    d. Ability to handle user management centrally at Azure AD level.
    e. Ability to integrate with Azure AD for user authentications
    f. The implementation to have native and OOB authentication with ADFS/Azure AD for all channels – desktop/mobile web and mobile app.
18) Ticketing Tool – Successful bidder may bring in ticketing tool for the end users to raise support tickets.
19) The solution should have automatic mail management capabilities.
20) The implemented solution should be able to provide an automated process for case/lead execution & auto closure of leads/cases in STP.
21) Alerts – The platform should send alerts through SMS, Email, Whatsapp, Push Notifications (to users/customers) via the respective gateways/services on various trigger points.

22) Notes – The solution should have the dedicated space to capture notes related to any sale, service & case.
23) Customer Feedback – The solution should be able to push CSAT/NPS survey through various channels after successful closure of any case/lead/appointment directly or via integration to capture the customer feedback. The link should be customizable and should be able to send to customers automatically through any of the channels.
24) Security –

a) The application must support user level authentication, visibility and access rights.
b) The application should support role-based access.
c) The application should be configured to provide audit trail reports & log facility to track the user's activities and these logs/trails/reports should be exportable.
e) The solution should be compatible to integrate with SIEM tool of the Bank.
f) System must provide or make provisions for Maker/Checker facility.
g) The final solution should provide integration with data encryption through software key/ HSM of the Bank and Bank shall have the ownership of the key, without which even the OEM should not be able to decrypt the data.
h) Solution should have Data encryption at Rest and in Motion/ Transit by default.
i) To protect any critical customer information from misuse like Debit/Credit Card, PAN, Aadhaar & other sensitive PII information should be masked in the front end & encrypted in the database.
j) Multi Factor Authentication to be enabled through Azure AD Integration.

25) Functionality –

a) Besides the above functionalities, the vendor should make all the out of the box functionalities/features of the product/solution available to the Bank. Bank will take a call whether to leverage the functionality or not.
b) If any of the functionality asked in the scope is not available as out of box and requires 3rd party product/gateway/service integration/licenses or if it requires a customized solution within CRM or customized tool or product, then the same should be mentioned along with cost. Bank may take a call whether to implement the functionality or not.

26) Implementation Timelines & Rollout Plan –

a) Project plan to be implemented within 6 months with maximum timelines of 12 months (including requirement gathering, pre-requisite preparation, setting up the required environment and configuration, customizations, UAT/SIT etc). Time will start immediately after receiving the purchase order. In order to save time the successful bidder is advised to start resource on-boarding and resource mobilisation within maximum 2 weeks of receiving the Purchase order.
b) There should be enough resources from the vendor to be on-boarded and make them available in Bank's premises at Belapur, Navi Mumbai, or any other premises of bank, so that project timelines should not hamper due to lack of resources.

27) Documentation, Handholding and Training –

a) The successful bidder should make and provide all the necessary project documents like Solution Architecture & Design, Implementation Approach Document, Roll-out plan & Time-lines, Data Migration Plan, Data Flow Diagram, HLD, LLD, DLD documents, BRD, SRS, Admin Manual, Configuration Manual, Functional & Technical User Manual, SOP, UAT Test Cases and End User Manual with proper screenshots and steps.

b) Proper necessary admin, technical & functional training should be provided to the identified Bank's resources so that admin activities like user creation, roles & responsibilities assignment along with necessary configuration, changes & customizations can be done by the Bank's internal team as per Bank/business requirements.

c) Proper training along with module specific training materials/ literatures along with online/mobile training portal/app should be provided so that the intended users can take the training or refer the same as and when required.

28) Data Loading –

a) The vendor has to do initial data load (IDL) containing customer master data, CRM transaction data (not older than 3 months & open leads/appointments/QRCs), customer analytics data pre-approved & cross-sell offers and other relevant information from respective source systems (EDW/CBS/CRM etc). Besides that the vendor also has to migrate data from existing SAP CRM (customer data, Bank officer-customer relationship tagging, leads, appointments, QRCDs, interactions) into New CRM.

b) Post IDL, the vendor has to design & schedule programs for daily incremental load from the respective source systems.

c) Till the migration from SAP CRM is completed, all the systems should run parallel and incremental data should be pushed to the New CRM.

29) Timeline –

a) Implementation Timeline – The successful bidder is required to complete the implementation of the complete solution within 6 months from project kick off date with all the features/functionalities/processes/modules existing in the current SAP CRM.

b) Contract Period – The total contract period will be 3 years from project kick off date which includes procurement, implementation, configuration, UAT, Go-Live and post Go-Live support and maintenance. If the implementation period extends more, then the period of post Go-Live support & maintenance will automatically reduce to accommodate within the 3 year contract period.

30) Post Implementation Support –

a) Post implementation, successful bidder shall depute dedicated onsite resource at Bank's premise at CBD Belapur or Cuffe Parade or other premises within Mumbai/Navi Mumbai/Other location to support CRM operations and maintenance.

b) The onsite resource should provide support between 9:30am to 06:30pm for sales

module, marketing module & service module (branch channel) on all weekdays (Monday-Saturday) for the support period under contract. For service module (contact/call center channel), the support timings will be 24x7. In case of exigencies, even during off business hours, Bank holidays, drills etc., the resources may be required to be present onsite. Successful bidder has to calculate & deploy the number of resources sufficient to support the modules in phased manner.

c) The Vendor support person / engineer deputed to the Bank is liable to be interviewed by the Bank's Technical Team for ascertaining his/her suitability and only upon clearance from the Bank's Technical Team, he / she will be permitted to work. Vendor also needs to submit the ID proofs of the resources to the Bank, and upon successful verification only, the vendor resources will be allowed access inside the Bank's premises.

d) The onsite resource shall be responsible for managing day-to -day operations of CRM within the organization, configuration, operation, support, maintenance, troubleshooting issues of CRM, raising (in case of inability of the end user to raise ticket), working & closing support tickets raised by users of CRM across the Bank, and not to creation/ disable/ modification of user, application configuration, creation and modification of objects, transaction routing, enable/ disable various permissions etc. The onsite resource shall address the issues related to all facilities and services as part of proposed solution and provide solution. Also, the resource will be responsible for following up of any pending issues with bidder as well as CSP.

e) Onsite resource shall ensure to provide daily, weekly, monthly reports as required by the Bank. Besides that, support resources also need to provide the activity reports, system health, performance reports and any other report as specified by the Bank regularly and as and when required.

f) In case of any system outage where the onsite support resources are not able to resolve the issues, the onsite resources shall log support ticket on ticketing portal of OEM on Bank's behalf and also arrange to provide the RCA in consultation with OEM as and when required by the Bank.

g) Onsite resources deployed at the Bank shall be dedicated and cannot be shared for any other purpose. Any kind of absence should be with prior intimation to the Bank and bidder shall ensure to provide proper replacement during absence period. Bank is liable to deduct the payment for the absenteeism of the support resources on pro-rata basis.

h) Escalation Matrix for unresolved issues should be in place and provided to the Bank.

i) The successful bidder should have the ability to generate SLA and MIS reports periodically e.g. volume of calls/tickets per day, resolution percentage, categories of the issues.

j) In case of non-satisfactory services or misbehaviour by any support resource, the successful bidder shall ensure to replace the resource within a period of 3 weeks (after giving proper KT), as per discretion of the Bank.

k) Indicative onsite resource requirement (Module wise) to be provided as below by the bidder:

Requirement	**Module**	**Resource Type**	
		L1	**L2**
Onsite resource for support and maintenance	Sales		

of proposed solution (post implementation period) for a period of 2.5 Years* or from Go Live date to contract period.	Service, Campaigns		

Numbers provided for resources (L1 & L2) are indicative and these can be changed as per bidder suggestions or Bank's requirement at a later date after mutual agreement.

*The period of support for the specific phase/module will start only after the particular phase/module gets sign off, and the period of support (in months) for the particular phase/module will be counted from the sign-off date of the particular phase/module till the period of engagement.

l) The successful bidder shall provide a SPOC as project manager for entire project of 3 years including implementation and onsite support period.

31) Onsite Resource Qualification:

- **L2 – Resource Qualifications:**

i. B.E./B.TECH (in Computers or IT)/MCA/ M.Sc.-IT/Computers with minimum 5 years of Experience in Support/implementation of any cloud CRM.
ii. Sound knowledge of Sales & Service processes in an organization (preferably BFSI) with the ability to customize/configure the application as per Bank's requirement.
iii. Cloud certification from OEM in the area of primary skill set is mandatory.

- **L1 – Resource Qualifications:**

i. Graduate B.E./B.Tech/MCA/B.Sc.-IT/Computers with minimum 2 years of Experience in support/implementation of any cloud CRM or minimum 3 years of support/implementation experience of any CRM (on-premise or cloud).
ii. Cloud certification from OEM in the area of primary skill set is mandatory.

- Any later substitution, replacement of resources is to be done in compliance to these minimum requisites. These are the minimum qualification and experience stipulated by the Bank.

32) System landscape & Infrastructure –

a) The DC & DR of the deployed solution should be in India and No data should be hosted or stored outside India geographies.
b) The DC & DR of the deployed solution should be MEITY/METI/RBI/IRDA compliant/approved.
c) The solution should be compliant with the latest guidelines from RBI/MEITY.
d) DC & DR should have availability from minimum 99.5%.
e) The data in DC & DR should be synced in real time or near real time.
f) The solution should have the capability to create multiple non-production environments for UAT, Dev, SIT etc.

33) Reports & Dashboards –

a. The vendor has to provide all the relevant & standard reports & dashboards that comes with the solution. In addition to that the vendor has to develop the reports as required by the Bank/business from time to time.
   Solution should have native reporting & dashboard tools which can be accessed on mobile/tablets for management reporting.
b. The solution should be capable of native integration with enterprise BI Tool like Power BI, Tableu, Qlik Sense etc for enhancing analytics experience.
c. Besides the above, the vendor must migrate/develop the reports which are being currently used in existing CRM.

34) Batch Jobs & Programs – The vendor has to develop/configure batch programs which are currently active in the existing CRM application for various purposes.

35) Minimum Use Cases – Besides the standard out of box features and the scope mentioned in the scope of work section of this RFP document, the vendor should implement the minimum use cases.

In case of a difference of opinion on the part of the Bidder in comprehending or interpreting any clause / provision of the Bid Document after submission of the Bid, the interpretation by Purchaser and decision of Purchaser in this behalf shall be final, conclusive and binding on the Bidder.

4.1. TECHNICAL SPECIFICATIONS

The Technical evaluation of the eligible bidders will be carried as per the details furnished below:

S No.		Criteria/ Technical & Functional Requirements (All claims by the OEM/bidders to be supported by supporting documents- PO/Email/Signed SOW/Sign Off Documents)	Marks Obtained/ Response	Max Marks
1		Implementation Experience of Bidder/OEM in implementing Native Cloud CRM a. Large Scale Scheduled Commercial Banks in India – 2 Marks b. Foreign Banks in India – 1.5 Marks c. Foreign Bank's global implementation – 1.3 Marks d. NBFCs/Small Finance Banks in India – 1 Marks e. Any Insurance Co in India – 0.5 Marks *Max of 5 references will be considered		10
2		Number of any Cloud CRM Implementations a. In BFSI in India – 1 Marks b. Any other Industry in India – 0.5 Marks *Max 2 references will be considered		2
3		Presentation / Demo / POC / Client Visit (Marks will be allotted based on the quality & use cases covered)		15

4		Detailed implementation approach, architecture, solution design, time-lines & roll-out plan to be submitted by the bidder		5
5		Migration - Whether the bidder has done End-to-end migration of any On-premise CRM to cloud CRM **1** Marks for cloud CRM implementation *Maximum 2 migrations will be considered		4
6		Module/functionality implemented:- **1.1.1.** Lead/ Opportunity Management – 2 Marks **1.1.2.** Service Management – 1 Marks **1.1.3.** Email case management – 1 Marks **1.1.4.** Customer 360 (Real time data fetch from on-premise system) – 2 Marks **1.1.5.** Campaigns – 1 Marks **1.1.6.** Customer on-boarding in CBS through STP – 1 Marks **1.1.7.** QRC execution in source through STP – 1 Marks **1.1.8.** CRM Mobile App (with client customizations) for Android & iOS – 2 Marks **1.1.9.** Card Management STPs (Hotlisting/ Blocking/Re-issuance) – 2 Marks **1.1.10.** CBS STP (0.5 Mark for each STP, Max 4 STP) – 2 Marks **1.1.11.** Integrations: **1.1.12.** EDW/Data Lake/Lake house integration – 1 Mark **1.1.13.** Azure AD/ADFS Integration – 1 Marks - Email (Outbound – 1 Marks, Inbound – 1 Marks) – 2 Marks - SMS – 1 Mark - WhatsApp (Outbound – 1 Marks, Inbound – 1 Marks) – 2 Mark - Avaya CTI – 1 Mark - Genesys CTI – 1 Mark - IVR – 1 Marks - ESB – 1 Marks - Mobile Banking (Outbound – 1 Mark, Inbound – 1 Mark) - 2 - Internet Banking (Outbound – 1 Marks, Inbound – 1 Mark) - 2 - MS Teams – 1 Mark - Office 365 – 1 Mark - Web Journeys based customer on-barding – 1 Marks - LOS – 2 Marks - External Agency STP (Pan validation, Aadhaar validation, CIBIL, External Agency Leads(2 nos.)) – 5 Marks (1 Mark each)		40
7		Availability of pre-built accelerators for Cloud CRM		2
8		Availability of OEM Certified professionals pool		2
9		Fastrack Implementation – 2.5 Marks for 6 months per module (Copy of Sign off with Kick off date) 2 marks for 9 months per module implementation experience 1 mark for 12 months per module implementation experience		5

		0 marks for more than 12 months per module (Max 2 modules will be considered)		
10		Show case end to end capabilities beyond CRM through single OEM. Capabilities like LOS, collections, Chabot's, Agentic AI and customer data platform		10
11		Show case Latest AI/Gen AI Capabilities across modules and functions		5
		Total		**100**

5. WARRANTY

Mention the scope of the services to be delivered by the bidders and period

a) Implementation Timeline – The successful bidder is required to complete the implementation of the complete solution within 6 months from project kick off date with all the features/functionalities/processes/modules existing in the current SAP CRM.
b) Contract Period – The total contract period will be 3 years from project kick off date which includes procurement, implementation, configuration, UAT, Go-Live and post Go-Live support and maintenance. If the implementation period extends more, then the period of post Go-Live support & maintenance will automatically reduce to accommodate within the 3 year contract period.

6. ATS (ANNUAL TECHNICAL SUPPORT)

Sr No	Period of Contract	Contract Type (ATS / AMC)	Duration / Man-days	Type of Support / Resources	Roles & Responsibilities
1.	3 Years	Implementation + Support +AMC	3 Years	L1 and L2	Implementation, Support and enhancement

7. SERVICE LEVEL EXPECTATION (SLE)

Cloud CRM SLE with OEM -

Downtime: Any period of time when end users are unable to read or write any Service data for which they have appropriate permission, but this does not include non-availability of Service add-on features.

Uptime Percentage: The Uptime Percentage will be calculated as follows:

Uptime Percentage	Service Credit
< 99.9% to >=99%	25%
< 99% to >=95%	50%
< 95%	100%

• • where Downtime is measured in user-minutes; that is, for each Applicable Period,

Downtime is the sum of the length (in minutes) of each Incident that occurs during that Applicable Period multiplied by the number of users impacted by that Incident.

With Bidder -

Severity Definition during Live operations due to Functional issues of the system.

LEVEL	Type of Infrastructure	Function / Technology
Severity 1	Criteria	Any problem due to which 10000 or more users cannot access the system or; Showstoppers involving major functional failure in the application. There are no usable workarounds available to troubleshoot the problem
Severity 2	Criteria	Any problem due to which 10 to 10,000 users cannot access system or; Any incident which is classified as "Severity 1" for which an acceptable workaround has been provided by the Bidder or; Any problem due to which the Severity 2 system does not perform according to the defined performance and Users face severe functional restrictions in the application irrespective of the cause.
Severity 3	Criteria	Any problem due to which 1 to 10,000 users cannot access the system or; Any incident which is classified as "Severity 2" for which an acceptable workaround has been provided by the Bidder or; Moderate functional restrictions in the application irrespective of the cause. Has a convenient and readily available workaround.

Uptime rules:

Wherever the bidder monitors onsite, the downtime calculation starts from the time software/tool/solution etc. fails leading to denial of service. As long as there is no denial service to the bank, downtime does not arise.

Wherever bank monitors, the downtime starts from the time of reporting by the bank.

The bidder should guarantee a minimum of uptime of 99.95% per month for the SOLUTION and execute Service Level Expectations accordingly. The uptime will be calculated on monthly basis. Penalty will be charged as below:

	SLA	**Penalty**
1	Where the downtime is up to 30 minutes (Uptime above 99.95%)	No Penalty
2	Where the downtime is above 30 minutes but less than or equal to 2 hours (Uptime between 99% to	Rs.3,000/- for every 1 hour or part thereof for the downtime exceeding 2 Hours

	99.95%)	
3	Where the down time is above 2 Hours but less than or equal to 7 Hours (Uptime between 98%-99%)	Rs.5,000/- for every 1 hour or part thereof for the downtime exceeding 7 Hours.
4	Where the downtime is above 7 Hours. (Below 99.5%)	Penalty of 20% of the total FMS payable for the respective quarter will be levied.

Service Request/Incident:

Penalty should be levied on non-compliance of service ticket (criticality wise). The penalty percentage will be as follows.

Issue Classification	For All service tickets raised in ticketing Tool		In case not resolved in stipulated time
	Response Time	Resolution Time	Penalty % of FMS
Critical	20 Minutes	1 Hour	20%
High	30 Minutes	2 Hours	10%
Medium	45 minutes	4 Hours	5%
Low	60 minutes	12 Hours	2%

8. PAYMENT TERMS

The method and conditions of payments to be made to the successful bidder shall be:

Software Licenses and Implementation Cost:

Payment of Software Licenses and Implementation cost plus applicable tax (wherever applicable) at actuals to be made as per below schedule:

#	**Completion of Stage**	**Amount to be released**
1.	On Signing Up of Contract, successful delivery of licenses and submission of invoices for licenses and credit note towards applicable penalty, if any.	100% of annual license cost in advance
2.	On successful sign-off from the Bank for requirement gathering and submission of migration plan and detailed approach document submission of invoices for license and credit note towards applicable penalty, if any.	20% of Implementation cost
3.	On successful completion of pilot testing for selected set of users, subject to submission of invoices and credit note towards applicable penalty, if any.	40% of Implementation cost
4.	On successful completion of implementation and project sign off subject to submission of invoices and credit note towards applicable penalty, if any.	Remaining 40% of Implementation cost
5.	Onsite resource cost subject to submission of invoices and credit note towards applicable penalty, if any.	Quarterly

6.	License cost from 2nd year onwards subject to submission of invoices and credit note towards applicable penalty, if any.	100% of annual cost in advance

Onsite Support Charges: Payable quarterly at the end of each quarter against receipt of satisfactory support report of previous quarter from the Bank.

There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the bidder. Payment will be released by the Bank as per above payment terms on submission of relevant documents. The Bank will pay invoices within a period of 30 working days from the date of receipt of undisputed invoices. Any dispute regarding the invoice will be communicated to the selected bidder within 15 working days from the date of receipt of the invoice. After the dispute is resolved, Bank shall make payment within 30 working days from the date the dispute stands resolved.

Note: i) No advance payment will be made on awarding the contract.
ii) No penalty/ interest is payable by the Bank for delayed payment.
iii) The successful bidder will submit the invoices for each payment along with applicable credit note towards penalty, if any.
iv) The payment shall be processed only after signing of contract, NDA, submission of PBG, submission of HLD, DLD etc.
v) All the payments will be made in INR and deducting TDS, as applicable

9. PENALTIES

9.1. The Bidder shall have to enter into a Service Level Agreement (hereinafter referred to as SLA) with the Bank before the award of the contract as per the format provided by the Bank. Service level expectations are to be maintained during Implementation Phase as well as Post Implementation Phase.

9.2. The purpose of SLA is to bring clarity in defining the levels of service to be provided by the successful Bidder to Bank during this contract. SLA defines the terms of the successful Bidder's responsibility in ensuring the timely delivery of the deliverables and the correctness of the same based on the agreed Performance Indicators as detailed in the Agreement. This section defines various Service Level Indicators which will be considered by the Bank in the Service Level Agreement with Successful Bidder.

9.3. The successful Bidder has to comply with all SLAs as mentioned in this RFP to ensure adherence to project timelines, quality and availability of services. Also, Bidder has to ensure compliance with the Bank's Policies. Bank expects to implement the whole project within the stated timelines in this RFP.

9.4. Down time due to the following situations will not be considered for the purpose of penalty calculation: Scheduled maintenance activity / planned downtime by the Bank.

9.5. Penalty for delay in project implementation:

9.6. In the event of Successful Bidder's failure to deliver and / or implement all required components pertaining to the scope of project within stipulated time schedule or by the date extended by the Bank, unless such failure is due to reasons entirely

attributable to the Bank, it will be a breach of contract. In such case, the Bank would be entitled to charge a penalty. Penalty will be applicable 0.1% of Implementation cost and will be deducted as penalty per week or part thereof for failure as indicated in the RFP with the maximum penalty of 10% of Total value of Implementation cost.

9.7. However, Bank reserve the right to terminate the contract at any time, if the project is not delivered as per scheduled timelines and Bank will claim entire amount paid to the vendor with simple interest @18% p.a. along with additional 10% of Implementation cost, as compensation.

9.8. Penalty Due to downtime post and during implementation:

9.9. SLA for Uptime of the solution/ service: As per the current standard Service Level Agreement for OEM Online Services, the SLA must be financially backed with 99.9% uptime. The Service uptime agreement for the proposed solution should have uptime commitments and have transparent credit calculations in case of uptime not being met for any service(s).

9.10. The successful bidder will adhere to the following Service Level Expectations (SLE) related to support for solution implemented/services provided.
In case the stipulated uptime is not maintained, penalty shall be charged as specified below:

Uptime Percentage	Service Credit
< 99.9% to >=99%	25%
< 99% to >=95%	50%
< 95%	100%

The uptime will be calculated as per the formula given below:
Uptime (%) = (Sum of total Minutes during month – Sum of downtime Minutes during month) X 100 / Sum of total Minutes during month
Total Minutes in a month will be taken as: 24hrs* no. of days in respective month
Downtime Minutes include both planned (beyond the permissible limit) as well as unplanned downtime.
If the uptime falls below 99% during two consecutive months, contract / Order may be cancelled and Bank may claim entire advance amount with interest from the bidder with additional 10% of the yearly contract cost as penalty.

9.11. Penalty Due to delay / Non resolution of the issues.

9.12. Any issue identified by Bank / vendor's service engineer would have to be fixed within the stipulated time depending upon the criticality of the issue. In case of any call raised with the successful bidder for issues related with software, it should be resolved as per the below table:

Impact of the Issue	Response Time	Resolution Time
Critical Business Impact Issues	Within 20 Minutes of issue being reported	1 Hour from the time of issue being reported
High Business Impact Issues	Within 30 Minutes of issue being reported	2 Hours from the time of issue being reported
Medium Business	Within 45 minutes of	4 Hours from the time

Impact Issues	issue being reported	of issue being reported
Low Business Impact Issues	Within 60 minutes of issue being reported	12 Hours from the time of issue being reported

- Critical Impact Issues: Represents the showstopper under various issues impacting group of users etc.
- High Impact Issues: Represent the issues that leads to severe functional restrictions in the application. Impacting performance and users.
- Medium Impact Issues: Represents disruption of services under various issues such as Data recovery, Creation of user account and license assigning, Problems arising out of security configuration and impacting users etc.
- Low Impact: Represents various issues such as Installation of Office & other clients at end point level etc.

The penalty amount on delay in resolution of the issues raised is stated as under:

Type of issue	Resolution Time	Penalty
Critical	1 hour	Rs.10,000/- per hour exceeding 1 hour
High	2 hour	Rs.5000/- per hour exceeding 2 hour
Medium	4 hour	Rs.1000/- per hour exceeding 4 hour
Low	12 hours	Rs.500/- per hour exceeding 12 hour

*The maximum penalty to the extent of annual cost.

9.13. Penalty due to Absence of Onsite Support Engineer

9.14. In case where the number of resources are not available per day as per the resources quoted by bidder for onsite technical support, in addition to non-payment for the day/s of absence, penalty for L1 resource Rs.1,500/- per day per resource and that for L2 Rs.2,500/- per day per resource with the maximum penalty of 10% of total monthly payout for onsite support cost quoted by bidder would be levied. If the resource is not available for more than 8 days in a month, no amount shall be paid against that resource for respective month. Also, if the resource is not available throughout the month, in addition to non-payment for that resource for respective month penalty shall also be applicable upto maximum extent. The payment will be made after deduction of penalty payable amount. It will be the responsibility of successful bidder to provide credit note for calculated penalty amount.

9.15. Each type of penalties specified herein can be levied simultaneously. Maximum deducted penalty of one type will not affect any other type of penalty i.e. all types of penalties can be levied upto their maximum limit simultaneously.

B (OPENING AND EVALUATION OF RFP BID)

The bid documents have to be opened through electronic mode through the e-Tendering Portal **https://c1.eproc.in** as per the date, time & locations mentioned under the clause in the "Schedule of Events".

1. PRELIMINARY CHECK

1.1. The RFP document will not be construed as any contract or arrangement which may result from the issue of this RFP document or any investigation or review carried out by any Bidder.

1.2. Bank will examine the Bids to determine whether they are complete, whether any computational/arithmetical errors have been made, whether required Bid Security has been furnished, whether the Bid Documents have been properly signed, and whether the Bids are generally in order.

1.3. If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected and such correction shall be considered for further evaluation. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder. If there is a discrepancy between words and figures, the amount in words will prevail.

1.4. A Bid determined as substantially not responsive will be rejected by Bank. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

1.5. Bank may waive any minor informality or nonconformity or irregularity in a Bid, which does not constitute a material deviation, provided such waiver, does not prejudice or affect the relative ranking of any Bidder.

1.6. Bank reserves the right to accept or reject in full any or all the Bids without assigning any reason whatsoever and without thereby incurring any liability whatsoever to the affected Bidders or any obligation to inform the affected Bidders of the grounds for the Bank's action. Any decision of Bank in this regard shall be final, conclusive and binding on the Bidder.

1.7. Bank reserves the right to re-issue / re-commence / cancel the entire Bid process in case of any anomaly, irregularity or discrepancy or for any other reasons or otherwise without thereby incurring any liability whatsoever to the affected Bidders or any obligation to inform the affected Bidders of the grounds for the Bank's action. Bank shall not be bound to give any reasons or explain the rationale for its actions / decisions to annul or abandon or cancel the bid process. Bank further reserves the right to re-issue /re-commence the Bid or circulate new RFP altogether on the subject matter or any activity or part thereof concerning thereto. Any decision of Bank in this regard shall be final, conclusive and binding on the Bidder.

1.8. During evaluation and comparison of bids, the Bank shall, at its discretion ask the bidders for clarification of its bid. The request for clarification shall be in writing and no change in prices

or substance of the bid shall be sought, offered or permitted. No post bid clarification at the initiative of the bidder shall be entertained.

1.9. Any effort by a Bidder to influence Bank's Bid evaluation, Bid comparison or contract award decisions may result in the rejection of the Bid.

1.10. Any effort by a Bidder to influence the Bank in its decisions on Bid evaluation, Bidcomparison or contract award may result in the rejection of the Bid

2. BID EVALUATION CRITERIA

2.1. A screening committee constituted by IDBI Bank for the purpose of selection of the successful Bidder, would evaluate Bids

2.2. The proposals will be evaluated in four stages as explained below

Evaluation Stages	Description
Stage-1 Eligibility Evaluation	Eligibility criteria for the Bidder to qualify this stage is clearly mentioned in Eligibility Cum Evaluation Criteria Compliance Sheet. The bidder would need to provide supporting documents as part of the eligibility proof. The compliance sheet should be submitted on letter head of the bidder. Bidders qualifying Stage 1, will only be considered as being eligible for Stage 2 evaluation
Stage-2 Techno Commercial	Eligible bidders qualified from Stage 1 evaluation process will be processed under Stage 2 evaluation. Evaluations of bidders shall be done under Techno Commercial evaluation i.e. 70% Weightage for Technical bid + 30% Weightage for Commercial bid and the bidder who score HIGHEST MARKS will be declared as H1 Bidder. Weightage of technical bid (Max 70%) will be calculated on total marks of technical evaluation scoring parameter. The details are mentioned below
Stage-3 Online Reverse Auction (ORA)	The top N bidders (as decided by the bank) who score the highest marks from Stage-2 will be considered for Stage 3 evaluation. Stage 3 evaluation is: Online Reverse Auction (ORA)

2.3. TECHNO COMMERCIAL EVALUATION:

Bidders will be evaluated through Techno Commercial Evaluation process as outlined below –

Evaluations of bidders shall be done under Techno Commercial evaluation i.e. 70% Weightage for Technical bid + 30% Weightage for Commercial bid and the bidder who score HIGHEST MARKS will be declared as H1 Bidder. Weightage of technical bid (Max 70%) will be calculated on total marks of technical evaluation scoring parameter.

Weightage for commercial bid (Max 30%) will be calculated on rates quoted by the bidders post Reverse Auction. After opening of commercial bids and conducting Reverse Auction, following Scoring Mechanism shall be deployed. The "Commercial Score" will be calculated using the formula, given below:

Commercial Score = Lowest Commercial Price post Reverse Auction x 100

Bidders' commercial price quoted post Reverse Auction

The Final Score for a bidder will be calculated using the formula, given below:

"Final Score" = (Technical Score x 0.7) + (Commercial score x 0.3), *round upto 2 digits*

Thereafter, the bidders shall be ranked in terms of the Final Score obtained. The bidder obtaining the highest total combined score in evaluation of quality and cost will be ranked as H-1 followed by the bidder securing lesser marks as H-2, H-3 etc.

For example – If there are three bidders A, B and C. In this calculation process will be as under

Sr.	Bidder	Technical Evaluation Marks (T) (Absolute Marks on a scale of 100 or %age)	Nominal Bid Price in INR (C)	Technical Score	Commercial Score	Final Score (out of 100)
1	A	95	71	(95/95) x70	(60/71) x30	70+25.35= 95.35
2	B	85	65	(85/95) x70	(60/65) x30	62.63+27.70= 90.33
3	C	90	60	(90/95) x70	(60/60) x30	66.31+30= 96.31

In the above example, **Bidder C** with highest score becomes the successful bidder.

The proposal securing the highest combined marks and ranked H-1 shall be recommended for award of contract. In the event two or more bids have the same score in final ranking, the bid with highest technical score will be H-1.

In case of a discrepancy between amount in words and figures, the former will prevail.

2.4 Online Reverse Auction (ORA)

The bank will undertake Online Reverse Auction whose details are given below.

i. The top N bidders (as decided by the bank) with highest marks from the Techno Commercial Evaluation Round (Stage-2) shall be considered for Online Reverse

Auction. The date and time along with auction rules will be provided to qualified bidders separately.

ii. The successful bidder will be arrived through an Online Reverse Auction (ORA). The Bank reserves the right to negotiate the price with L1 bidder discovered through ORA before awarding the contract.

iii. The Bank shall however not bind itself to accept any Bid and reserves the right to accept any Bid, wholly or in part.

3. BANK'S RIGHT TO ACCEPT ANY BID AND TO REJECT ANY OR ALL BIDS

3.1. Bank reserves the right to accept / reject any bid and to annul the Bid process at any time prior to award of Contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for Bank's action. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

4. ACCEPTANCE OF BID

4.1. Prior to the expiration of the period of Bid validity, Bank will notify the Successful Bidder in writing, that its bid has been accepted.

5. SIGNING OF CONTRACT

5.1. After Bank notifies the Successful Bidder that its bid has been accepted; the Bidder should sign the Contract and complete the execution of all other documents.

5.2. The signing of Contract should be accompanied by the submission of Performance Bank Guarantee, Non- Disclosure Form, Deed of Indemnity / warranty and other applicable documents as specified in the RFP / Bid Document.

5.3. The Contract form and all other documents would be signed at Mumbai within 15 days of receipt of notification of award of contract.

5.4. Payment of stamp duty would be as per applicable laws in the State of Maharashtra and would be paid in Maharashtra only. No other state stamp duty will be accepted.

5.5. The Bidder shall bear all costs and expenses for the execution, stamp duty and submission of the contract and agreements. Bank shall not be responsible or liable for reimbursing / compensating these costs and expenses.

The incidental expenses of execution of the Contract as well as the conditions stipulated in the contract shall be strictly adhered to and any breach / violation thereof shall entail termination of the Contract without prejudice to the other right of IDBI Bank including but not limited to the right to levy / impose and recover penalties as specified in this RFP or Contract

C (PREPARATION & SUBMISSION OF RFP BID)

1. LANGUAGE OF RFP

1.1. The RFP responses (Bid) prepared by the Bidder, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and Bank and supporting documents and printed literature shall be in English.

1. COST OF BIDDING

1.1. The cost of RFP / Bid document as mentioned in the **Scheduled of Events**. .
1.2. The cost mentioned above should be paid through NEFT as mentioned in the Schedule of Events and copy of NEFT receipt/UTR Number to be submitted along with Bid Document. Bids received without the cost shall be summarily rejected. The cost is non-refundable.
1.3. In case, the RFP/Bid Document is downloaded from IDBI Bank's website www.idbibank.in, the cost as mentioned above should be paid along with the submission of the Bid. Bids received without the Cost shall be summarily rejected. The Cost is non-refundable.
1.4. The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Bank will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the Bidding process.

2. EARNEST MONEY DEPOSIT (EMD)

2.1. The Bidder shall furnish, as part of its Bid, an EMD as mentioned in the **Schedule of Events**.
2.1. The EMD is required to protect the Bank against the risk of Bidder's conduct, which would warrant the EMD's forfeiture. EMD may be forfeited in the event of withdrawal of bid during the period of bid validity or if a Bidder makes any statement or encloses any form which turns out to be false, incorrect and/or misleading at any time prior to signing of contract and/or conceals or suppresses material information; or if successful bidder fails to sign the contract in accordance with the terms & conditions and other requirements specified in RFP or any act of bidder not in line with contract obligations as mentioned in the Bid Documents; or In the event of any evasion, avoidance, refusal or delay on the part of the Successful Bidder to sign and execute the order/ purchase order/ service order or any document, as may be required by IDBI Bank in case the Bid is accepted.

2.2. If EMD is forfeited for any reason, the concerned bidder will be debarred from further participation in future RFPs floated by the Bank as per sole discretion of the Bank.

2.3. The EMD shall be deposited though NEFT denominated in Indian Rupees only.
2.4. Any bid not accompanied with the requisite EMD i.e. NEFT details shall be treated as nonresponsive and is liable to be rejected.

2.5. Any bid not accompanied with the requisite EMD shall be treated as nonresponsive and is liable to be rejected.

2.6. No interest is payable on the amount of EMD.

2.7. The EMD of the unsuccessful Bidders shall be returned after notification of award but not later than 30 (thirty) days after the conclusion of the contract.

2.8. The successful Bidder's EMD will be discharged upon the Bidder signing the contract and submitting the Security Deposit as mentioned in the **Schedule of Events**.

2.9. All the bidders are required to submit the EMD refund request in the format as per **Annexure - 9** given in the RFP.

2.10. Micro and Small Enterprises: Micro, & Small Enterprises (MSE) registered under the SPRS (Single Point Registration Scheme) of National Small Industrial Corporation (NSIC) or equivalent and having single point registration are exempt for payment of EMD to the extent of monetary limit stated in the registration certificate. The Bidder should submit the valid certified copy of NSIC or equivalent registration certificate/ renewal certification. Photocopy of application towards registration / renewal is not acceptable.

2.11. Any decision by IDBI Bank in this regard shall be final, conclusive and binding on the Bidder/s.

3. PERFORMANCE BANK GUARANTEE (PBG)

3.1. In addition to the Earnest Money Deposit mentioned in this tender notice, Bank has decided to obtain Security Deposit of 3**%** of the contract value in the form of Performance Bank Guarantee (PBG) Issued by a scheduled comdimercial bank (other than IDBI Bank Ltd) with a validity of 48 months (36 months contract period + 12 months claim period) from the date of issue of PBG and directly forwarded to the Bank.

3.2. The PBG will have to be renewed / resubmitted with fresh validity of 18 months (includes 12 months Supplementary Contract Period + 6 months claim period) before 6 months of the expiration of the PBG.

3.3. Previous PBG will be returned only when the renewed PBG is received by the Bank

3.4. The Security Deposit with the Bank shall be returned only after the successful completion of the period of contract & in case of any loss to the Bank due to non-compliance of the terms & condition as agreed between the parties; the SD shall be liable to be forfeited straight away.

3.5. The Successful Bidder shall furnish the performance bank guarantee within 15 days of the receipt of acceptance by Bank, as per the format at **Annexure - 15.**

3.6. The proceeds of the performance security shall be payable to Bank as compensation for any loss or damage resulting from the bidders failure to complete its obligations under and in accordance with the Contract.

3.7. Penalties, if any will be recovered from the SD. In case SD amount decreases from the initial deposit level due to penal deductions, etc., it shall be made up / replenished back to the initial amount deposited within 7 days of such penal deductions, etc. being affected.

3.8. Failure of the Successful Bidder to comply with the requirement of the Performance Bank Guarantee shall constitute sufficient grounds for the annulment of the award and forfeiture of the EMD, in which event the Bank may award the Contract to the next best evaluated Bidder or call for new Bids. Any decision in this regard by the Bank shall be final, conclusive and binding on the Bidder.

3.9. The incidental expenses of execution of the Contract as well as the conditions stipulated in the Contract shall be strictly adhered to and any breach / violation thereof shall entail termination of the Contract without prejudice to the other right of IDBI Bank including but not limited to the right to levy / impose and recover penalties as specified in this RFP document.

4. DOCUMENTS CONSTITUTING THE RFP

4.1. This RFP document provides overview of the requirements, bidding procedures and contract terms. It includes Invitation to Bid, Disclaimers, Instructions for Bidders **(Section - 1),** Terms & Conditions of Contract **(Section - 2),** Legal Terms **(Section -2)** and various annexure **(Section -3**). The bidder must conduct its own investigation and analysis regarding any information contained in this RFP document, its meaning and impact of that information.

4.2. The Bidder is expected to examine all instructions, forms, terms and specifications in this RFP and study the Bid Document carefully. Bid shall be deemed to have been submitted after careful study and examination of this RFP with full understanding of its implications. Each Bidder should, at its own costs without any right to claim reimbursement, conduct its own investigations, analysis and should check the accuracy, reliability and completeness of the information in this RFP and wherever felt necessary obtain independent advice. The Bid should be precise, complete and in the prescribed format as per the requirement of this RFP. Failure to furnish all information required by this RFP or submission of a Bid not responsive to this RFP in each and every respect shall be at the Bidder's own risk and may result in rejection of the Bid and for which the Bank shall not be held responsible. Any decision taken by IDBI Bank as to completeness of the Bid and/or rejection of any / all Bid(s) shall be final, conclusive and binding upon the Bidder(s) and shall not be question / challenged by the Bidder(s).

5. CLARIFICATION IN BID DOCUMENT

5.1. Any prospective Bidder requiring clarification of the Bid Document may notify Bank in format indicated at **Annexure - 12** Bank will respond to any request for clarification of the Bid Document received not later than the dates prescribed in schedule of events. Bank's response (including an explanation of the query but without identifying the source of inquiry) will be posted on Bank's website or / and through an email.

5.2. It may be noted that notice regarding corrigenda, addenda, amendments, time-extensions, clarifications, response to bidders' queries etc., if any to RFP, will not be published through any advertisement in newspapers or any other media. Prospective bidders shall have to regularly visit Bank's website to get updated on any changes / development in relation to this RFP.

6. GENERAL INSTRUCTIONS

6.1. Before bidding, the Bidders are requested to carefully examine the Bid Documents and the terms and conditions of the contract thereof, and if there appears to be any ambiguity, gap(s) and/or discrepancy between any of the Bid Documents they should forthwith refer the matter to Bank for necessary clarifications and / or confirmation.

6.2. The Bidder shall complete in all respects, form(s) annexed to the Bid Documents, quote the prices, furnish the information called for therein, and sign with date each of the documents in the relevant space provided therein for the purpose. The Bidder shall sign each page of the Bid Documents, Bank's response to Pre-bid queries and Corrigendum's, if any.

6.3. The Bid shall be properly signed by a person or persons duly authorized by the Bidder with signature duly attested. In the case of a body corporate, the Bid shall be signed by the duly authorized officers and supported by requisite internal corporate authorizations. The Bid submitted in case of a consortium shall be rejected without assigning any reason thereof.

6.4. The Bid shall contain the full name, address, telephone no.(mobile no and landline), and E-mail ID, if any, of Bidder for facilitating communications including notices to be given to the Bidder in connection with the Bid transaction and also to enable the Bids to be returned unopened in case it is declared "Late". No indications pertaining to price, financial or commercial terms are to be made on the envelopes.

6.5. The Bid should be a complete document and should be bound as a volume. The document should be printed on both sides with page numbers and with separation for chapters appropriately flagged and contain the list of contents with page numbers. The deficiency in documentation may result in the rejection of the Bid. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

6.6. The bid response, duly addressed to Deputy General Manager, Procurement Group, IT Department, IDBI Bank Limited must be accompanied by cost of Bid Document and EMD as specified in the Schedule of Events and must be through electronic mode through the e-Tendering Portal as mentioned in the schedule of Events on or before due date.

6.7. The Bid forms and the Documents attached to it shall not be detached or removed one from the other and no alteration(s) or mutilation(s) (other than filling in all the blank spaces) shall be made in any of the Bid Documents attached thereto. Any alterations or changes to the entries in the attached documents shall be requested by a separate covering letter, in the absence of which it shall be rejected. Any decision in this regard by the Bank shall be final, conclusive and binding on the Bidder.

6.8. The Bidder shall bear all costs for the preparation and submission of the Bid Documents. Bank shall not be responsible or liable for reimbursing/compensating these costs, regardless of the conduct or outcome of the bidding process.

6.9. The Bidder, irrespective of his/her participation in the bidding process, shall treat the details of the documents as secret and strictly confidential.

6.10. Bank reserves the right to adjust arithmetical or other errors in the bid, in the manner in which Bank considers appropriate or deems fit. Any adjustments so made by Bank shall be stated to the Bidder, if Bank makes an offer to accept his bid. The final decision as to any error manifest or otherwise shall be at the sole discretion of Bank and shall be final, conclusive and binding on the Bidder.

6.11. The Bidder is expected to examine and follow all instructions, forms, terms & conditions, and scope of work in the Bid Document. Failure to furnish complete information in all respects required by the Bid Document or submission of a bid not substantially responsive to the Bid Document in every respect will be at the Bidder's risk and may result in the rejection of the Bid by Bank. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

6.12. The Bidder shall prepare the Bid based on details provided in the Bid documents. It must be clearly understood that the quantities and specifications are intended to give the Bidder an idea about the order, type, scale and magnitude of the work and are not in any way exhaustive and guaranteed by Bank.

6.13. The Bid shall contain no interlineations, erasures or overwriting except as necessary to correct errors made by the Bidder, in which case such corrections shall be initialed by the authorized person or persons signing the Bid.

6.14. Bank reserves the sole right to itself for including any addendum to this entire bid process. The Bidders shall not claim as a right for requiring Bank to do the aforesaid.

6.15. The Technical Bid shall contain no financial / commercial details. Proposals with Technical Bid containing prices shall be rejected outright. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

6.16. No Bidder shall contact the Bank on any matter relating to its Bid, from the time of the Bid opening to the time the Contract is awarded to successful bidder(s).

6.17. **The Bidder shall not make any request for modifications/amendments in the prescribed formats of legal documents, whether annexed in the RFP documents or not.**

6.18. Any effort by a Bidder to influence Bank's Bid evaluation, Bid comparison or contract award decisions may result in the rejection of the Bid.

6.19. The Bid Documents may be downloaded from our website **www.idbibank.in (Notices and Tenders).**

6.20. The RFP bid document should be submitted through electronic mode through the e-Tendering Portal.

6.21. The amendments / clarifications to the tender, if any, will be posted on the IDBI Bank e-Tendering Portal.

7. BID FORM:

7.1. Bidder Qualification

7.1.1. The "Bidder" as used in the Bid Documents shall mean the one who has signed the Bid Form. The Bidder may be either the Principal Officer or his duly Authorized Representative, in which case he/she shall submit a certificate of authority. All certificates and documents (including any clarifications sought and any subsequent correspondences) received hereby, shall, as far as possible, be furnished and signed by the Authorized Representative and the Principal Officer.

7.1.2. It is further clarified that the individual signing the Bid or other documents in connection with the Bid must certify whether he/she signs as Constituted Attorney of the firm / company.

7.1.3. The Bidder shall sign the bid with the exact name of the firm / Company to whom the contract is to be issued. The Bid shall be duly signed and sealed by an executive officer of the Bidder's organization. Each bid shall be signed by a duly authorized officer.

7.1.4. The Bidder shall clearly indicate their legal constitution and the person signing the Bid shall state his capacity and also source of his ability to bind the bidder.

7.1.5. The power or authorization, or any other document consisting of adequate proof of the ability of the signatory to bind the Bidder shall be annexed to the Bid. Bank may reject outright any Bid not supported by adequate proof of the signatory's authority.

8. DEADLINE FOR SUBMISSION OF RFP BIDS

8.1. Bids must be submitted electronically via e-procurement portal, no later than the date & time specified in the "Schedule of Events" in Invitation to Bid.

8.2. In the event of the specified date for submission of bids being declared a holiday for the Bank, the bids will be received up to the appointed time on the next working day.

8.3. The Bank may, at its discretion, extend the deadline for submission of bids by amending the bid documents, in which case, all rights and obligations of the Bank and bidders previously subject to the deadline will thereafter be subject to the extended deadline.

8.4. Any Bid received after the deadline for submission of Bids prescribed will be rejected and returned unopened to the bidder.

9. MODIFICATION AND WITHDRAWAL OF BIDS

9.1. The Bidder may modify or withdraw its Bid after the Bid's submission, provided that written notice of the modification, including substitution or withdrawal of the Bids, is received by the Bank, prior to the deadline prescribed for submission of Bids. In such case withdrawal, EMD, if any, paid will be refunded to the Bidder.

9.2. No Bid may be modified after the deadline for submission of Bids.

9.3. No Bid may be withdrawn in the interval between the deadline for submission of Bids and the expiration of the period of Bid validity. Withdrawal of a Bid during this interval may result in the Bidder's forfeiture of its EMD.

10. PERIOD OF VALIDITY OF INDICATIVE BID PRICE:

10.1. Indicative Bids should be valid for 180 (One Hundred Eighty) days from the last date for submission. A Bid valid for a shorter period may be rejected by Bank as non-responsive. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

10.2. The Bank may, at its discretion, solicit the Bidders' consent to an extension of the period of validity. The request and the responses thereto shall be made in writing or email. However any extension of validity of bids will not entitle the bidder to revise/ modify the bid document. The EMD provided shall also be suitably extended. Any decision in this regard by Bank shall be final, conclusive and binding on the Bidder.

10.3. The Bank reserves the right to call for fresh quotes any time during the validity period, if considered necessary.

11. COMMISSIONING DOCUMENTATION:

11.1. Delivery of the software shall be made by the bidder as per the scope of work mentioned in this RFP / Bid Document.

11.2. The details of documents to be furnished by the Bidder are specified hereunder:

11.2.1. 3 (Three) copies of Bidder's invoice showing contract number, Services description, quantity, unit price and total amount.

11.2.2. Prior to preparing invoice copy and delivery challan before delivering the software/solutions/licenses, the bidder should check, verify and confirm the location address, user name, contact details with our purchase order. Bidder should ensure that proper delivery of software/solutions/licenses address, Name of end user, and contact details are mentioned on the invoice copy / delivery challan, so that the software/solutions/licenses's are delivered at the correct location & end user. If the software/solutions/licenses are delivered at a location different from the location they are actually to be delivered to, then it will be the sole responsibility of Successful Bidder to arrange delivery of the software/solutions/licenses at the locations they are meant for at no extra cost to the Bank. No extra payment will be made for wrong delivery or miss delivery of software/solutions/licenses/s.

11.2.3. Original Delivery note and acceptance certificate duly signed for receipt, installation and commissioning of software/solutions/licenses from the concerned location
11.2.4. Bidder's warranty certificate.
11.2.5. Inspection certificate issued by the nominated inspection agency, if any
11.2.6. Other documents which the Purchaser may specify to the Bidder.

11.3. The above documents shall be received by Purchaser before arrival of software/solutions/licenses (except where it is handed over to the consignee with all documents) and, if not received, the Bidder will be responsible for any consequent expenses and other liabilities arising there from.
11.4. Purchase order will be placed as and when branch location is identified and exact requirement has been finalized.

SECTION 2

1 DEFINITIONS:

In this RFP / Bid Document / Contract, the following terms shall have the following meanings and shall be interpreted accordingly:

1.2. "The Contract" means the agreement entered into between Purchaser and the Bidder as recorded in the contract form duly signed by the Parties, including all annexure, schedules, exhibits, supplements, appendices, amendments, revisions, notations and modifications thereof for **PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION** for IDBI Bank as inclusively stated under Service Level Expectations, Specifications of Software and Scope of work.

1.3. "Successful Bidder" or "Vendor" means any firm / company, etc., to whom work has been awarded and whose Bid has been accepted by Purchaser and shall include its authorized representatives, successors and permitted assignees.

1.4. "Purchaser" means IDBI Bank Limited including its successors and assigns.

1.5. "Contract Price" means the price/compensation payable to the Successful Bidder under and in accordance with the Contract for the due performance and observance of its contractual obligations under and in accordance with the Contract.

1.6. "Service(s)" means all the services, which the Bidder is required to provide and/or procure to the Purchaser under and in accordance with the Contract.

1.7. "Service Period" means the period of Contract Period commencing from the commissioning of the Product / Service /solution.

1.8. "System" or "Software/solutions/licenses" or "solution" means and includes hardware, software, etc., required for operationalizing the proposed solution and to provide the Services as mentioned in the RFP.

1.9. In case of a difference of opinion on the part of the Bidder in comprehending or interpreting any clause / provision of the Bid Document after submission of the Bid, the interpretation by Purchaser and decision of Purchaser in this behalf shall be final, conclusive and binding on the Bidder.

1.10. "Acceptance of Bid" means the letter/fax or any memorandum communicating to the Bidder the acceptance of its Bid and includes an advance acceptance of his Bid.

1.11. "Business Day" means neither any day that is not a Sunday nor a public holiday (as per the official holidays observed by Bank).

1.12. " Confidential Information" means all intellectual property information; technical or business information or material not covered; proprietary or internal information related to the current, future and proposed products or services of the Parties including, financial information, process/flow charts, business models, designs, drawings, data information related to products and services, procurement requirements, purchasing, customers, investors, employees, business and contractual relationships, business forecasts, business plans and strategies, information the Bank provide regarding third parties; information disclosed pursuant to RFP & other documents; documents, accounts, business plans, information or documents whatsoever, concerning business, policies, strategy, property, contracts, trade secrets, transactions, or interested parties of IDBI Bank or its Subsidiaries or Affiliates and/or any other information whether disclosed to the other Party in oral, graphic, written, electronic or machine readable form, and whether or not the information is expressly stated to be confidential or marked as such, all Trade Secrets and other proprietary information including but not limited to customer list, financial information, and pricing information.

1.13. "Commissioning" means, the System shall be considered to have been commissioned, when the entire job, including supply, configuration, successful testing of all hardware & software is executed to the satisfaction of the Purchaser.

1.14. "Document" means any embodiment of any text or image howsoever recorded and includes any data, text, images, sound, voice, codes, computer programs, software and / or databases or microfilm or computer generated microfiche or similar device.

1.15. "Effective Date" means the date on which this Contract is signed and executed by the Parties hereto. If this Contract is executed in parts, then the date on which the last of such Contracts is executed shall be construed to be the Effective Date.

1.16. "Intellectual Property Rights" means any patent, copyright, trademark, trade name, design, trade secret, permit, service marks, brands, propriety information, knowledge, technology, licenses, databases, computer programs, software, know how or other form of intellectual property right, title, benefits or interest whether arising before or after the execution of this Contract and the right to ownership and registration of these rights.

1.17. "Parties" means the Purchaser and the Bidder and "Party" means either of the Parties.

1.18. "Site" means the place where the product / service / solution is to be delivered and commissioned or places approved by the Purchaser for the purposes of the Contract together with any other places designated in the Contract as forming part of the Site.

2. INTERPRETATION:

In this Contract unless a contrary intention is evident:

2.1. The clause heading are for convenience only and do not form part of this Contract;

2.2. Unless otherwise specified a reference to a clause number is a reference to all of its sub-clauses;

2.3. Unless otherwise specified a reference to a clause, sub-clause or section is a reference to a clause, sub-clause or section of this Contract including any amendments or modifications to the same from time to time;

2.4. A word in the singular includes the plural and a word in the plural includes the singular;

2.5. A word importing a gender includes any other gender

2.6. A reference to a person includes a partnership and a body corporate;

2.7. A reference to legislation includes legislation repealing, replacing or amending that legislation;

2.8. Where a word or phrase is given a particular meaning it includes the appropriate grammatical forms of that word or phrase which have corresponding meanings;

2.9. Reasonability and materiality of "doubt" and "controversy" shall be at the discretion of IDBI Bank Ltd.

2.10. The words not expressly defined herein shall have meanings ascribed to them in the General Clauses Act, 1897 and the Information Technology Act, 2000.

3. CONDITIONS PRECEDENT

This Contract is subject to the fulfillment of the following conditions precedent by the Bidder

3.1. Furnishing of an unconditional and irrevocable Performance Bank Guarantee (Performance Security), as per the format given in **Annexure - 15**

3.2. Execution of a Deed of Indemnity as per format given in **Annexure - 17**

3.3. Obtaining of all statutory, regulatory and other approvals, consents and no-objections required for the performance of the Services under and in accordance with this Contract.

3.4. Furnishing solvency certificate and certificate confirming that there are no vigilance or court cases threatened or pending against the Bidder and that the vendor is not in violation of any law including Intellectual Property Rights.

3.5. Furnishing of such other documents as the Purchaser may specify, including but not limited to definitive documents.

4. STANDARD PERFORMANCE:

The Successful Bidder shall carry out its obligations under the Contract with due diligence, efficiency and economy, in accordance with generally accepted techniques and practices used in industry and with professional standards and shall observe sound management, technical practices. It shall employ appropriate advanced technology, procedures and methods. The Successful Bidder shall always act, in respect of any matter relating to the Contract, as faithful advisors to Bank and shall, at all times, support and safeguard Bank's legitimate interests in any dealing with third parties.

5. USE OF CONTRACT DOCUMENTS AND INFORMATION:

5.1. The Successful Bidder shall treat all documents, information, data and communication of and with Purchaser as privileged and confidential and shall be bound by the terms and conditions of the Non-Disclosure Agreement. The Successful Bidder shall execute this Non-Disclosure Agreement simultaneously at the time of execution of this Contract. The Successful Bidder shall not, without Purchaser's prior written consent, disclose the Contract, or any provision thereof, or any specification, plan, sample or information or data or drawings / designs furnished by or on behalf of Purchaser in connection therewith, to any person other than a person employed by the Bidder in the performance of the Contract. Disclosure to any such employed person shall be made in utmost confidence and shall extend only so far as may be necessary and relevant for purpose of such performance and shall be subject to the terms and conditions of the Non-Disclosure Agreement.

5.2. The Bidder shall not, without Purchaser's prior written consent, make use of any document, data or information etc., enumerated in this Bid Documents save and except for due performance and observance of the Contract.

5.3. Any document, other than the Contract itself, enumerated in this Bid Documents shall remain the property of Purchaser and shall be returned (in all copies) to Purchaser on completion of the Bidder's performance under and in accordance with the Contract, if so required by Purchaser.

5.4. The Bidder shall sign the Non-Disclosure Agreement as per format provided in **Annexure - 16**

6. INDEMNITY

6.1. The Bidder shall execute and furnish to the Purchaser, a deed of indemnity in favor of the Purchaser in a form and manner, as given in **Annexure - 17**, indemnifying the Purchaser its directors, employees, agents and representatives from and against any costs, loss, damages, expense, claims, litigations, suits, actions, judgments, and or otherwise including but not limited to those from third parties or liabilities of any kind howsoever suffered, arising out of or incurred

inter alia during and after the Contract period including but not limited to third-party claims due to infringement of Intellectual Property Rights including but not limited to patent, trademark, copy-rights or industrial drawings and designs arising from use of the Services or any part thereof and/or otherwise.

6.2. The provisions under this clause shall survive the termination of the Contract.

7. INTELLECTUAL PROPERTY RIGHTS & PATENT RIGHTS

7.1. Purchaser shall own and have a right in perpetuity to use all Intellectual Property Rights which have arisen out of or in connection with the implementation of this Contract, including all processes and Softwares which have been developed by the Bidder during the performance of Services and for the purposes of inter-alia use or sub-license of such Services under this Contract. The Bidder undertakes to disclose all Intellectual Property Rights arising out of or in connection with the performance of the Services to the Purchaser and execute all such agreements/documents and file all relevant applications, effect transfers and obtain all permits, approvals, consents and no objections that may be necessary in this regard to effectively transfer and conserve the Intellectual Property Rights of the Purchaser.

7.2. Further, the Bidder shall be obliged to ensure that all approvals, consents, no objections, registrations, licenses, permits and rights which are inter-alia necessary for use of the information technology system installed by the Bidder, shall be acquired in the name of the Purchaser, prior to termination of this Contract and which shall be assigned by the Purchaser if necessary under the applicable laws or otherwise to the /Bidder for the purpose of execution of any of its obligations under the terms of the Bid, or this Contract. However, subsequent to the term of this Contract, such approvals, consents, no objections, registrations, licenses, permits and rights etc., shall ensure to the exclusive benefit of the Purchaser.

7.3. The Bidder shall ensure that while it uses any software, hardware, processes or material in the course of performing the Services, it does not infringe the Intellectual Property Rights of any person and the Bidder shall keep the Purchaser indemnified against all costs, charges, expenses, liabilities, claims, damages, litigations, suits, judgments and/or otherwise howsoever, arising out of any illegal or unauthorized use (piracy) or in connection with any claim or proceedings relating to any breach or violation of any permission/license terms or infringement of any Intellectual Property Rights by the Bidder or any sub-Bidder during the course of performance of the Services.

7.4. In the event of any claim asserted by a third party of infringement of trademark, trade names, copyright, patent, intellectual property rights or industrial drawing/design rights arising from the use of the Products or any part thereof in India or anywhere, the Successful Bidder shall act expeditiously to extinguish such claim. If the Successful Bidder fails to comply and the Bank is required to pay compensation to a third party resulting from such infringement, the Successful Bidder shall be responsible for the compensation including all expenses, court costs and lawyer fees. The Bank will give notice to the Successful Bidder of such claim, if it is made, without delay.

8. INSPECTION & QUALITY CONTROL TESTS/CHECK

8.1. Purchaser's right to inspect, test and where necessary, reject the Software/solutions/licenses after delivered/ handed over to the Purchaser and shall in no way be limited or waived by reason of the Software/solutions/licenses having previously been inspected, tested, and passed by Purchaser or its representative prior to the delivery/ handing over of Software/solutions/licenses.

8.2. Nothing stated herein above shall in any way release or discharge the Bidder from any warranty or other obligations / liabilities under and in accordance with this Contract.

8.3. IDBI Bank reserves the right to evolve a procedure of quality checking to ensure that the Services are according to the prescribed specifications and standards.

9. MANUALS

9.1. The Bidder must along with the Software/solutions/licenses, supply all relevant manuals for the systems delivered / installed. The manuals shall be in English.

9.2. Unless and otherwise agreed, the Software/solutions/licenses shall not be considered to be completely delivered for the purpose of taking over, until such manuals as may be necessary are provided to Purchaser.

9.3. System manuals should include the specifications of the various Software/solutions/licenses supplied.

10. ACCEPTANCE CERTIFICATES

10.1. On successful completion of acceptability test, receipt of deliverables, etc, and after the Purchaser (which shall not be deemed to be an obligation on the Purchaser) is satisfied with the working of the Software/solutions/licenses, the Acceptance Certificate in the format given in **Annexure – 18**, The date on which such certificate is signed shall be deemed to be the date of successful commissioning of the Systems.

11. INCIDENTAL SERVICES:

The incidental services to be provided pursuant to and in accordance with the Contract are as under:

i. Performance of on-site commissioning of the System;
ii. Furnishing of services required for maintenance of the rendered Systems.
iii. Furnishing manuals for each appropriate unit of the rendered Systems

iv. Maintenance of the rendered software/solutions/licenses for the "Contract Period", provided that this software/solutions/licenses shall not relieve the Bidder of any warranty period obligations under and in accordance with this Contract; and
v. Any other related services as the Purchaser may require and deem fit.

12. CHANGE ORDERS / ALTERATION / VARIATIONS

12.1. The Bidder agrees that the requirements given in specifications, charts, etc. in the Bid Documents are minimum requirements of mere indicative nature and are in no way exhaustive. It shall be the responsibility of the Bidder to meet all the requirements of specifications, charts, etc. and other criteria contained in the Bid Documents and any upward revisions and/or additions of quantities, specifications sizes given in specifications, charts, etc., of the Bid Documents required to be made during execution of the works shall not constitute a change order and shall be carried out without a change order as forming part of the Services agreed hereunder and shall be carried out without any time and cost effect to Purchaser. Further upward revisions and or additions required to make Bidder's selected Software/solutions/licenses and installation procedures to meet Bid Documents requirements expressed and to make entire facilities safe, operable and as per specified codes and standards shall not constitute a change order and shall be carried out without any time and cost effect to Purchaser. Any upward revision and/or additions consequent to errors, omissions, ambiguities, discrepancies in the specification etc. of the Bid Documents which the Bidder had not brought out to the Purchaser's notice in his Bid shall not constitute a change order and such upward revisions and/or addition shall be carried out by Bidder without any time and cost effect to Purchaser.

12.2. Purchaser may at any time, by a written order given to the Bidder, make changes within the general scope of the Contract in any one or more of the following:

i. Functional specification
ii. The Services to be provided by the Bidder

12.3. If any such change causes an increase or decrease in the cost of, or the time required for the Bidder's performance or observance of any provisions under the Contract, an equitable adjustment shall be made in the Contract price or delivery schedule, or both, and the Contract shall accordingly be amended as may be decided by Purchaser. Any claims by the Bidder for adjustment under this clause must be asserted within 30 (Thirty) days from the date of knowledge of Purchaser's change order by the Bidder.

12.4. Change order as stated above comprising an alteration which involves change in the cost of the works (which sort of alteration is hereinafter called a "Variation") shall be the subject of an amendment to the Contract by way of an increase or decrease in the Contract Price and adjustment of the implementation schedule if any.

12.5. If the Contract provides applicable rates for the valuation of the variation in question, the Contract price shall be increased or decreased in accordance with those rates.

12.6. Any change order shall be duly approved by the Purchaser (including any modification / change in the Contract Price) in writing.

12.7. If there is a difference of opinion between the Bidder and Purchaser whether a particular work or part of the work constitutes a change order or not, the decision of the Purchaser shall be final, conclusive and binding on the Bidder.

13. CONTRACT AMENDMENT

13.1. No variation in or modification of the terms of the Contract shall be made, except by prior written amendment after obtaining prior written approval from both the Parties and shall be signed by the Parties. The Successful Bidder, however, agrees it shall be bound to amend the Contract, if so required by IDBI Bank, for giving effect to any amendment, modification etc. in the applicable laws including but not limited to amendment / modification etc. in the Reserve Bank of India Act, 1934 / the Banking Regulation Act, 1949 and / or to give effect to any modifications, amendments or fresh guidelines issued/imposed by RBI.

14. LIQUIDATED DAMAGES

14.1. If the Successful Bidder fails to meet the requirements under Service Level Agreement like delays / or defaults / deficiency of services in delivery / installation / replacement / repair of any or all of the Systems and Software/solutions/licenses' mentioned in the Purchase order (PO), Purchaser shall, without prejudice to its other rights and remedies under and in accordance with the Contract, deduct from the Contract price, as liquidated damages, not construed as penalty, a sum equivalent to 0.5% per week or part thereof of the value of P.O. subject to maximum deduction of 5% (five percent) of the P.O. value.

14.2. If the Bidder consistently fails to meet the requirements under Service Level Expectations (SLE) or complete the services as per the scheduled completion date or the extended date or if Bidder repudiates the Contract before completion of the contract / services, the Purchaser may without prejudice to any other right or remedy (i.e. penalties) available to the Purchaser as under the Contract, recover from the Bidder, liquidated damages over and above the penalties.

14.3. The Purchaser may without prejudice to its right to effect recovery by any other method, deduct the amount of liquidated damages from any money belonging to the Bidder in its hands (which includes the Purchaser's right to claim such amount against Bidder's performance Guarantee) or which may become due to the Bidder. Any such recovery or liquidated damages shall not in any way relieve the Bidder from any of its obligations to complete the works / Services or from any other obligations and liabilities under the Contract.

14.4. IDBI Bank reserves the right to impose / waive off the Liquidated Damages.

15. DEFICIENCY IN THE BIDDER'S PERFORMANCE

15.1. Delivery, Installation & Maintenance of the Software/solutions/licenses shall be made by the Successful Bidder strictly in accordance with the scope of work prescribed by the Bank. Time is of the essence of Contract.

15.2. If at any time during the performance of the Contract, the Successful Bidder encounters conditions / situations impeding adherence to the scope of work, the Successful Bidder shall promptly notify the Bank in writing of the fact of the delay, its likely duration and the cause(s) thereof. After receipt of the Successful Bidder's notice, the Bank shall at the earliest evaluate the condition / situation, and consider, extending the Successful Bidder's time for performance, with or without penalty, in which case, the extension shall be ratified by the Parties by written amendment of the Contract or through an email.

15.3. Except as provided in the above clause, a delay by the Successful Bidder in the performance of its delivery obligations shall render the Successful Bidder liable to the imposition of penalty, unless an extension of time is agreed upon without levying penalty.

15.4. A delay by the Successful Bidder in the performance of its Contract obligations shall render the Successful Bidder liable to any or all the following sanctions:

i. Forfeiture of its performance security
ii. Termination of the Contract for default

16. DISPUTE RESOLUTION

16.1. The Parties shall use their best efforts to amicably settle all disputes arising out of or in connection with this Contract in the following manner:

i. The Party raising the dispute shall address to the other Party a notice requesting an amicable settlement of the dispute within ten (10) days of receipt of the notice.
ii. The matter will be referred for negotiation between CGM (ITD) of the Purchaser and Mr._____ of the Vendor. The matter shall then be resolved by them and the agreed course of action documented within a further period of thirty (30) days.

16.2. The Parties agree that any dispute between the Parties, which cannot be settled by negotiation in the manner, described above, may be resolved exclusively by arbitration and such dispute may be submitted by either party to arbitration within thirty (30) days of the failure of negotiations. Arbitration shall be held in Mumbai, India and conducted in accordance with the provision of the Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment thereof. The matter will be referred to Sole Arbitrator mutually appointed by the Parties. The award passed by Sole Arbitrator shall be final and binding on both the parties.. The arbitration proceedings shall be conducted in the English language. Subject to the above, the courts of law at Mumbai alone shall have the jurisdiction in respect of all matters connected with the Contract. The arbitration award shall be final, conclusive and binding upon the Parties and judgment may be entered thereon, upon the application of either party to a court of competent jurisdiction. Each Party shall bear the cost of preparing and presenting its case, and the cost of arbitration, including fees and expenses of the arbitrators, shall be shared equally by the Parties unless the award otherwise provides.

16.3. The Vendor shall not be entitled to suspend the provision of the Services or the completion of the job, pending resolution of any disputes between the Parties and shall continue to render the Services in accordance with the provisions of the Contract notwithstanding the existence of any dispute between the Parties or the subsistence of any arbitration or other proceedings.

16.4. The provision under this section survives the contract.

17. ADDRESS FOR NOTICE

17.1. All notices, requests, consents, waivers or other communication required or permitted hereunder shall be in writing and shall be deemed properly served:

(i) if delivered by hand and received by an authorized employee or officer of the Party,

(ii) upon receipt of confirmation receipt when sent by facsimile; or

(iii) 14 (fourteen) days after the date of dispatch by certified or registered mail, postage prepaid, return receipt requested;

(iv) when sent by electronic mail. All notices and other communication shall be addressed as follows:

In the case of Purchaser	IDBI Bank Limited Unit No. 2, Ground Floor, Corporate Park, Chembur, Mumbai - 400071.
	Attn: Shri. ----------, DGM-ITD **Tel**: +91-22----------, **Email**: ----------
In the case of the Bidder	<…… company name & Address ….. > …….. ……..
	Attn: Shri _____ **Tel**: +91- _____**Fax**: +91-_____ **Email:** _____

17.2. A party may change its address and/or addressee for notification purposes at any time during the term hereof by giving the other Party written notice in accordance with the terms hereof and the date on which such change will become effective.

18. TAXES & DUTIES

18.1. The Successful Bidder will be entirely responsible for all applicable taxes, duties, levies, imposts, costs, charges, license fees, road permits etc., in connection with delivery &

transportation of software/solutions/licenses at the delivery locations including incidental services and commissioning. Payment of entry tax, if applicable, will be made at actual, on production of suitable evidence of payment by the Bidder.

18.2. Wherever the laws and regulations require deduction of such taxes at the source of payment, Purchaser shall effect such deductions from the payment due to the Bidder. The remittance of amounts so deducted and issuance of certificate for such deductions shall be made by Purchaser as per the laws and regulations in force. Nothing in the Contract shall relieve the Bidder from his responsibility to pay any tax that may be levied in India on income and profits made by the Bidder in respect of this Contract.

18.3. The Bidder shall be liable to pay all applicable corporate taxes and income tax that shall be levied according to the laws and regulations applicable from time to time in India and the price quoted in the Bid by the Bidder shall include all such taxes in the Contract Price.

18.4. The Bidder's staff, personnel and labor will be liable to pay personal income taxes in India in respect of such of their salaries and wages as are chargeable under the laws and regulations for the time being in force, and the Bidder shall perform such duties in regard to such deductions thereof as may be imposed on him by such laws and regulations.

18.5. The Bidder shall also be responsible for having his sub-Bidder(s) under this sub-contract(s) on account of payment received by the sub-Bidder(s) from the Bidder for works done under the sub-Bidder(s) for which Purchaser will in no case bear any responsibility. It shall be the responsibility of the Bidder to submit to the concerned Indian authorities the returns and all other connected documents required for this purpose. The Bidder shall also provide the Purchaser such information, as it may be required in regard to the Bidder's details of payment made by the Purchaser under the Contract for proper assessment of taxes and duties. The Bidder and his sub-Bidder(s) or their personnel shall bear all the taxes if any, levied on the Bidder's, sub-Bidder's and Bidder's personnel. The amount of tax withheld by the Purchaser shall at all times be in accordance with Indian Tax Law and the Purchaser shall promptly furnish to the Bidder original certificates (Challans) for tax deduction at source and paid to the Tax Authorities.

18.6. The Bidder agrees that he and his sub-Bidder(s) shall comply with the Income-tax Act in force from time to time and pay Income -tax, as may be imposed / levied on them by the Indian Income Tax Authorities, for the payments received by them for the works under the Contract.

18.7. The Bidder fail to submit returns/pay taxes in times as stipulated under the Income -tax Act and consequently any interest or penalty is imposed by the Income-tax authority, the Bidder shall indemnify Purchaser against any and all liabilities or claims arising out of this Contract for such taxes including interest and penalty any such Tax Authority may assess or levy against the Purchaser/ Bidder.

18.8. The Purchaser shall if so required by applicable laws in force, at the time of payment, deduct income tax payable by the Bidder at the rates in force, from the amount due to the Bidder and pay to the concerned tax authority directly.

19. SUCCESSFUL BIDDER INTEGRITY

The Successful Bidder is responsible for and obliged to conduct all contracted activities strictly in accordance with Contract using state-of-the-art methods and economic principles and exercising all means available to achieve the performance specified in the Contract.

20. SUCCESSFUL BIDDER OBLIGATION

20.1. The Successful Bidder is obliged to work closely with Purchaser's staff, act within its own authority and abide by directives / instructions issued by Purchaser from time to time. The Successful Bidder will abide by the job safety measures prevalent in India and will free / indemnify Purchaser from all demands or responsibilities arising from accidents or loss of life, the cause of which is the Bidder's negligence. The Successful Bidder will pay all indemnities arising there from and will not hold Purchaser responsible or obligated.

20.2. The Successful Bidder would be required adhere to the scope of work defined in the RFP / bid document to enable the Purchaser to meet the operational objectives. It will be the Successful Bidder's responsibility to ensure the proper and successful implementation and continued operation of the proposed branch / sites / hardware / software.

20.3. The Successful Bidder is responsible for managing the activities of its personnel and / or personnel working pursuant to its instructions and will hold itself responsible for any misdemeanors. The Successful Bidder will treat as confidential all data and information about Purchaser, obtained in the execution of his responsibilities, in strict confidence and will not reveal such information to any other party without the prior written approval of Purchaser.

21. SURVIVAL

21.1. Any provision of this Contract which, either expressly or by implication, survive the termination or expiration of this Contract, shall be complied with by the Parties including that of the provisions of indemnity, confidentiality, non-disclosure in the same manner as if the present Contract is valid and in force.

21.2. The provisions of the clauses of this Contract in relation to documents, data, processes, property, Intellectual Property Rights, indemnity, publicity and confidentiality and ownership survive the expiry or termination of this Contract and in relation to confidentiality, the obligations continue to apply unless the Purchaser notifies the Bidder of its release from those obligations.

22. NO SET-OFF, COUNTER-CLAIMS, CROSS-CLAIMS

22.1. In case the Bidder has any other business relationship with Purchaser, no right of set-off, counter-claim and cross-claim and or otherwise will be available under this Contract to the Bidder for any payments receivable under and in accordance with that business.

22.2. In case the Bidder has any claim, no right of set-off, counter-claim and cross-claim and or otherwise will be available under this Contract to the Bidder for any payments receivable under and in accordance with that business.

22.3. However, IDBI Bank shall have such rights against the successful Bidder up to maximum of 100% of the contact value.

23. THE TRI-PARTITE AGREEMENT

The Bidder shall enter into relevant agreement covering all related Parties at a later date, if required, incorporating the requisite terms and conditions herein in the form and manner and to the satisfaction of Purchaser.

24. ADHERENCE TO SAFETY PROCEDURES, RULES, REGULATIONS AND RESTRICTIONS

24.1. Bidder shall comply with the provision of all laws including labor and industrial laws, rules, regulations and notifications issued there under from time to time. All safety and labor and industrial laws enforced by statutory agencies and by Purchaser shall be applicable in the performance of this Contract and Bidder shall abide by these laws. The Bidder shall indemnify and keep indemnified and hold harmless the Purchaser for any loss, damage, claims, costs, charges, expenses, etc. arising out of and/or suffered on account of actions, litigations, proceedings, suits, arising out of breach of the above laws.

24.2. Bidder shall take all measures necessary or proper to protect the personnel, work and facilities and shall observe all reasonable safety rules and instructions.

24.3. The Bidder shall report as soon as possible any evidence, which may indicate or is likely to lead to an abnormal or dangerous situation and shall take all necessary emergency control steps to avoid such abnormal situations.

24.4. Bidder shall also adhere to all security requirement/regulations of the Purchaser during the execution of the work.

25. STATUTORY REQUIREMENTS

25.1. During the tenure of this Contract nothing shall be done by the Bidder in contravention of any law, act and/ or rules/regulations, there under or any amendment thereof governing inter-alia customs, foreign exchange, etc., and shall keep Purchaser indemnified in this regard.

25.2. Successful Bidder undertakes to promptly produce all records and information relating to the Contract/this RFP for the purpose of inspection and audit of IDBI Bank. Successful Bidder shall provide access, to officers / employees / representatives / agents or auditors of the Bank to the premises / places where such records are kept / maintained. The Bank shall not be duty bound to give any prior notice to Successful Bidder before carrying out the said inspection or audit.

25.3. The Successful Bidder agrees to allow officers of IDBI Bank to inspect and make copies at their own cost, of the records relating to the Services performed / delivered by the Successful Bidder, maintained by Successful Bidder pursuant to the Contract/this RFP.

25.4. In regards to the above, the Regulators and Government Authorities including RBI officials shall be entitled to conduct audits of the Successful Bidder at any point of time.

26. PURCHASER'S RIGHT OF INSPECTION AND PERIODIC AUDIT

26.1. The Purchaser reserves the right to inspect and monitor/assess the progress of the project at any time during the course of the Contract. The Purchaser may demand and upon such demand being made, the Purchaser shall be provided with any document, data, material or any other information, which it may require, to enable it to assess the progress of the project.

26.2. The Purchaser shall also have the right to conduct, either itself or through another agency as it may deem fit, an audit to monitor the performance by the Bidder of its obligations/functions in accordance with the standards committed to or required by the Purchaser and the Bidder undertakes to cooperate with and provide to the Purchaser/ any other agency appointed by the Purchaser, all documents and other details as may be required by them for this purpose. Any deviations or contravention identified as a result of such audit/assessment would need to be rectified by the Bidder failing which the Purchaser may, without prejudice to any other rights that it may have, issue a notice of default.

26.3. Purchaser's right to inspect, test and, where necessary, reject the Software/solutions/licenses after the delivered to the Purchaser and shall in no way be limited or waived by reason of the Software/solutions/licenses having previously been inspected, tested, and passed by Purchaser or its representative prior to its delivery.

26.4. It is expressly agreed that nothing stated herein above shall in any way release or discharge the Bidder from any warranty or other obligations / liabilities under and in accordance with this Contract.

27. CONTRACT PRICE

27.1. Prices payable to the bidder as stated in the Contract shall be firm and not subject to adjustment during performance of the Contract, irrespective of reasons whatsoever, including exchange rate fluctuations, changes in taxes, duties, levies, charges, etc.

27.2. The contract price will be valid for a period of **3 years** from the date of issue of LOI / First PO / Contract date whichever is earlier. The Bank with mutual consent may extend the contract price by further six month.

27.3. The Bidder will pass on to the Bank, all fiscal benefits arising out of reductions, if any, in Government levies viz. sales tax, excise duty, custom duty, etc. or the benefit of discounts if any announced in respect of the cost of the items for which orders have been placed during that period.

27.4. Further, Bank shall be entitled to make adjustment in the payment of Contract price in the event of levying penalty on the Bidder.

28. INFORMATION SECURITY

28.1. The Bidder and its personnel shall not carry any written material, layout, diagrams, floppy diskettes, hard disk, storage tapes or any other media out of Purchaser's premise without written permission from the Purchaser.

28.2. The Bidder personnel shall follow Purchaser's information security policy and instructions in this behalf.

28.3. Bidder acknowledges that Purchaser's business data and other Purchaser proprietary information or materials, whether developed by Purchaser or being used by Purchaser pursuant to a license agreement with a third party (the foregoing collectively referred to herein as "proprietary information") are confidential and proprietary to Purchaser; and Bidder agrees to use reasonable care to safeguard the proprietary information and to prevent the unauthorized use or disclosure thereof, which care shall not be less than that used by Bidder to protect its own proprietary information. Bidder recognizes that the goodwill of Purchaser depends, among other things, upon Bidder keeping such proprietary information confidential and that unauthorized disclosure of the same by Bidder could damage Purchaser. By reason of Bidder's duties and obligations hereunder, Bidder may come into possession of such proprietary information, even though Bidder does not take any direct part in or furnish the Services performed for the creation of said proprietary information and shall limit access thereto to employees with a need to such access to perform the Services required by this Contract. Bidder shall use such information only for the purpose of performing the Services.

28.4. Bidder shall, upon termination of this Contract for any reason, or upon demand by Purchaser, whichever is earliest, return any and all information provided to Bidder by Purchaser, including any copies or reproductions, both hardcopy and electronic.

28.5. Bidder shall provide certificate/assurance from application providers/OEMs that the application is free from embedded malicious / fraudulent code."

28.6. The Bidder shall ensure that the software/solutions/licenses / application / software being supplied shall be free from malicious code (Viruses, Trojan, Spyware etc.) and shall be liable for any loss (information, data, software/solutions/licenses, theft of Intellectual Property

Rights, network breach, sabotage etc.) incurred to the bank arising due to activation of any such embedded malware / malicious code. The Bidder shall further supply a certificate to the bank in the form Appended herewith.

28.7. The bidder shall ensure that subsequent patch, hotfixes and upgrades are also free from malicious code.

28.8. The bidder shall abide to the Information Security Policy (ISP) and Cyber Security Policy (CSP) of the Bank (as amended from time to time), which will be shared by the Bank with the L1 Bidder on need to know basis. The L1 Bidder shall ensure that the software/solutions/licenses/application/software supplied under the RFP shall be complacent with the ISP and CSP at all times.

28.9. The bidder shall submit the background verification and provide the training on information security awareness for their employees, in the case of deputing them to work in our Bank premises.

28.10. The bidder shall make sure that the sensitive data (such as password, financial information, biometric information, personal information etc.) shared by the Bank should be kept within the geographical boundaries of India. The Bidder shall further supply a certificate to the bank in the form Appended in **Annexure - 10**.

29. OWNERSHIP AND RETENTION OF DOCUMENTS

29.1. The Purchaser shall own the documents, prepared by or for the Bidder arising out of or in connection with this Contract.

29.2. Forthwith upon expiry or earlier termination of this Contract and at any other time on demand by the Purchaser, the Bidder shall deliver to the Purchaser all documents provided by or originating from the Purchaser and all documents produced by or from or for the Bidder in the course of performing the Services, unless otherwise directed in writing by the Purchaser at no additional cost. The Bidder shall not, without the prior written consent of the Purchaser store, copy, distribute or retain any such Documents.

30. DATA AND HARDWARE

By virtue of this Contract, the Bidder's team may have access to personal and business information of the Purchaser and/or a third party or any taxpayer, any other person covered within the ambit of any Income tax legislation. The Purchaser have the sole ownership of and the right to use, all such data in perpetuity including any data or other information pertaining to the subscriber that may be in the possession of the Bidder or Bidder's team in the course of performing the Services under this Contract.

31. REPRESENTATIONS AND WARRANTS

In order to induce the Purchaser to enter into this Contract, the Bidder hereby represents and warrants as of the date hereof, which representations and warranties shall survive the term and termination hereof, the following:

31.1. That the selected Bidder is a company which has the requisite qualifications, skills, experience and expertise in providing Information and Communication Technology (ICT) and other services contemplated hereunder to third Parties, the technical know-how and the financial wherewithal, the power and the authority that would be required to successfully set up the required infrastructure and to enter into this Contract and provide the Services/Systems sought by the Purchaser, under and in accordance with this Contract.

31.2. That the Bidder is not involved in any major litigation, potential, threatened and existing, that may have an impact of affecting or compromising the performance and delivery of Services /Systems under the Contract.

31.3. That the representations made by the Bidder in its Bid are and shall continue to remain true and fulfill all the requirements as are necessary for executing the duties, obligations and responsibilities as laid down in the Contract and the Bid Documents and unless the Purchaser specifies to the contrary, the Bidder shall be bound by all the terms of the Bid.

31.4. That the Bidder has the professional skills, personnel and resources/authorizations that are necessary for providing all such services as are necessary to perform its obligations under the Bid and this Contract.

31.5. That the Bidder shall ensure that all assets including but not limited to software/solutions/licenses, licenses, etc. developed, procured, deployed and created during the term of this Contract are duly maintained and suitably updated, upgraded, replaced with regard to contemporary requirements.

31.6. That the Bidder shall use such assets of the Purchaser as the Purchaser may permit for the sole purpose of execution of its obligations under the terms of the Bid, Tender or this Contract. The Bidder shall however, have no claim to any right, title, lien or other interest in any such property, and any possession of property for any duration whatsoever shall not create any right in equity or otherwise, merely by fact of such use or possession during or after the term hereof.

31.7. That the Bidder shall procure insurance policies for all its present and future property and assets that are developed, procured and created during the term of this Contract with financially sound and reputable insurers to the satisfaction of the Purchaser and shall pay all premium in relation thereto and shall ensure that nothing is done to make such insurance policies void or voidable. The Bidder shall also furnish to the Purchaser a certificate evidencing such insurance, risks covered, names of beneficiaries, expiration dates, names of

insurers and all other features of the insurance policy, both original and renewed and shall keep the same alive during the term of this Contract.

31.8. That the Bidder shall procure all the necessary permissions and adequate approvals and licenses for use of various software and any copyrighted process/product free from all claims, titles, interests and liens thereon and shall keep the Purchaser indemnified in relation thereto.

31.9. That all the representations and warranties as have been made by the Bidder with respect to its Bid and Contract, are true and correct, and shall continue to remain true and correct through the term of this Contract.

31.10. That the execution of the Services herein is and shall be in accordance and in compliance with all applicable laws

31.11. That there are – (a) no legal proceedings pending or threatened against Bidder or any sub Bidder/third party or its team which adversely affect/may affect performance under this Contract; and (b) no inquiries or investigations have been threatened, commenced or pending against Bidder or any sub-Bidder / third part or its team members by any statutory or regulatory or investigative agencies.

31.12. That the Bidder has the corporate power to execute, deliver and perform the terms and provisions of this Contract and has taken all necessary corporate action to authorize the execution, delivery and performance by it of the Contract.

31.13. That all conditions precedent under the Contract has been complied.

31.14. That neither the execution and delivery by the Bidder of the Contract nor the Bidder's compliance with or performance of the terms and provisions of the Contract (i) will contravene any provision of any applicable law or any order, writ, injunction or decree of any court or governmental authority binding on the Bidder, (ii) will conflict or be inconsistent with or result in any breach of any or the terms, covenants, conditions or provisions of, or constitute a default under any agreement, contract or instrument to which the Bidder is a Party or by which it or any of its property or assets is bound or to which it may be subject or (iii) will violate any provision of the Memorandum and Articles of Association of the Bidder or other constitution a documents as the case maybe.

31.15. That the Bidder certifies that all registrations, recordings, filings and notarizations of the Contract and all payments of any tax or duty, including without limitation stamp duty, registration charges or similar amounts which are required to be effected or made by the Bidder which is necessary to ensure the legality, validity, enforceability or admissibility in evidence of the Contract have been made.

31.16. That the Bidder confirms that there has not and shall not occur any execution, amendment or modification of any agreement/contract without the prior written consent of the Purchaser, which may directly or indirectly have a bearing on the Contract or the project.

31.17. That the Bidder owns or has good, legal or beneficial title, or other interest in, to the property, assets and revenues of the Bidder on which it grants or purports to grant or create any interest pursuant to the Contract, in each case free and clear of any encumbrance and further confirms that such interests created or expressed to be created are valid and enforceable.

31.18. That the Bidder owns, has license to use or otherwise has the right to use, free of any pending or threatened liens or other security or other interests all Intellectual Property Rights, which are required or desirable for the project and the Bidder does not, in carrying on its business and operations, infringe any Intellectual Property Rights of any person. None of the Intellectual Property or Intellectual Property Rights owned or enjoyed by the Bidder or which the Bidder is licensed to use, which are material in the context of the Bidder's business and operations are being infringed nor, so far as the Bidder is aware, is there any infringement or threatened infringement of those Intellectual Property or Intellectual Property Rights licensed or provided to the Bidder by any person. All Intellectual Property Rights (owned by the Bidder or which the Bidder is licensed to use) are valid and subsisting. All actions (including registration, payment of all registration and renewal fees) required to maintain the same in full force and effect have been taken thereon and shall keep the Purchaser indemnified in relation thereto.

32. CONFIDENTIALITY

32.1. The Parties agree that they shall hold in trust any Confidential Information received by either Party, under this Contract, and the strictest of confidence shall be maintained in respect of such Confidential Information. The Parties also agree:

32.1.1.to maintain and use the Confidential Information only for the purposes of this Contract and only as permitted herein;
32.1.2.to only make copies as specifically authorized by the prior written consent of the other party and with the same confidential or proprietary notices as may be printed or displayed on the original;

32.1.3.to restrict access and disclosure of Confidential Information to such of their employees, agents, vendors, and Bidders strictly on a "need to know" basis, to maintain confidentiality of the Confidential Information disclosed to them in accordance with this Clause and

32.1.4. to treat Confidential Information as confidential for a period of five (5) years from the date of receipt. In the event of earlier termination of this Contract, the Parties hereby agree to maintain the confidentiality of the Confidential Information for a further period of [two (2)] years from the date of such termination.

32.2. Confidential Information in oral form must be identified as confidential at the time of disclosure and confirmed as such in writing within 30 days of such disclosure. Confidential Information does not include information which:

32.2.1. the recipient knew or had in its possession, prior to disclosure, without limitation on its confidentiality;

32.2.2. is independently developed by the recipient without breach of this Contract;

32.2.3. information in the public domain as a matter of law;

32.2.4. is received from a third party not subject to the obligation of confidentiality with respect to such information;

32.2.5. is released from confidentiality with the written consent of the other party.

32.3. The recipient shall have the burden of proving that Clauses (32.2.1.) or (32.2.2.) above are applicable to the information in the possession of the recipient.

32.4. Notwithstanding the foregoing, the Parties acknowledge that the nature of the services to be performed under this Contract may require the Bidder's personnel to be present on premises of the Purchaser or may require the Bidder's personnel to have access to computer networks and databases of the Purchaser while on or off premises of the Purchaser. It is understood that it would be impractical for the Purchaser to monitor all information made available to the Bidder under such circumstances and to provide notice to the Bidder of the confidentiality of all such information. Therefore, the Bidder agrees that any technical or business or other information of the Purchaser that the Bidder's personnel, sub-Bidders, or agents acquire while on the Purchaser premises, or through access to the Purchaser computer systems or databases while on or off the Purchaser premises, shall be deemed Confidential Information.

32.5. Confidential Information shall at all times remain the sole and exclusive property of the disclosing Party. Upon termination of this Contract, Confidential Information shall be returned to the disclosing Party or destroyed, if incapable of return. The destruction shall be witnessed and so recorded, in writing, by an authorized representative of each of the Parties. Nothing contained herein shall in any manner impair rights of the Purchaser in respect of the Systems, Services, and Documents etc.

32.6. In the event that any of the Parties hereto becomes legally compelled to disclose any Confidential Information, such Party shall give sufficient notice to the other Party to enable the other Party to prevent or minimize to the extent possible, such disclosure. Neither party shall disclose to a third party any Confidential Information or the contents of this Contract without the prior written consent of the other Party. The obligations of this Clause shall be satisfied by handling Confidential Information with the same degree of care, which the receiving Party applies to its own similar confidential information but in no event less than reasonable care. The obligations of this Clause shall survive the expiration, cancellation or termination of this Contract.

32.7. The provision of this clause shall survive termination of the Contract till such Confidential Information enters public domain.

33. TERM AND EXTENSION OF THE CONTRACT

33.1. The term of the Contract shall be for a period of 3 Years from the date of acceptance of the LOI / First Purchase Order (PO) / Contract date whichever is earlier.

33.2. The contract may be extended by six months which affects the extension of overall contract by six months.

33.3. The Purchaser shall reserve the sole right to grant any extension to the term above mentioned and shall notify in writing / email to the Bidder, at least 3 (three) months before the expiration of the term hereof, whether it will grant the Bidder an extension of the term. The decision to grant or refuse the extension shall be at the discretion of Bank.

34. CONFLICT OF INTEREST

34.1. Bidder shall not have a conflict of interest (the "Conflict of Interest") that affects the Bidding Process. Any Bidder found to have a Conflict of Interest shall be disqualified. In the event of disqualification. The Bank shall be entitled to forfeit and appropriate the Bid Security and/or Performance Security (Performance Bank Guarantee), as the case may be, as mutually agreed upon genuine estimated loss and damage likely to be suffered and incurred by the Bank and not by way of penalty for, inter alia, the time, cost and effort of the Bank, including consideration of such Bidder's proposal (the "Damages"), without prejudice to any other right or remedy that may be available to the Bank under the Bidding Documents and/ or the Concession Agreement or otherwise. Without limiting the generality of the above, a Bidder shall be deemed to have a Conflict of Interest affecting the Bidding Process, if:

34.1.1. the Bidder, its Member or Associate (or any constituent thereof) and any other Bidder, its Member or any Associate thereof (or any constituent thereof) have common controlling shareholders or other ownership interest; provided that this disqualification shall not apply in cases where the direct or indirect shareholding of a Bidder, its Member or an Associate thereof (or any shareholder thereof having a shareholding of more than 5% (five per cent) of the paid up and subscribed share capital of such Bidder, Member or Associate, as the case may be) in the other Bidder, its Member or Associate, has less than 5% (five per cent) of the subscribed and paid up equity share capital thereof; provided further that this disqualification shall not apply to any ownership by a bank, insurance company, pension fund or a public financial institution referred to in section 4A of the Companies Act, 1956. For the purposes of this Clause, indirect shareholding held through one or more intermediate persons shall be computed as follows:

i. where any intermediary is controlled by a person through management control or otherwise, the entire shareholding held by such controlled intermediary in any other person (the "Subject Person") shall be taken into account for computing the shareholding of such controlling person in the Subject Person; and

ii. subject always to sub-clause (i) above, where a person does not exercise control over an intermediary, which has shareholding in the Subject Person, the

computation of indirect shareholding of such person in the Subject Person shall be undertaken on a proportionate basis; provided, however, that no such shareholding shall be reckoned under this sub-clause if the shareholding of such person in the intermediary is less than 26% of the subscribed and paid up equity shareholding of such intermediary; or

34.1.2. A constituent of such Bidder is also a constituent of another Bidder; or

34.1.3. Such Bidder, its Member or any Associate thereof receives or has received any direct or indirect subsidy, grant, concessional loan or subordinated debt from any other Bidder, its Member or Associate, or has provided any such subsidy, grant, concessional loan or subordinated debt to any other Bidder, its Member or any Associate thereof; or

34.1.4. Such Bidder has the same legal representative for purposes of this Bid as any other Bidder; or

34.1.5. Such Bidder, or any Associate thereof, has a relationship with another Bidder, or any Associate thereof, directly or through common third party/ parties, that puts either or both of them in a position to have access to each others' information about, or to influence the Bid of either or each other; or

34.1.6. Such Bidder or any Associate thereof has participated as a consultant to the Bank in the preparation of any documents, design or technical specifications of the Project.

35. FRAUD & CORRUPT PRACTICES

35.1. The Bidder and their respective officers, employees, agents and advisers shall observe the highest standard of ethics during the Bidding Process. Notwithstanding anything to the contrary contained herein, the Bank shall reject an Application without being liable in any manner whatsoever to the Bidder if it determines that the Bidder has, directly or indirectly or through an agent, engaged in corrupt/fraudulent/coercive/undesirable or restrictive practices in the Bidding Process.

35.2. Without prejudice to the rights of the Bank, if a Bidder is found by the Bank to have directly or indirectly or through an agent, engaged or indulged in any corrupt / fraudulent / coercive / undesirable or restrictive practices during the Bidding Process, such Bidder shall not be eligible to participate in any RFP issued by the Bank during a period of 2 (two) years from the date if such Bidder is found by the Bank to have directly or indirectly or through an agent, engaged or indulged in any corrupt/ fraudulent/ coercive/ undesirable or restrictive practices, as the case may be.

35.3. For the purposes of this Clause, the following terms shall have the meaning hereinafter, respectively assigned to them:

i. "**corrupt practice**" means (i) the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence the actions of any person connected with

the Bidding Process (for avoidance of doubt, offering of employment to or employing or engaging in any manner whatsoever, directly or indirectly, any official of the Bank who is or has been associated in any manner, directly or indirectly with the Bidding Process or the Letter of Authority or has dealt with matters concerning the Concession Agreement or arising there from, before or after the execution thereof, at any time prior to the expiry of one year from the date such official resigns or retires from or otherwise ceases to be in the service of the Bank, shall be deemed to constitute influencing the actions of a person connected with the Bidding Process); or (ii) engaging in any manner whatsoever, whether during the Bidding Process or after the issue of the Letter of Authority or after the execution of the Agreement, as the case may be, any person in respect of any matter relating to the Project or the Letter of Authority or the Agreement, who at any time has been or is a legal, financial or technical adviser of the Bank in relation to any matter concerning the Project;

ii. **"Fraudulent practice"** means a misrepresentation or omission of facts or suppression of facts or disclosure of incomplete facts, in order to influence the Bidding Process;

iii. **"Coercive practice"** means impairing or harming or threatening to impair or harm, directly or indirectly, any person or property to influence any person's participation or action in the Bidding Process;

iv. **"Undesirable practice"** means (i) establishing contact with any person connected with or employed or engaged by the Bank with the objective of canvassing, lobbying or in any manner influencing or attempting to influence the Bidding Process; or (ii) having a Conflict of Interest; and

v. "Restrictive practice" means forming a cartel or arriving at any understanding or arrangement among Bidders with the objective of restricting or manipulating a full and fair competition in the Bidding Process.

36. TERMINATION

36.1. The Purchaser may, terminate this Contract by giving the Bidder a prior and written 30 (thirty) days' notice indicating its intention to terminate the Contract under the following circumstances:

i. Where it comes to the Purchaser's attention that the Bidder (or the Bidder's team) is in a position of actual conflict of interest with the interests of the Purchaser, in relation to any of terms of the Bidder's Bid or this Contract.

ii. Where the Bidder's ability to survive as an independent corporate entity is threatened or is lost owing to any reason whatsoever, including inter-alia the filing of any bankruptcy proceedings against the Bidder, any failure by the Bidder to pay any of its dues to its creditors, the institution of any winding up proceedings against the Bidder or the happening of any such events that are adverse to the commercial viability of the

Bidder. In the event of the happening of any events of the above nature, the Purchaser shall reserve the right to take any steps as are necessary, to ensure the effective transition of the project to a successor Bidder, and to ensure business continuity.

a. **Termination for Insolvency**: The Purchaser may at any time terminate the Contract by giving written notice of 30 (thirty) days to the Bidder, without compensation to the Bidder, if the Bidder becomes bankrupt or otherwise insolvent, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the Purchaser.

b. **Termination for Default**: The Purchaser, without prejudice to any other right or remedy for breach of Contract, by a written notice of default sent to the Successful Bidder / Vendor, may terminate the Contract in whole or in part.

c. **Termination for Convenience**: Notwithstanding the provisions of the Contract and/or the Bid Documents, the Purchaser at its sole discretion and without prejudice to any other right or remedy and without assigning any reasons, by written 30 days' notice sent to the Bidder, may terminate the Contract, in whole or in part, at any time for its convenience. The notice of termination shall specify that termination is for Purchaser's convenience, the extent to which performance of the Bidder under and in accordance with the Contract is terminated, and the date upon which such termination becomes effective.

36.2. The payments will be made for all services rendered up to the date the termination becomes effective, at the contracted terms and prices.

37. CONSEQUENCE OF TERMINATION

37.1. In the event of termination of this Contract due to any cause whatsoever, [whether consequent to the stipulated term of the Contract or otherwise] the Purchaser shall be entitled to impose any such obligations and conditions and issue any clarifications as may be necessary to ensure an efficient transition and effective business continuity of the project which the Bidder shall be obliged to comply with and take all available steps to minimize loss resulting from that termination/breach, and further allow the successor Bidder to take over the obligations of the erstwhile Bidder in relation to the execution/continued execution of the scope of this Contract.

37.2. In the event that the termination of this Contract is due to the expiry of the term of this Contract / a decision not to grant any (further) extension by the Purchaser, the Bidder herein shall be obliged to provide all such assistance to the successor Bidder or any other person as may be required and as the Purchaser may specify including training, where the successor(s) is a representative/personnel of the Purchaser to enable the successor to adequately provide the Services hereunder, even where such assistance is required to be rendered for a reasonable period that may extend beyond the term/earlier termination hereof.

37.3. Where the termination of the Contract is prior to its stipulated term on account of a default on the part of the Bidder or due to the fact that the survival of the Bidder as an independent

corporate entity is threatened/has ceased, the Purchaser shall pay the Bidder for that part of the software/solutions/licenses procured which have been authorized by the Purchaser and satisfactorily performed by the Bidder up to the date of termination, without prejudice any other rights, the Purchaser may retain such amounts from the payment due and payable by the Purchaser to the Bidder as may be required to offset any direct losses caused to the Purchaser as a result of any act/omissions of the Bidder. In case of any loss or damage due to default on the part of the Bidder in performing any of its obligations with regard to executing the scope of work under this Contract [as laid down in the Service Specifications,] the Bidder shall compensate the Purchaser for any such loss, damages or other costs, incurred by the Purchaser. Additionally, the sub Bidder / other members of its team shall continue to perform all its obligations and responsibilities under this Contract in an identical manner as were being performed hitherto before in order to execute an effective transition and to maintain business continuity.

37.4. In case of the Bidder abandoning the Project after selection of successful bidder or awarding contract, due to any reason/s, the Bidder shall be liable to compensate the Purchaser with total cost to be incurred for re-selection of next bidder along with cost incurred by the Purchaser for interim continuity of services, in addition to the forfeiture of security deposit or invocation of Bank Guarantee.

37.5. All third Parties shall continue to perform all/any functions as stipulated by the Purchaser and as may be proper and necessary to execute the Services under the Contract in terms of the Bidder's Bid and this Contract.

37.6. Nothing herein shall restrict the right of the Purchaser to invoke the bank guarantee and other guarantees, securities furnished, enforce the Deed of Indemnity and pursue such other rights and/or remedies that may be available to the Purchaser under law or otherwise.

37.7. The termination hereof shall not affect any accrued right or liability of either Party nor affect the operation of the provisions of this Contract that are expressly or by implication intended to come into or continue in force on or after such termination.

37.8. Termination survives the Contract.

37.9. Any deficiency / interruption in performing the obligation by the Successful Bidder will result in imposition of liquidated damages as specified in RFP.

38.8. In the event of termination of this Contract for any reason whatsoever, IDBI Bank shall have the right and it may publicize such termination to caution the customers/public from dealing with the Successful Bidder. Any termination of the contract by the Bank shall be accompanied by a de-facto blacklisting of the successful bidder and revocation of Performance Bank Guarantee unless specifically clarified by the Bank.

38. **Bank Guarantee submitted by the Bidder:** In case, the amount of Performance Bank Guarantee is not sufficient to meet the recoverable amount, then the Bank shall recover the same through arbitration/other options available to the Bank.

39. PUBLICITY

The Bidder is not permitted to make any public announcement or media release about any aspect of this Contract unless the Purchaser first gives the Bidder its written consent.

40. NO ASSIGNMENT

The Contract cannot be transferred or assigned by the Bidder without the prior written approval of the Purchaser.

41. RELATIONSHIP BETWEEN THE PARTIES

41.1. Nothing in this Contract constitutes any fiduciary relationship between the Purchaser and Bidder/Bidder's Team or any relationship of employer - employee, principal and agent, or partnership, between the Purchaser and Bidder.

41.2. No Party has any authority to bind the other Party in any manner whatsoever except as agreed under the terms of this Contract.

41.3. The Purchaser has no obligation to the Bidder's team except as agreed under the terms of this Contract.

42. ENTIRE CONTRACT

42.1. The terms and conditions laid down in the Bid and all its Annexures, Corrigenda, Addenda thereto as also the Bid document and any attachments / annexes thereto shall be read in consonance with and form an integral part of this Contract. This Contract supersedes any prior contract, understanding or representation of the Parties on the subject matter.

43. JURISDICTION OF COURT

The Contract shall be interpreted in accordance with the laws of the Union of India and shall be subject to the exclusive jurisdiction of courts at Mumbai to determine any proceeding in relation to this Contract. These provisions shall survive the Contract.

44. "NO CLAIM" CERTIFICATE

44.1. The Bidder shall not be entitled to make any claim, whatsoever against the Purchaser, under or by virtue of or arising out of, this Contract, nor shall the Purchaser entertain or consider any such claim, if made by the Bidder after he shall have signed a "No claim" certificate in favor of the Purchaser in such forms as shall be required by the Purchaser after the works, Services/Systems are finally accepted.

44.2. In case the Bidder has any other business relationship with the Purchaser, no right of set-off, counter-claim and cross-claim and or otherwise will be available under this Contract to the Bidder for any payments receivable under and in accordance with that business.

45. COMPLETION OF CONTRACT

Unless terminated earlier, the Contract shall terminate on the successful completion of the Service Period as specified in the Contract.

46. PENALTY

The penalties for any non-compliance under the RFP / Bid Documents and the Contract are defined under Section -1A.9

47. INSURANCE

47.1. The Bidder shall:

i. take out and maintain at their own cost but on terms and conditions approved by Purchaser, insurance against the risks, and for the coverage, as shall be specified below.

ii. at the Purchaser's request, provide evidence to the Purchaser showing that such insurance has been taken out and maintained and that the current premiums therefore have been paid.

47.2. Third party motor vehicle liability insurance as required under Motor Vehicles Act, 1988 in respect of motor vehicles operated in India by the Bidder or their personnel for the period of the Contract.

47.3. Third party liability insurance with a sufficient coverage for the period of the Contract.

47.4. Professional liability insurance, with a minimum coverage equal to estimated remuneration and reimbursable.

47.5. Employer's liability and workers' compensation insurance in respect of the personnel of the Bidder, in accordance with the relevant provisions of the applicable law, as well as, with respect to such personnel, any such life, health, accident, travel or other insurance as may be appropriate; and

47.6. Insurance against loss of or damage to (i) software/solutions/licenses(s) purchased in whole or in part with funds provided under this Contract or otherwise, (ii) the Bidder's property used in the performance of the Services, and (iii) any documents prepared by the Bidder in the performance of the Services.

47.7. The Bidder shall not use these documents for purposes unrelated to this Contract without the prior written approval of the Purchaser.

47.8. All obligations of the Bidder under the Contract / Bid Documents survive the Contract / Bid Documents, subject to the provisions stipulated therein.

47.9. Appropriate insurance to cover the System(s) for the transit period till the time of its delivery, installation / testing and acceptance by the Purchaser at the respective site is to be taken by the Bidder.

48. LIMITATION OF LIABILITY

48.1. The Parties acknowledge that circumstances may arise where on account of a breach by Successful Bidder of the terms of this RFP and subsequent Agreement, or other contractual or tortuous claim, the Bank may be entitled to damages from Successful Bidder. Successful Bidder's aggregate liability shall be subject to an overall limit of the Total Contract price during the execution of the Project (Service period).

48.2. The limits specified in Sub-Clause (48.1) above shall not apply to:

i. claims made by the Bank for claims relating to the loss of or damage to real property and tangible personal property and for bodily injury or death which is caused by sole gross negligence or sole willful misconduct of the Bidder or its employees;

ii. claims against the Bank resulting from misconduct, fraud or negligence of the Bidder, its employees and subcontractors or from infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations;.

48.3. The Bank shall not be held liable for and is absolved of any responsibility or claim / litigation arising out of the use of any third party software or modules supplied by the Bidder as part of this RFP. The Bank may be entitled to damages from Bidder on account of this. In no event shall the Bank be liable for any indirect, incidental or consequential damages or liability, under or in connection with or arising out of this RFP and subsequent agreement or the hardware or the software delivered hereunder, howsoever such liability may arise, provided that the claims against customers, users and service providers of the Bank would be considered as a direct claim.

48.4. In circumstances where the Bidder indemnifies the Bank against any claims of infringement of any Intellectual Property rights, the Bidder must at its own expense promptly;

i. Procure the unrestricted right for the Bank to continue using and receiving the same; or

ii. Make or procure on Bank's behalf such alterations, modifications, adjustments or substitutions to all or any parts of the same so that it becomes non-infringing without affecting the relevant part of Deliverables or Services or prejudice their compliance with their terms of the specifications or requirements of RFP ; or

iii. Substitute a non-infringing version of the infringing item of at least functional equivalence conforming to applicable requirements under the RFP.

iv. If Bidder is unable to provide any of the forgoing alternatives, the Bank may at its own option terminate forthwith the subsequent Agreement to be entered into with the Bidder.

v. The Parties hereby acknowledge that Bidder shall not be responsible for any special, incidental, indirect and consequential damages.

vi. Bidder will, upon payment or satisfaction of such indemnity in full, be subrogated to all rights of the Bank with respect to the claims to which such indemnification relates.

vii. The Parties hereby acknowledge that Bidder shall not be responsible for any special, incidental, indirect and consequential damages.

viii. This limitation of liability shall not apply for indemnity at clause 8 of this RFP.

49. FORCE MAJEURE

49.1. Notwithstanding the provisions of this RFP the bidder shall not be liable for forfeiture of its Performance Bank Guarantee, liquidated damages or termination for default, if and to the extent that, it's delay in performance or other failure to perform its obligations under the Contract / Agreement is the result of an event of Force Majeure.

49.2. For purpose of this Clause "Force Majeure" means war or revolution, terrorist act, fire, flood, earthquake, epidemic and quarantine restriction.

49.3. If a Force Majeure situation arises, the bidder shall promptly notify IDBI Bank in writing of such conditions and the cause thereof. Unless otherwise directed by IDBI Bank in writing, the bidder shall continue to perform its obligations under the Contract as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event. IDBI Bank may terminate the Contract / Agreement, by giving a written notice of minimum 30 (Thirty) days to the bidder, if as a result of Force Majeure the Vendor is unable to perform a material portion of the Service(s) for a period of more than 60 (Sixty) days.

"Force Majeure Event" means any event or circumstance or a combination of events and circumstances which satisfies all the following conditions:

(a) materially and adversely affects the performance of obligations under the Contract;

(b) are beyond the reasonable control of the Bidder;

(c) Bidder could not have prevented or reasonably overcome with the exercise of good industry practice or reasonable skill and care; and

(d) do not result from the negligence or misconduct of Bidder or the failure of the Bidder to perform its obligations under the Contract

Upon directions by the Bank, the Successful Bidder shall resume performing of the services in same manner as it would have performed, had there been no such Force Majeure situation.

50. PRE CONTRACT INTEGRITY PACT

Bidders shall submit Integrity Pact (IP) along with the technical Bid in the format provided in Annexure - 13 of the RFP. Integrity Pact is an agreement between the prospective Bidders and the Bank committing the persons/officials of both the parties not to exercise any corrupt influence on any aspect of the Contract. Any violation of the terms of Integrity Pact would entail disqualification of the Bidders and exclusion from future business dealings. The Integrity Pact begins when both parties have legally signed it. Integrity Pact with the successful bidder(s) will be valid till 12 months after the last payment made under the Contract. Integrity Pact with the unsuccessful bidders will be valid 6 months after the Contract is awarded to the successful Bidder.

51. IT OUTSOURCE POLICY

Bidder should adhere to the Reserve Bank of India(RBI) circular on Master Direction on Outsourcing of Information Technology Services dated April 10,2023 vide ref no RBI/2023-24/102 DoS.CO.CSITEG/SEC..31.01.015/ 2023-24 and related IDBI Bank policies.

52. VENDOR RISK ASSESMENT

The risk assessment of the bidder should be completed before on-boarding of the bidder, and thus the bidder is required to give all support and submit necessary documents to the Bank or the authorized vendor(s) appointed by the Bank for the purpose of risk assessment.

53. CYBER INCIDENT REPORTING

Upon discovery of any cyber security incident that may materially affect the confidentiality, integrity, or availability of the Bank's data or system, vendor/service provider shall immediately notify the Bank (within 30 Minute) without undue delay.

Email id for cyber security incident reporting to Bank:

idbivendorcyberreporting@idbi.co.in

54. INFORMATION SECURITY POSTURE

The bidder shall complied with the following in case Bank's sensitive data is being processed within its network/premises.

a. All relevant rules and regulations regarding information security and access control, maintaining confidentiality and documenting access.

b. All relevant rules and regulations and policies regarding information security and access control, prohibiting access to public external email servers and controlling external emails sent on behalf of the Bank.
c. Documentation policies and procedures for encryption, safeguarding all sensitive information in accordance with relevant Information Security policies.
d. Document and test incident response processes and procedures, adhering to all relevant regulatory and statutory guidelines to effectively handle security incidents.
e. The information security policy, which has been reviewed and approved by management, to meet all necessary standards and requirements.
f. Maintaining a network diagram depicting the environment of services provided to the Bank, including subcontractors such as Cloud services, along with corresponding access control lists, and a Data Flow Diagram for the service being provided to the Bank.
g. A comprehensive physical and environmental security program to protect IDBI's resources, including information and documentation etc.
h. the confidentiality of physical materials shredded when no longer needed
i. An Information Security and Privacy Awareness Training Program to educate employees and contractors on best practices for ensuring compliance with relevant policies and regulations of the information security.
j. a comprehensive process for LOG monitoring and detecting network incidents, including deploying and maintaining a Security Information and Event Management (SIEM) system, continuously monitoring network traffic, system logs, and security events, establishing baseline behavior and setting up alerts for anomalous activities, and regularly tuning and updating detection rules and signatures.
k. Performing periodic vulnerability assessments and penetration tests on their network, servers, and clients to identify and mitigate potential security risks.
l. Periodically patching their network, servers, and clients to protect against known vulnerabilities.

SECTION 3
(ANNEXURES)

1. TECHNICAL BID FORM (ANNEXURE–1)

(To be submitted on the Company's Letter Head and included in the Technical Bid)
Date: _____ (DD/MM/YYYY)
To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION
(REF No: IDBI-Bank/ITD/PPG/RFP/ 24-25 / 74 : March 29, 2025)

After going through the Bid Documents, the receipt whereof is hereby duly acknowledged, we the undersigned, absolutely, unconditionally and irrevocably offer PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION for IDBI Branches in conformity with the said Bid Documents.

If our Bid is accepted, we agree and undertake that, to deliver and commission the Services in accordance with the delivery schedule specified in the schedule of requirements.

If our Bid is accepted, we will obtain bank guarantee for a sum equivalent to 3% (Three percent) of the value of Contract for the due performance and observance of the Contract, in the form and manner prescribed by and to the satisfaction of IDBI Bank Limited (Bank).

We agree and undertake to abide by the bid terms of Bank including the rates quoted therein for the orders awarded by Bank up to the period prescribed in the Bid, which shall be final and conclusive and remain binding upon us.

We agree and undertake to supply upgraded model of the product in case of technological obsolescence / non-availability of contracted product/model. The supply of upgraded product, subject to the Bank's approval, will be at the same contracted price as the obsolete model.

Until a formal contract is finalized and executed, this Bid Documents, together with relevant documents as amended, modified, supplemented, revised, modified by addendum, etc., if any, at the sole discretion of Bank duly initialed/executed shall constitute a binding Contract between us.

We agree and undertake that, in competing for (and, if the Bid is accepted by you) the above contract, we will strictly observe the laws inter alia, in particular, against fraud and corruption in force in India namely "Prevention of Corruption Act, 1988" and similar laws and also strictly abide by and observe all applicable laws.
We agree and confirm that you are not bound to accept the lowest or any Bid you may receive and you also have the right to re-issue/re-commence the Bid. Any decision in this regard by you shall be final and binding on us.

We enclose a demand draft / pay order of Rs. 50,00,000 /- (Rupees 50 Lakh Only) towards EMD, in favor of "IDBI Bank Limited" drawn on _____, _____ Branch payable at Mumbai.

We understand that the EMD will be refunded after the Bidder signing the Contract and furnishing of the Performance Bank Guarantee in case of successful Bidder and within a period of 30 (Thirty) days after the conclusion of the contract for unsuccessful Bidders. We have noted that Bid Security shall not carry any interest.

Dated this _____Day of _____2025

Sign

Name:

Designation:

(Company Seal)

2. INDICATIVE COMMECIAL BID (ANNEXURE-2)

(To be submitted on the Company's Letter Head and included in Commercial Bid)

Date: _____ (DD/MM/YYYY)

To,

Dy. General Manager

Procurement & Payment Group (PPG),

Information Technology Department,

IDBI Bank Limited,

Ground Floor, Corporate Park,

Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

Having examined the Bidding Documents, the receipt of which is hereby duly acknowledged, we, the undersigned, submit our **Indicative Commercial Bid** in conformity with the said RFP documents :-

BILL of Material (BOM)					
#	**Module**	**Description**	**Qty**	**Unit Cost/ Year**	**Total Cost/ Year**
1	Marketing Campaigns	User based	As per existing usage and future bank scope		
2	Marketing Campaigns	Customer Contacts			
3	Sales Management – Branch/FOS	Branch Sales			
4	Sales Management – Contact Center	Contact Center Sales			
5	Service Management – Branch/FOS	Both Sales & Service for Branch/FOS			
6	Service Management – Contact Center	Only Service for Contact Center			
7	Sales & Service – Branch/FOS	Both Sales & Service			
8	Sales & Service – Contact Center	Both Sales & Service			
	Total Annual Cost of License (A1) ***(In Rupees Only)***				

Additional (Hardware/Software/License) **Bill of Material** (if any)			
SNo.	Item Description	Quantity	Price
	ETL/CDC Tool		
	Staging Servers/ Gateways		
	Total Cost (A2) ***(In Rupees Only)***		

*Please add rows if required

#	Implementation	Total Cost
1	**Implementation Cost (One-time) –(B)** ***(In Rupees Only)***	

Support/Maintenance Resource Bill of Material (BOM)						
#	**Description/ Type/ Skillset**	**Cost per resource per year**	**Module (Sales/Service/Marketing)**	**Number of Resources**	**Period of support per module on pro-rata basis (in months)**	**Total Cost/ year**
1	Onsite Resource (L1)					
2	Onsite Resource (L2)					
3	Admin (L1/L2)					
4	Developer					
5	Any other capability					
	Total Annual Cost of Onsite Support Resources (C) ***(In Rupees Only)***					

*Bidder needs to provide estimate of type, skill & number of resources required to support the deployed solution as per the scope of support & maintenance of the deployed solution.
**The period of support for the specific phase/module will start only after the particular phase/module gets sign off, and the period of support (in months) for the particular phase/module will be counted from the sign-off date of the particular phase/module till the period of engagement.

#	Cost Description	Amount
1	Total Cost for Licenses	
2	One Time Implementation Cost (B)	
3	Total Cost of Onsite Support Resources (C)	
	Total Cost of Ownership (TCO) for three years	

(Amount in INR, excluding taxes)

Terms & Conditions:

- The indicative cost for the purpose of an ORA will be arrived at based on the lowest indicative Commercial bids or as per the cost estimations arrived by the Bank.
- Prices quoted should be exclusive of all applicable taxes such as GST in INR.
- ALL other Taxes / Duties / levies and charges for packing, forwarding, freight, transit insurance, loading and unloading, should be included in the Bid price.
- Applicable taxes would be deducted at source, if any, as per prevailing rates.
- The Price break up should indicate the unit rate of all the components listed in final commercial quotes and will be submitted as per above format within 3 (three) days by the successful bidder to the ORA agency / Bank on conclusion of ORA.
- In case of discrepancy between unit price and total price, the unit price shall prevail.
- In case of discrepancy between figures and words, the amount in words shall prevail.

- All the costing of the project should be included in the table above including the 3rd party licenses if any.
- The unit price of licenses for each profile shall not be changed during the whole contract period and the Bank may procure additional licenses at its discretion, at the same cost.
- The TCO arrived in above table shall be quoted during Techno Commercial stage and ORA.
- Bank at its discretion may procure additional onsite resources at the above quoted cost for any adhoc requirement, during the contract period.
- The support/maintenance period will start immediately after the full Sign off for all the modules, and is on the assumption that all the modules are made. However, in case of delay in the Go-Live of all the modules, the support/maintenance will only start after Go-Live and Sign off of the.

We declare that all the terms & conditions as per the RFP are agreeable to us.

_____

(Signature)
(Name of the signatory)
(In the capacity of)
Duly authorized to sign Bid for and on behalf of
(Company Seal)

Date:
Place:

3. PRICE SCHEDULE – FORMAT (ANNEXURE-3)

(To be included as part of the Commercial Bid)

1) Having perused the Bid Documents, the receipt of which is hereby duly acknowledged, we, the undersigned, offer our services as vendor, in conformity with the said Bid Documents at rates mentioned in the commercial bid.
2) Prices quoted are exclusive of GST.
3) ALL other Taxes / Duties / levies and charges for packing, forwarding, freight, transit insurance, loading and unloading, are included in the Bid price.
4) Applicable taxes would be deducted by the Bank at source, if any, as per prevailing rates.
5) In case of discrepancy between unit price and total price, the unit price shall prevail.
6) In case of discrepancy between figures and words, the amount in words shall prevail.
7) The unit / total price of the software/solutions/licenses's should be rounded off to the nearest rupee, in the price break up sheet.
8) For the above, any decision of Bank, in this behalf shall be final, conclusive and binding on us
9) We undertake to supply upgraded model of the product in case of technological obsolescence / non-availability of contracted product/model. The supply of upgraded product, subject to the Bank's approval, will be at the same contracted price as the obsolete model.

Sign
Name of the signatory
Designation
Company Seal.
Date:
Place:

4. TECHNICAL SPECIFICATIONS (ANNEXURE – 4)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/RFP/ 24-25 / 74 : March 29, 2025

The Technical evaluation of the eligible bidders will be carried as per the details furnished below:

S No.		Criteria/ Technical & Functional Requirements **(All claims by the OEM/bidders to be supported by supporting documents- PO/Email/Signed SOW/Sign Off Documents)**	Marks Obtained/ Response	Max Marks
1		Implementation Experience of Bidder/OEM in implementing Native Cloud CRM f. Large Scale Scheduled Commercial Banks in India – 2 Marks g. Foreign Banks in India – 1.5 Marks h. Foreign Bank's global implementation – 1.3 Marks i. NBFCs/Small Finance Banks in India – 1 Marks j. Any Insurance Co in India – 0.5 Marks *Max of 5 references will be considered		10
2		Number of any Cloud CRM Implementations c. In BFSI in India – 1 Marks d. Any other Industry in India – 0.5 Marks *Max 2 references will be considered		2
3		Presentation / Demo / POC / Client Visit (Marks will be allotted based on the quality & use cases covered)		15
4		Detailed implementation approach, architecture, solution design, time-lines & roll-out plan to be submitted by the bidder		5
5		Migration - Whether the bidder has done End-to-end migration of any On-premise CRM to cloud CRM **2** Marks for cloud CRM implementation *Maximum 2 migrations will be considered		4
6		Module/functionality implemented:- **54.1.1.**Lead/ Opportunity Management – 2 Marks **54.1.2.**Service Management – 1 Marks **54.1.3.**Email case management – 1 Marks **54.1.4.**Customer 360 (Real time data fetch from on-premise system) – 2 Marks **54.1.5.**Campaigns – 1 Marks **54.1.6.**Customer on-boarding in CBS through STP – 1 Marks **54.1.7.**QRC execution in source through STP – 1 Marks **54.1.8.**CRM Mobile App (with client customizations) for Android & iOS – 2 Marks		40

		54.1.9. Card Management STPs (Hotlisting/ Blocking/Re-issuance) – 2 Marks **54.1.10.** CBS STP (0.5 Mark for each STP, Max 4 STP) – 2 Marks **54.1.11.** Integrations: **54.1.12.** EDW/Data Lake/Lake house integration – 1 Mark **54.1.13.** Azure AD/ADFS Integration – 1 Marks - Email (Outbound – 1 Marks, Inbound – 1 Marks) – 2 Marks - SMS – 1 Mark - WhatsApp (Outbound – 1 Marks, Inbound – 1 Marks) – 2 Mark - Avaya CTI – 1 Mark - Genesys CTI – 1 Mark - IVR – 1 Marks - ESB – 1 Marks - Mobile Banking (Outbound – 1 Mark, Inbound – 1 Mark) - 2 - Internet Banking (Outbound – 1 Marks, Inbound – 1 Mark) - 2 - MS Teams – 1 Mark - Office 365 – 1 Mark - Web Journeys based customer on-barding – 1 Marks - LOS – 2 Marks - External Agency STP (Pan validation, Aadhaar validation, CIBIL, External Agency Leads(2 nos.)) – 5 Marks (1 Mark each)		
7		Availability of pre-built accelerators for Cloud CRM		2
8		Availability of OEM Certified professionals pool		2
9		Fastrack Implementation – 2.5 Marks for 6 months per module (Copy of Sign off with Kick off date) 2 marks for 9 months per module implementation experience 1 mark for 12 months per module implementation experience 0 marks for more than 12 months per module (Max 2 modules will be considered)		5
10		Show case end to end capabilities beyond CRM through single OEM. Capabilities like LOS, collections, Chabot's, Agentic AI and customer data platform		10
11		Show case Latest AI/Gen AI Capabilities across modules and functions		5
		Total		**100**

(Authorized Signatory)

Name of the signatory _____

Designation _____

(Company Seal)

5. MANUFACTURERS AUTHORIZATION FROM OEM (ANNEXURE – 5)

(To be submitted on the Company's Letter Head and included in the Technical Bid)
(There would not be any modification allowed in the format and bidder should manage to obtain the same from OEM.)

Date: _____ (DD/MM/YYYY)
To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/RFP/ 24-25 / 74 : March 29, 2025

We_____ **(OEM Vendor)** of _____ product / service / solution hereby authorize **M/s.**_____ **(Successful Bidder / Vendor Name)** to offer their quotation, negotiate and conclude the contract with you against the above invitation for the Bid.

We hereby extend our comprehensive 3 Years warranty as per terms and conditions of the tender and the contract for our product / application solution / services offered against this invitation for Bid by the above firm.

We also extend our back to back service support and assurance of availability of our software/solutions/licenses and their components as per terms and conditions of the tender, to **M/s.** _____ **(Vendor Name)** for a period of five years i.e. up to _____ (Period)

The OEM shall certify that any new products, updates, upgrades etc have been developed following the secure coding practices.

Dated at _____ this _____ day of _____ 2025

Signature : _____
Name : _____
Designation : _____
Company seal : _____

6. FORMAT OF POWER-OF-ATTORNEY (ANNEXURE – 6)

(On Stamp Paper of relevant value)

POWER OF ATTORNEY

Know all men by these presents, we M/s _____, _____ (name of the Bidder and its address) do hereby appoint and authorize Shri _____ (full name and residential address) who is presently employed with us and holding the position of _____ as our attorney, to do in our name and on our behalf, all such acts, deeds and things necessary in connection with or incidental to our proposal for _____, in response to the RFP (Request for Proposal) floated by IDBI Bank Ltd (hereinafter referred to as IDBI Bank), including signing and submission of all documents and providing information/responses to IDBI Bank in all matters in connection with our Bid.

We hereby agree, declare and undertake that all the acts, deeds and things lawfully done by our said attorney shall be construed as acts, deeds and things done, performed and executed by us and we hereby agree to ratify and confirm all acts, deeds and things lawfully done by our said attorney pursuant to this irrevocable Power of Attorney and that all acts, deeds and things done by our aforesaid attorney shall always be deemed to have been done by us.

Dated this _____ day of _____2025

For or on behalf of M/s _____

(Authorised Signatory)
(Name, Designation and Address)

Accepted

(Authorised Signatory)
(Name, Title and Address of the Attorney)

Date:

Witnesses:

1) (Name, Signature & Address)	2) (Name, Signature & Address)

Note:

- The mode of execution of the Power of Attorney should be in accordance with the procedure, if any, laid down by the applicable law and the charter documents of the executants and when it is so required the same should be under common seal affixed in accordance with the required procedure.

- Also, wherever required, the Bidder should submit for verification the extract of the charter documents and documents such as a resolution/power of attorney in favor of the Person executing this Power of Attorney for the delegation of power hereunder on behalf of the Bidder.
- In case the Application is signed by an authorized Director / Partner or Proprietor of the Applicant, a certified copy of the appropriate resolution / document conveying such authority may be enclosed in lieu of the Power of Attorney.

7. UNCONDITIONAL ACCEPTANCE OF TERMS & CONDITIONS OF THE RFP (ANNEXURE – 7)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Date: _____ (DD/MM/YYYY)
To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

This is to confirm that we absolutely & unconditionally accept all the terms and conditions (including scope of work) as mentioned in various parts of the said RFP/Bid Document floated by IDBI Bank Limited regarding **PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION**

(Authorized Signatory)

Name of the signatory _____

Designation _____

(Company Seal)

8. SELF DECLARATIONS (ANNEXURE – 8)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Date: _____ (DD/MM/YYYY)
To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74: March 29, 2025)

We,_____ (name and designation) on behalf of M/s _____ having its registered office at _____ have submitted a Bid proposal to IDBI Bank for _____ in response to the Request for Proposal (RFP) dated _____ (DD/MM/YYYY) issued by IDBI Bank.

i. We are duly authorized persons to submit this undertaking.

ii. We have read and understood the aforesaid RFP and we hereby convey our absolute and unconditional acceptance to the aforesaid RFP.

iii. We do not have any business relationship with IDBI Bank including its directors and officers which may result in any conflict of interest between us and IDBI Bank. We shall on occurrence of any such event immediately inform the concerned authorities of the same.

iv. We have submitted our Bid in compliance with the specific requirements as mentioned in this RFP.

v. We declare and confirm that on award of the Contract, we shall not make any request for modifications in the prescribed formats of legal documents.

vi. We have provided with all necessary information and details as required by IDBI Bank and shall provide with such additional information's may be required by IDBI Bank from time to time.

vii. Neither we nor any of our employee / director has been barred from providing the Services nor are we in negative list/blacklisted by any public sector banks, statutory or regulatory or investigative agencies in India or abroad in the last 5 years.

viii. There are no vigilance and / or court cases pending against us / company and no inquiry or investigation pending against us from any statutory regulatory and / or investigation agency.

ix. All the information furnished here in and as per the document submitted is true and accurate and nothing has been concealed or tampered with. We have gone through all the conditions of Bid and are aware that we would be liable to any punitive action in case of furnishing of false information / documents.

x. We also undertake that, we were/are never involved in any legal case that may affect the solvency / existence of our organization or in any other way that may affect capability to provide / continue the services to bank.

xi. The Vendor shall deploy only the optimal number of resources at IDBI Bank office for implementation / support of the projects/applications. The vendor shall preferably use their office for all the projects/application, unless it is essential to work at IDBI Bank location"

It is further certified that we have not modified or deleted any text/matter in this RFP / Bid Document.

Dated this _____ day of _____ 20…..

(Authorized Signature)

(Company Seal)

Name: Shri _____

In the capacity of _____

Duly authorized to sign bids for and on behalf of: M/s_____

9. LETTER FOR REFUND OF EMD (ANNEXURE – 9)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Date: _____ (DD/MM/YYYY)

To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

We _____ (Company Name) had participated in the RFP for - PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION and are unsuccessful bidder.

or

We _____ (Company Name) had participated in the RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION and are successful bidder and we had submitted all the legal Documents.

Kindly refund the EMD submitted for participation. Details of EMD submitted are as follows:

Sr. No.	Bidder Name	NEFT UTR No.	Bank Name	Transaction Date	Amount Rs.

Bank details to which the money needs to be credited via NEFT are as follows:

1.	Name of the Bank with Branch	
2.	Account Type	
3.	Account Title	
4.	Account Number	
5.	IFSC Code	
6.	PAN no.	
7.	GST No:	

Signature : _____
Name : _____
Designation : _____
Company seal : _____

10. INFORMATION SECURITY CERTIFICATE (ANNEXURE – 10)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74: March 29, 2025)

This is to certify that–

1. Hardware and the software/future upgrades being offered do not contain any kind of malicious code such as Viruses, Trojan, Spyware that would:

   (a) Obstruct the desired and the designed function of hardware.
   (b) Cause physical damage to the user or their software/solutions/licenses during the usage of the software/solutions/licenses.
   (c) Tap the information regarding network, users and information stored on the network of the Bank or in its CBS Platform or otherwise.
   (d) Culminate into software attack, theft of intellectual property rights, identity theft, theft of software/solutions/licenses or information, sabotage & information extortion;
2. We undertake to be liable in case of any loss that may be caused to the Purchaser due to the breach of any of the aforesaid assurances & representations and also for any physical damage, loss of information, loss of reputation and those relating to copyright and Intellectual Property Rights (IPRs), caused due to activation of any such malicious code in the hardware / software supplied.
3. We shall make sure that the sensitive data (such as password, financial information, biometric information, personal information etc.) shared by the Bank will be kept within the geographical boundaries of India

Signature : _____
Name : _____
Designation : _____
Company seal : _____

_____

Signature of the Bidder
with company Seal

11. BIDDER PROFILE (ANNEXURE – 11)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Date: _____ (DD/MM/YYYY)

To,

Dy. General Manager

Procurement & Payment Group (PPG),

Information Technology Department,

IDBI Bank Limited,

Ground Floor, Corporate Park,

Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74: March 29, 2025)

Sr. No	Particulars	Response
1.	Name & Registered Office Address of the Bidder	
2.	Type of organization & year of incorporation / Registration. (Copy of certificate of registration / incorporation to be submitted)	
3.	PAN No (Copy of PAN card to be submitted)	
4.	GST No (Copy of GST reg. to be submitted)	
5.	Correspondence address at Mumbai with contact person/s Details: Name: Telephone No.& Mobile No. Email Id: etc.	
6.	Contact person/s Details for the purpose of this RFP: Details: Name: Telephone No & Mobile No.: Email Id: etc.	
7.	Name and designation of the person authorized to sign the Bid / proposal and all other documents incidental to the RFP.	

Please find enclosed the supporting documents for above response.

Signature:
Name of the Authorized Person:
Designation:
(Company Seal)

12. PRE – BID QUERIES (ANNEXURE – 12)

(To be submitted in excel file format at dgm.itvmg@idbi.co.in)

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

Bidder Name :

Contact Person :

Contact no / email id:

S. No	RFP Ref Page no	RFP Clause no	Existing clause Details	Clarification Sought
1				
2				
3				
4				
5				
6				

Signature : _____
Name : _____
Designation : _____
Company seal : _____

13. PRE INTEGRITY PACT (ANNEXURE-13)

(To be submitted on Rs. 500 stamp paper)

General

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on_____day of the month of _____ 20___, between, IDBI Bank Ltd., a company within the meaning of Section 2(20) of the Companies Act, 2013 (18 of 2013) and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949), with Corporate Identity No. L65190MH2004GOI148838 and having its registered office at IDBI Tower, WTC Complex, Cuffe Parade, Mumbai 400005 through its _____ Department/ Office at _____, _____, (hereinafter called the "PRINCIPAL", which expression shall mean and include, unless the context otherwise requires, its successors) of the First Part

And

M/s _____represented by Smt/ Shri_____, MD/ CEO/ CMD (hereinafter called the "BIDDER/ Seller which expression shall mean and include, unless the context otherwise requires, its/ his successors and permitted assigns) of the Second Part.

WHEREAS the PRINCIPAL proposes to **PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION** and BIDDER/ Seller is willing to offer/ has offered the same to the Principal.

WHEREAS the BIDDER is a private company/ public company/ Government undertaking/ partnership/ registered export agency, constituted in accordance with the relevant law in the matter and the PRINCIPAL is an Office/ Department of IDBI Bank Ltd performing its functions on behalf of IDBI Bank Ltd.

NOW, THEREFORE,

To avoid all forms of corruption by following a system that is fair, transparent and free from any influence/ prejudiced dealings prior to, during and subsequent to the currency of the contract to be· entered into with a view to:

- Enabling the PRINCIPAL to obtain the desired service/ product at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement; and
- Enabling BIDDERs to abstain from bribing or indulging in any corrupt practice in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing and other corrupt practices and the PRINCIPAL will commit to prevent corruption, in any form, by its officials by following transparent procedures.

The parties hereto hereby agree to enter into this Integrity Pact and agree as follows:

1. Commitments of the PRINCIPAL

1.1 The PRINCIPAL undertakes that no official of the PRINCIPAL, connected directly or indirectly with the contract, will demand, take a promise for or accept directly or through intermediaries, any bribe, consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the BIDDER, either for themselves or for any person, organisation or third party (which is not available legally) related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the contract.

1.2 The PRINCIPAL will, during the pre-contract stage, treat all BIDDERs alike, and will provide to all BIDDERs the same information and will not provide any such information to any particular BIDDER which

could afford an advantage to that particular BIDDER in comparison to other BIDDERs.

1.3 All the officials of the PRINCIPAL will report to the appropriate authority any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach.

2. In case any such preceding misconduct on the part of such official(s) is reported by the BIDDER to the PRINCIPAL with full and verifiable facts and the same is prima facie found to be correct by the PRINCIPAL, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the PRINCIPAL and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the PRINCIPAL the proceedings under the contract would not be stalled.

3. Commitments of the BIDDERs

The BIDDER commits itself to take all measures necessary to prevent corrupt practices, unfair means and illegal activities during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit itself to the following:

3.1 The BIDDER will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage commission, fees brokerage or inducement to any official of the PRINCIPAL, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the contract.

3.2 The BIDDER further undertakes that it has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement (not available legally) to any official of the PRINCIPAL or otherwise in procuring the Contract or forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other contract with IDBI Bank Ltd for showing or forbearing to show favour or disfavor to any person in relation to the contract or any other contract with IDBI Bank Ltd.

3.3 The BIDDER confirms and declares that they have not made any payments to any agents/ brokers or any other intermediary, in connection with this bid/ contract.

3.4 The BIDDER further confirms and declares to the PRINCIPAL that the BIDDER is the original vendor or service provider in respect of product/ service covered in the bid documents and the BIDDER has not engaged with any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the PRINCIPAL or any of its functionaries, whether officially or unofficially to the award of the contract to the BIDDER, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.

3.5 The BIDDER, at the earliest available opportunity, i.e. either while presenting the bid or during pre-contract negotiations and in any case before opening the financial bid and before signing the contract, shall disclose any payments he has made, is committed to or intends to make to officials of the PRINCIPAL or their family members, agents, brokers or any other intermediaries in connection with the contract and the details of the services agreed upon for such payments.

3.6 The BIDDER will not enter into any undisclosed agreement or collude with other parties interested in the contract/ other BIDDERs to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract or with respect to prices, specifications, certifications, subsidiary contracts etc.

3.7 The BIDDER will not accept any advantage in exchange for any corrupt practice; unfair means and illegal activities.

3.8 The BIDDER shall not use improperly, for purpose of competition or personal gain or pass on to others, any information provided by the PRINCIPAL as a part of the business relationship, regarding plans, technical proposals and business details including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due and adequate care lest any such information is divulged.

3.9 The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.

3.10 The BIDDER shall not instigate or cause to instigate any third person to commit any of the actions mentioned above.

3.11 If the BIDDER or any employee of the BIDDER or any person acting on behalf of the BIDDER, either directly or indirectly, is a relative of any of the officers of the PRINCIPAL, or alternatively, if any relative of an officer of the PRINCIPAL has financial interest/ stake in the BIDDER's firm, the same shall be disclosed by the BIDDER at the time of filing of tender.

3.12 The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the PRINCIPAL.

3.13 The BIDDER/ Contractor shall not directly or through any other person or firm use coercive practices against IDBI Bank and/ or other BIDDERs/ Contractor(s).

3.14 BIDDERs are not to pass any information provided by the PRINCIPAL as a part of business relationship to others and not commit any offence under PC/ IPC Act.

3.15 Foreign BIDDERs if any, to disclose name and address of agents and representatives in India and Indian Bidders to disclose their foreign principal or associates.

3.16 BIDDERs to disclose any transgressions with any other company that may impinge on anti- corruption principle.

4. Previous Transgressions

4.1 The BIDDER declares that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact, with any other company in any country in respect of any corrupt practices envisaged hereunder or with any Public Sector Enterprise / Public Sector Banks in India or any Government Department in India or RBI that could justify BIDDER's exclusion from the tender process.

4.2 The BIDDER agrees that if it makes incorrect statement on this subject, BIDDER can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

5. Earnest Money (Security Deposit)

5.1 While submitting commercial bid, the BIDDER shall deposit an amount (specified in LRFP) as Earnest Money/ Security Deposit, with the PRINCIPAL through any of the modes mentioned in the LRFP/ bid document and no such mode is specified, by a Bank Draft or a Pay Order in favour of IDBI Bank Ltd. However payment of any such amount by way of Bank Guarantee, if so permitted as per bid documents/ LRFP should be from any nationalized Bank other than IDBI Bank Ltd and promising payment of the guaranteed sum to the PRINCIPAL on demand within three working days without any demur whatsoever and without seeking any reasons whatsoever. The demand for payment by the PRINCIPAL shall be treated as conclusive proof for making such payment to the PRINCIPAL.

5.2 Unless otherwise stipulated in the Bid document/ LRFP, the Earnest Money/ Security Deposit shall be valid upto a period of five years or the complete conclusion of the contractual obligations to the complete satisfaction of both the BIDDER and the PRINCIPAL, including warranty period, whichever is later.

5.3 In case of the successful BIDDER, a clause would also be incorporated in the Article pertaining to Performance Bond in the Purchase Contract that the provisions of Sanctions for Violation shall be applicable for forfeiture of Performance Bond in case of a decision by the PRINCIPAL to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

5.4 No interest shall be payable by the PRINCIPAL to the BIDDER on Earnest Money/ Security Deposit for the period of its currency.

6. Sanctions for Violations

6.1 Any breach of the aforesaid provisions by the BIDDER or anyone employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER) shall entitle the PRINCIPAL to take all or any one of the following actions, wherever required:

6.1.1 To immediately call off the pre contract negotiations without assigning any reason and without giving any compensation to the BIDDER. However, the proceedings with the other BIDDER(s) would continue, unless the PRINCIPAL desires to drop the entire process.

6.1.2 The Earnest Money Deposit (in pre-contract stage) and / or Security Deposit/ Performance Bond (after the contract is signed) shall stand forfeited either fully or partially, as decided by the PRINCIPAL and the PRINCIPAL shall not be required to assign any reason therefore.

6.1.3 To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.

6.1.4 To encash the advance bank guarantee and performance bond/ warranty bond, if furnished by the BIDDER, in order to recover the payments, already made by the PRINCIPAL along with interest.

6.1.5 To cancel all or any other Contracts with the BIDDER. The BIDDER shall be liable to pay compensation for any loss or damage to the PRINCIPAL resulting from such cancellation/ rescission and the PRINCIPAL shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.

6.1.6 To debar the BIDDER from participating in future bidding processes of the PRINCIPAL or any of its subsidiaries for a minimum period of five years, which may be further extended at the discretion of the PRINCIPAL.

6.1.7 To recover all sums paid, in violation of this Pact, by BIDDER(s) to any middleman or agent or broker with a view to securing the contract.

6.1.8 Forfeiture of Performance Bond in case of a decision by the PRINCIPAL to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.

6.1.9 Intimate to the CVC, IBA, RBI, as the PRINCIPAL deemed fit the details of such events for appropriate action by such authorities.

6.2 The PRINCIPAL will be entitled to take all or any of the actions mentioned at para 6.1.1 to 6.1.9 of this Pact also on the Commission by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER), of an offense as defined in Chapter IX of Indian Penal Code, 1860 or Prevention of Corruption Act, 1988 or any other statute enacted for prevention of corruption.

6.3 The decision of the PRINCIPAL to the effect that a breach of the provisions of this Pact has been committed by the BIDDER shall be final and conclusive on the BIDDER. However, the BIDDER can approach the Independent External Monitor(s) appointed for the purposes of this Pact.

7. Fall Clause

7.1 The BIDDER undertakes that it has not supplied/ is not supplying similar product/ systems or subsystems at a price lower than that offered in the present bid in respect of any other Ministry/ Department of the Government of India or PSU or any other Bank and if it is found at any stage that similar product/ systems or sub systems was supplied by the BIDDER to any other Ministry/ Department of the Government of India or a PSU or a Bank at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the BIDDER to the PRINCIPAL, if the contract has already been concluded.

8. Independent External Monitors

8.1 The PRINCIPAL has appointed Independent External Monitors (hereinafter referred to as Monitors or IEMs) for this Pact in consultation with the Central Vigilance Commission (Names and Addresses of the Monitors to be given).

Sr. No.	Name of IEM	Contact Number	Contact mail
1	Dr. Rajiva Ranjan Verma, IPS, Ex-Director General, Railway Protection Force	9868260524	rajivaranjanin@yahoo.co.in
2	Shri P V V Satyanarayana, IRSS, Ex-Principal Chief Manager, South Central Railway	8130073011	skpadala@gmail.com

8.2 The task of the Monitors shall be to review independently and objectively, whether and to what extent the parties comply with the obligations under this Pact.

8.3 The Monitors shall not be subject to instructions by the representatives of the parties and perform their functions neutrally and independently.

8.4 Both the parties accept that the Monitors have the right to access all the documents relating to the project/ procurement, including minutes of meetings.

8.5 As soon as the Monitor notices, or has reason to believe, a violation of this Pact, he will so inform the Authority designated by the PRINCIPAL.

8.6 The BIDDER(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the PRINCIPAL including that provided by the BIDDER. The BIDDER will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to

his project documentation. The same is applicable to Sub-contractors. The Monitor shall be under contractual obligation to treat the information and documents of the BIDDER/ Sub-contractor(s) with confidentiality.

8.7 The PRINCIPAL will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the parties. The parties will offer to the Monitor the option to participate in such meetings.

8.8 The Monitor will submit a written report to the designated authority of PRINCIPAL/ Secretary in the Department/ within 8 to 10 weeks from the date of reference or intimation to him by the PRINCIPAL/ BIDDER and, should the occasion arise, submit proposals for correcting problematic situations.

9. Facilitation of Investigation

In case of any allegation of violation of any provisions of this Pact or payment of commission, the PRINCIPAL or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information and documents in English and shall extend all possible help for the purpose of such examination.

10. Law and Place of Jurisdiction

This Pact is subject to Indian Law. The place of performance and jurisdiction is the seat of the PRINCIPAL.

11. Other Legal Actions

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

12. Validity

12.1 The validity of this Integrity Pact shall be from date of its signing and extend up to the complete execution of the contract to the satisfaction of the PRINCIPAL and the BIDDER/ Seller, including warranty period, whichever is later. In case BIDDER is unsuccessful, this Integrity Pact shall expire after six months from the date of the signing of the contract, with the successful bidder by the PRINCIPAL.

12.2 Should one or several provisions of this Pact tum out to be invalid; the remainder of this Pact shall remain valid. In this case, the parties will strive to come to an agreement to their original intentions.

13. The parties hereby sign this Integrity Pact at _____ on_____.

IN WITNESS WHEREOF, the Parties have signed and executed this Integrity Pact at the place and date first hereinabove mentioned in the presence of following witness:

Signature (For & on behalf of the PRINCIPAL)	Signature (For & on behalf of the BIDDER/ Contractor)
Office Seal Name Designation	Office Seal Name Designation

Witness 1:
(Name & Address) _____

Witness 2:
(Name & Address) _____

[Provisions of the above clauses would need to be amended/ deleted in line with the policy of the PRINCIPAL in regard to involvement of Indian agents of foreign suppliers].

14. CONTRACT FORM (ANNEXURE – 14)

(To be submitted by the Successful Bidder as per applicable Stamp Act value)

THIS AGREEMENT made at _____ the _____ day of _____ two thousand twenty one between IDBI BANK LIMITED, a company registered under the Companies Act, 1956 (1 of 1956) and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) and having its registered office at IDBI Tower, WTC Complex, Cuffe Parade, Mumbai – 400 005 (hereinafter called "the Purchaser" which expression shall unless it be repugnant to the subject, context or meaning thereof shall be deemed to mean and include its successors and assigns) of the **ONE PART** and M/s _____ (*Name of Successful Bidder*) of _____(Please specify the registered office of the *Successful Bidder*) (Hereinafter called "the Vendor" which expression shall unless it be repugnant to the subject, context or meaning thereof shall be deemed to mean and include its successors) of the **OTHER PART**;

The Purchaser and Vendor are hereinafter collectively referred to as "Parties" and individually as Party-

WHEREAS the Purchaser vide RFP No **IDBI-Bank/ITD/PPG/RFP/ 24-25 / 74 dated March 29, 2025** (the RFP) invited bids for Engagement of Vendors for **PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION** (*Brief Description of Services*) and has accepted a bid by the Vendor for rendering of the Services for the sum of Rs._____/- (Rupees_____ only) (*Contract Price in Words and Figures*) (Hereinafter called "the Contract Price").

NOW THIS AGREEEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1) In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the RFP / Conditions of Contract referred to.

2) The signed original copy of the RFP no. **IDBI-Bank/ITD/PPG/ RFP/ 24-25/ 74,** dated March 29, 2025 submitted by the vendor with the purchaser shall form an integral part of this contract form.

   a. The parties hereto by way of abundant precaution do hereby agree, admit & declare that all the contractor's representations, warranties & undertakings recorded in the RFP shall be deemed to be incorporated and adopted herein by reference to constitute and form an integral part of this contract form.

   b. Each of the representations, warranties and undertakings of the Vendor contained in the RFP shall be deemed to have been made as of the date hereof. In consideration of the payments to be made by the Purchaser to the Vendor as hereinafter mentioned, the

Contractor hereby agrees and covenants with the Purchaser to provide/render the Services and to remedy defects, if any therein, strictly in conformity in all respects with the provisions of the Contract.

3) In consideration of the payments to be made by the Purchaser to the Vendor as hereinafter mentioned, the Vendor hereby agrees and covenants with the Purchaser to provide/render the Services and to remedy defects, if any therein, strictly in conformity in all respects with the provisions of the Contract.

4) The Purchaser hereby agrees and covenants to pay the Vendor in consideration of the rendering of the Services, furnish necessary undertakings, guarantees and also to remedy defects, if any therein, the Contract price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

IN WITNESS WHEREOF the parties hereto have caused this Agreement to be executed on the day, month and year first above written.

Signed and Delivered by the within named

Signature:
Name: _____
Date: _____ (DD/MM/YYYY)

IN THE PRESENCE OF

1. Signature Name:_____ Address:_____	2. Signature Name: _____ Address:_____

Signed and Delivered by the within named

M/s _____
Date: _____ (DD/MM/YYYY)

IN THE PRESENCE OF:

1. Signature Name:_____ Address:_____	2. Signature Name: _____ Address:_____

15. PERFORMANCE BANK GUARANTEE (ANNEXURE – 15)

(To be submitted by the Successful Bidder as per applicable stamp value)

Bank Guarantee No.	
Bank Guarantee Amount	
Expiry Date	
Claim Amount	

GUARANTEE FOR PERFORMANCE OF CONTRACT

THIS GUARANTEE AGREEMENT executed at _____ this _____ day of _____ Two Thousand twenty three.

BY:

_____ Bank, a body corporate constituted under _____, having its Registered Office/ Head Office at _____, and a Branch Office at _____ (hereinafter referred to as "the Guarantor", which expression shall, unless it be repugnant to the subject, meaning or context thereof, be deemed to mean and include its successors and assigns)

IN FAVOUR OF:

IDBI BANK LIMITED, a company registered under the Companies Act, 1956 (1 of 1956) and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) with CIN L65190MH2004GOI148838 and having its registered office at IDBI Tower, WTC Complex, Cuffe Parade, Mumbai – 400 005 and having its Branch Office amongst other places (hereinafter referred to as "**Bank**" which expression shall unless it be repugnant to the subject, meaning or context thereof, be deemed to mean and include its successors and assigns),

1. **WHEREAS**, Bank vide RFP No. **IDBI-Bank/ITD/PPG/ RFP/ 24-25/74 dated March 29, 2025** called for the bids for engagement of Vendor for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION for IDBI Bank. M/s _____ have been appointed as the Successful Vendor (hereinafter referred to as "Vendor") and accordingly has entered into Contract with Bank subject to the terms and conditions contained in the said documents and the Vendor has duly confirmed the same.

2. **AND WHEREAS** pursuant to the Bid Document, the Contract Form, Annexure Forms and the other related documents (hereinafter collectively referred to as "the said documents", the Bank has agreed to avail from M/s_____ and M/s_____ has agreed to provide to the Bank_____, more particularly described in the Schedule/Annexure to the said documents (hereinafter collectively referred to as "the Services"), subject to payment of the Contract price as stated in the said documents and also subject to the terms, conditions,

covenants, provisions and stipulations contained the said documents. The Vendor has also furnished indemnity deed and Non-Disclosure Agreement and as such is bound by the same.

3. **AND WHEREAS** the Vendor has duly signed the said documents.

4. **AND WHEREAS** in terms of the Contract, the Vendor has agreed to provide the Services and to procure an unconditional and irrevocable performance bank guarantee, in favor of the Bank, from a bank acceptable to the Bank for securing PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION towards faithful observance and performance by the Vendor of the terms, conditions, covenants, stipulations, provisions of the Contract/the said documents.

5. **AND WHEREAS** at the request of the Vendor , the Guarantor has agreed to guarantee the Bank, payment of the 3% of the Contract Price amounting to ……..(*in words*) with validity of ……..towards faithful observance and performance by the Vendor of the terms of the Contract and the said documents.

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

In consideration of the above premises, the Guarantor hereby unconditionally, absolutely and irrevocably guarantees to the Bank as follows:

1. The Guarantor hereby guarantees and undertakes to pay, on demand, to the Bank at its office at Mumbai forthwith, the _____ or any part thereof, as the case may be, as aforesaid due to the Bank from the Vendor , towards any loss, costs, damages, etc. suffered by the Bank on account of default of the vendor in the faithful observance and performance of the terms, conditions, covenants, stipulations, provisions of the Contract, without any demur, reservation, contest, recourse or protest or without any reference to the vendor. Any such demand or claim made by the Bank, on the Guarantor shall be final, conclusive and binding notwithstanding any difference or any dispute between the Bank and the vendor or any dispute between the Bank and the vendor pending before any Court, Tribunal, Arbitrator, or any other authority.

2. The Guarantor agrees and undertakes not to revoke this Guarantee during the currency of these presents, without the previous written consent of the Bank and further agrees that the Guarantee herein contained shall continue to be enforceable until and unless it is discharged earlier by the Bank, in writing.

3. The Bank shall be the sole judge to decide whether the vendor has failed to perform the terms of the Contract for providing the Services by the vendor to the Bank, and on account of the said failure what amount has become payable by the vendor to the Bank under this Guarantee. The decision of the Bank in this behalf shall be final, conclusive and binding on the Guarantor and the Guarantor shall not be entitled to demand the Bank to establish its claim under this Guarantee but shall pay the sums demanded without any objection, whatsoever.

4. To give effect to this Guarantee, the Bank, may act as though the Guarantor was the principal debtor to the Bank.

5. The liability of the Guarantor, under this Guarantee shall not be affected by

5.1. any change in the constitution or winding up of the vendor or any absorption, merger or amalgamation of the Vendor with any other company, corporation or concern; or

5.2. any change in the management of the Vendor or takeover of the management of the vendor by the Government or by any other authority; or

5.3. acquisition or nationalization of the Vendor and/or of any of its undertaking(s) pursuant to any law; or

5.4. any change in the constitution of Bank/Vendor; or

5.5. any change in the set-up of the Guarantor which may be by way of change in the constitution, winding up, voluntary or otherwise, absorption, merger or amalgamation or otherwise; or

5.6. The absence or deficiency of powers on the part of the Guarantor to give Guarantees and/or Indemnities or any irregularity in the exercise of such powers.

6. Notwithstanding anything contained hereinabove, the liability of the Guarantor hereunder shall not exceed the rupee equivalent of _____(In words) being the 10% of the Contract Price.

7. This Guarantee will expire on _____ (DD/MM/YYYY). Any demand or claim under this Guarantee must be received by the Guarantor by _____ (DD/MM/YYYY) and if no such demand or claim has been received by the Guarantor by the date mentioned as aforesaid, then all the rights of the Bank under this Guarantee shall cease.

8. For all purposes connected with this Guarantee and in respect of all disputes and differences under or in respect of these presents or arising there from the courts of Bombay city/ Mumbai city where the Bank has its Registered Office shall alone have jurisdiction to the exclusion of all other courts.

IN WITNESS WHEREOF the Guarantor has caused these presents to be executed on the day, month and year first herein above written as hereinafter appearing.

SIGNED AND DELIVERED BY
the within named Guarantor,

_____,
by the hand of Shri._____,
its authorized official.

16. NON-DISCLOSURE AGREEMENT (ANNEXURE – 16)

(To be submitted by the Successful Bidder on Rs.500/- stamp paper)

This Non-Disclosure Agreement entered into at _____ this _____ day of _____ Two Thousand Twenty Five

Between

IDBI Bank Limited, a company incorporated and registered under the Companies Act, 1956 (1 of 1956) and a banking company within the meaning of Section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) with CIN L65190MH2004GOI148838 and having its registered office at IDBI Tower, WTC Complex, Cuffe Parade, Mumbai – 400 005 (hereinafter called "the Purchaser/Bank" which expression shall unless it be repugnant to the subject, context or meaning thereof be deemed to mean and include its successors and assigns) of the **ONE PART**

AND

M/s _____ (Name of Vendor) of _____ (Please specify the registered office of the Vendor) (Hereinafter called "the Vendor/Contractor" which expression shall unless it be repugnant to the subject, context or meaning thereof shall be deemed to mean and include its successors and permitted assignees) of the **OTHER PART**;

WHEREAS, Bank called for the bids for engagement of Bidder for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION for use at branches / Offices/ Other locations of the Bank. M/s_____ (hereinafter referred to as "Bidder"), after going through the Bid Documents and being interested to act as Vendor and provide the services for product / service / solution for IDBI Bank branches/offices/other locations has submitted its bid hereafter referred to as the "Services".

WHEREAS, the vendor is aware and confirms that the information, data, drawings and designs, and other documents made available in the Bid Documents / the Contract and thereafter regarding the Services as furnished by the vendor in their Request For Proposal or otherwise and all the Confidential Information under the Bid Documents/the Contract is privileged and strictly confidential and/or proprietary to Bank,

NOW THEREFORE, in consideration of the foregoing, the vendor agrees to all of the following conditions, for Bank, to grant the vendor specific access to Bank's property/information and other data.

In connection with this Agreement,

"" Confidential Information" means all intellectual property information; technical or business information or material not covered; proprietary or internal information related to the current, future and proposed products or services of the Parties including, financial information, process/flow charts, business models, designs, drawings, data information related to products and services, procurement requirements, purchasing, customers, investors, employees, business and contractual relationships, business forecasts, business plans and strategies, information the Bank provide regarding third parties; information disclosed pursuant to RFP & other documents;

documents, accounts, business plans, information or documents whatsoever, concerning business, policies, strategy, property, contracts, trade secrets, transactions, or interested parties of IDBI Bank or its Subsidiaries or Affiliates and/or any other information whether disclosed to the other Party in oral, graphic, written, electronic or machine readable form, and whether or not the information is expressly stated to be confidential or marked as such, all Trade Secrets and other proprietary information including but not limited to customer list, financial information, and pricing information.

It is hereby agreed as under:

a) The parties agree that they shall hold in trust any Confidential Information received by either party, under this Contract, and the strictest of confidence shall be maintained in respect of such Confidential Information. The parties also agree and undertake to:
   i. maintain and use the Confidential Information only for the purposes of this Contract and only as permitted herein;
   ii. make copies as specifically authorized by the prior written consent of the other party and with the same confidential or proprietary notices as may be printed or displayed on the original;
   iii. restrict access and disclosure of confidential information to such of their employees, agents, vendor, and contractors strictly on a "need to know" basis, to maintain confidentiality of the Confidential Information disclosed to them in accordance with this clause; and
   iv. Treat Confidential Information as confidential for a period of five (5) years from the date of receipt. In the event of earlier termination of this Contract, the Parties hereby agree to maintain the confidentiality of the Confidential Information for a further period of [two (2)] years from the date of such termination.

b) Confidential Information in oral form must be identified as confidential at the time of disclosure and confirmed as such in writing within 30 (thirty) days of such disclosure. Confidential Information does not include information which:

   i. the recipient knew or had in its possession, prior to disclosure, without limitation on its confidentiality;
   ii. is independently developed by the recipient without breach of this Contract;
   iii. is the public domain;
   iv. is received from a third party not subject to the obligation of confidentiality with respect to such information;
   v. is released from confidentiality with the prior written consent of the other party.

The recipient shall have the burden of proving hereinabove are applicable to the information in the possession of the recipient.

c) Notwithstanding the foregoing, the parties acknowledge that the nature of the Services to be performed under this Contract may require the vendor's personnel to be present on premises of Bank or may require the vendor's personnel to have access to computer networks and databases of Bank while on or off premises of Bank. It is understood that it would be

impractical for Bank to monitor all information made available to the vendor's personnel under such circumstances and to provide notice to the vendor's of the confidentiality of all such information. Therefore, the vendor agrees and undertakes that any technical or business or other information of Bank that the vendor's personnel, or agents acquire while on Bank premises, or through access to Bank computer systems or databases while on or off Bank premises, shall be deemed Confidential Information.

d) Confidential Information shall at all times remain the sole and exclusive property of the disclosing party. Upon termination of this Contract, confidential information shall be returned to the disclosing party or destroyed, if incapable of return. The destruction shall be witnessed and so recorded, in writing, by an authorized representative of each of the parties. Nothing contained herein shall in any manner impair or affect rights of Bank in respect of the Confidential Information.

e) In the event that any of the parties hereto becomes legally compelled to disclose any Confidential Information, such party shall give sufficient notice to the other party to enable the other party to prevent or minimize to the extent possible, such disclosure. Neither party shall disclose to a third party any Confidential Information or the contents of this Contract without the prior written consent of the other party. The obligations of this Clause shall be satisfied by handling Confidential Information with the same degree of care, which the receiving party applies to its own similar confidential information but in no event less than reasonable care. The obligations of this clause shall survive the expiration, cancellation or termination of this Contract.

f) This Agreement shall be governed by and construed in accordance with the laws of India, and any disputes arising out of this Agreement shall be subject to the exclusive jurisdiction of the courts of Mumbai.

g) The provisions hereunder shall survive termination of the Contract.

Sign
Name _____
Designation _____
Company Seal
Place:
Date:
Accepted (Bank)

Sign _____
Name _____
Designation _____
Company Seal

Place:
Date:

17. DEED OF INDEMNITY (ANNEXURE – 17)

(To be submitted by the Successful Bidder on Rs.500/- stamp paper)

This Deed of Indemnity executed at Mumbai on the _____ day of _____ two thousand twenty one by M/s _____<insert name of the Successful Bidder> (hereinafter referred to as "the Obligor" which expression shall unless it be repugnant to the context, subject or meaning thereof, shall be deemed to mean and include successors and permitted assigns);

IN FAVOUR OF

IDBI Bank Limited, a company registered and incorporated under the Companies Act, 1956 (1 of 1956) and a banking company within the meaning of section 5 (c) of the Banking Regulation Act, 1949 (10 of 1949) having its registered office at IDBI Tower, WTC Complex, Cuffe Parade, Colaba, Mumbai – 400 005 (hereinafter referred to as "Bank" which expression shall, unless it be repugnant to the subject or context or meaning thereof, be deemed to mean and include its successors and assigns)

Now, the Bank and Successful Bidder wherever the context so permits, shall hereinafter collectively refer to as the "Parties" and individually as a "Party".

WHEREAS, Bank vide RFP No. **IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 dated March 29, 2025** called for the bids for engagement of Vendor for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION for IDBI Bank. M/s _____ have been appointed as the Successful Vendor.

1) The Obligor has

a) offered to supply product / service / solution & provide / carry out their commissioning for existing and proposed new branches /offices/ other locations of IDBI Bank ("Services") as inclusively stated under Service Level Expectations and Specifications Systems & Solutions;

b) represented and warranted that they have obtained all permissions, consents, licenses, registrations, confirmations, approvals from all authorities, both regulatory and non-regulatory, including statutory or otherwise, local, municipal, governmental, quasi-governmental, as are required under Applicable Laws for executing the Services to the Bank and also represented and covenanted that all above approvals shall remain in force during contract period;

c) represented and warranted that the aforesaid Services offered to Bank do not violate any provisions of the applicable laws, regulations or guidelines including legal and environmental. In case there is any violation of any law, rules or regulation, which is capable of being remedied the same will be got remedied immediately to the satisfaction of Bank;

d) represented and warranted that they are authorized and legally eligible and otherwise entitled and competent to enter into such contract(s) with Bank;

2) Bank, relying and based on the aforesaid representations and warranties of the Obligor, has agreed to avail the services of the Obligor on the terms and conditions contained in its Contract dated _____(DD/MM/YYYY) (the Contract) with the Obligor;

3) One of the conditions of the aforesaid Contract is that the Obligor is required to furnish an indemnity in favor of Bank indemnifying the latter against any loss, damages or claims arising out of any violations of the applicable laws, regulations, guidelines during the execution of its services to Bank over the contract period as also for breach committed by the Obligor on account of misconduct, omission and negligence by the Obligor.

4) In pursuance thereof, the Obligor has agreed to furnish an indemnity in the form and manner and to the satisfaction of Bank as hereinafter appearing;

NOW THIS DEED WITNESSETH AS UNDER:

In consideration of Bank having agreed to award the aforesaid contract to the Obligor, more particularly described and stated in the aforesaid Contract, the Obligor do hereby agree and undertake that:

1. The Obligor shall, at all times hereinafter, save and keep harmless and indemnified Bank, including its respective directors, officers, and employees and keep them indemnified from and against any claim, demand, losses, liabilities or expenses of any nature and kind whatsoever and by whomsoever made in respect of the said contract and any damage caused from and against all suits and other actions that may be instituted taken or preferred against Bank by whomsoever and all losses, damages, costs, charges and expenses that Bank may incur by reason of any claim made by any claimant for any reason whatsoever or by anybody claiming under them or otherwise for any losses, damages or claims arising out of all kinds of accidents, destruction, deliberate or otherwise, direct or indirect, from those arising out of violation of applicable laws, regulations, guidelines and also from the environmental damages, if any, which may occur during the contract period.

2. The Obligor further agrees and undertakes that the Obligor shall, during the Contract period, ensure that all the permissions, authorizations, consents are obtained from the local and/or municipal, statutory, regulatory and/or governmental authorities, as may be required under the applicable laws, regulations, guidelines, orders framed or issued by any appropriate authorities.

3. The Obligor further agrees to provide complete documentation of all sub-systems, operating systems, systems software, utility software and other software, they are having. The Obligor shall also provide licensed software for all software services, whether developed by it or acquired from others for performing the obligations under the Contract. The Obligor shall also indemnify and keep indemnified IDBI against any levies / penalties / claims / demands litigations, suits, actions, judgments, and or otherwise ion account of any default and or breach and or otherwise in this regard.

4. If any additional approval, consent or permission is required by the Obligor to execute and perform the Contract during the currency of the Contract, they shall procure the same and/or comply with the conditions stipulated by the concerned authorities without any delay.

5. The obligations of the Obligor herein are irrevocable, absolute and unconditional, in each case irrespective of the value, genuineness, validity, regularity or enforceability of the aforesaid Contractor the insolvency, bankruptcy, re-organization, dissolution, liquidation or change in ownership of Bank or Obligor or any other circumstance whatsoever which might otherwise constitute a discharge of or defense to an indemnifier.

6. The obligations of the Obligor under this deed shall not be affected by any act, omission, matter or thing which, would reduce, release or prejudice the Obligor from any of the indemnified obligations under this indemnity or prejudice or diminish the indemnified obligations in whole or in part, including in law, equity or contract (whether or not known to it, or to Bank).

7. This indemnity shall survive the aforesaid Contract.

8. Any notice, request or other communication to be given or made under this indemnity shall be in writing addressed to either party at the address stated in the aforesaid Contract and or as stated above.

9. This indemnity shall be governed by, and construed in accordance with, the laws of India. The Obligor irrevocably agrees that any legal action, suit or proceedings arising out of or relating to any this indemnity may be brought in the Courts/Tribunals at Mumbai. Final judgment against the Obligor in any such action, suit or proceeding shall be conclusive and may be enforced in any other jurisdiction, by suit on the judgment, a certified copy of which shall be conclusive evidence of the judgment, or in any other manner provided by law. By the execution of this indemnity, the Obligor irrevocably submits to the exclusive jurisdiction of such Court/Tribunal in any such action, suit or proceeding.

10. Bank may assign or transfer all or any part of its interest herein to any other person. Obligor shall not assign or transfer any of its rights or obligations under this indemnity, except with the prior written consent of the Bank.

The words and expressions not specifically defined shall have the same meanings as are respectively assigned to them in the Bid Document.

IN WITNESS WHEREOF the Obligor has signed these presents on the day, month and year first above written.

Signed and Delivered on behalf of (M/s _____)
by the hand of Mr/Ms/Mrs _____ (Designation _____),

the authorized official of the obligor

18. ACCEPTANCE CERTIFICATE (ANNEXURE – 18)

(To be submitted by the Successful Bidder on installation of each ordered ____)

Date: _____ (DD/MM/YYYY)
To,
M/s _____
_____
(Name and Address of Successful Bidder)

Dear Sir,

Reference: **RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)**

Subject: **Certificate of commissioning of** PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION

Purchase Order No & Date

This is to certify that the Systems as detailed below have been received in good condition along with all the standard and special accessories (subject to remarks in para No.2) in accordance with the Contract/Specifications. The same have been installed and commissioned.

Sr. No.	Description	Quantity	Make & Version	Delivery Date	Installation Date

Details of services not yet supplied and recoveries to be made on that account:

Sr. No.	Description	Amount to be recovered

The Vendor has fulfilled his contractual obligations satisfactorily*

Or

The Vendor has failed to fulfill his contractual obligations with regard to the following:

a) _____
b) _____
c) _____
d) _____

The Vendor has fulfilled his contractual obligations satisfactorily*

The amount of recovery on account of non-render of Services /Systems is given under Para No._____.

The amount of recovery on account of failure of the Contractor to meet his contractual obligations is as indicated in endorsement of the letter.

Signature: _____

Name : _____

Designation: _____

Strike out whichever is not applicable.

Explanatory notes for filing up the certificates:

(a) It has adhered to the time schedule specified in the contract in dispatching / installing the systems / manuals pursuant to Technical Specifications.

(b) He has supervised the commissioning of the services in time i.e., within the period specified in the Contract from the date of intimation by the Purchaser in respect of the installation of the system.

(c) Training of personnel has been done by the Contractor as specified in the Contract.

(d) In the event of Manuals having not been supplied or installation and commissioning of the Services having been delayed on account of the Contractor, the extent of delay should always be mentioned.

Signature : _____
Name : _____
Designation : _____
Company seal : _____

19. UNDERTAKING FOR CLOUD (ANNEXURE – 19)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Date: _____ (DD/MM/YYYY)

To,
Dy. General Manager
Procurement & Payment Group (PPG),
Information Technology Department,
IDBI Bank Limited,
Ground Floor, Corporate Park,
Chembur, Mumbai – 400071

Dear Sir,

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

We _____ (Company Name) undertake that Cloud CRM solution which is being asked in this RFP document along with Bank's data with respect to the solution will be hosted on a dedicated instance or Bank's tenant in cloud strictly within India and should comply with all data security measures and regularity guidelines circulated by RBI and other Government Agencies from time to time. The physical servers must be hosted in India i.e. guidelines of RBI circular DPSS.CO.OD No 2785/06.08.005/2017-18 dated 06.04-2018 regarding data localization to be complied. In addition to that, all the security aspects of the bank's data mentioned in the scope shall be complied. Further, there will be no network and data sharing /replication/processing to any datacenter outside the boundaries of the country.

(Authorized Signatory)

Name of the signatory _____

Designation _____

(Company Seal)

20. LIST OF DOCUMENTS TO BE SUBMITTED IN RESPONSE TO THE RFP (ANNEXURE-20)

(To be submitted on the Company's Letter Head and included in the Technical Bid)

Reference: RFP for PROCUREMENT, IMPLEMENTATION AND MAINTENANCE OF CLOUD CRM SOLUTION (REF No: IDBI-Bank/ITD/PPG/ RFP/ 24-25 / 74 : March 29, 2025)

#	Documents to be submitted	Supporting Documents	Submitted (Yes / No)
1.	Copy of NEFT receipt/UTR details (EMD and Bid Cost)	• EMD • Bid document fee • MSME Certificate / NSIC / Other Supporting document for waiver for EMD / Bid Fee	Yes / No
2.	Technical Bid Form	• As per Annexure-1	Yes / No
3.	Technical Specification	• As per Annexure- 4	Yes / No
4.	Manufacturer Authorization Form (MAF) from OEM	• As per Annexure-5	Yes / No
5.	Power of Attorney as per format provided in RFP (accompanied by certified true copy of Board Resolution)	• Certified true copy of Board Resolution • POA as per format at Annexure-6 • (If sub delegates the power by the authorized signatory whose nominated by the board)	Yes / No
6.	Unconditional Acceptance of Terms and Conditions of RFP	• As per Annexure-7	Yes / No
7.	Self-Declarations	• As per Annexure - 8	Yes/No
8.	Letter for Refund of EMD	• As per Annexure-9	Yes / No
9.	Information Security Certificate	• As per Annexure-10	Yes / No
10.	Bidder's Profile	• As per Annexure-11 • Incorporation Certificate • GST • PAN	Yes / No
11.	Pre-Contract Integrity Pact	• As per Annexure-13	Yes / No
12.	Eligibility Criteria Compliance (accompanied by all the supporting documents)	• As per Eligibility Criteria Sheet	Yes / No

13.	Approach, Methodology & Detailed Implementation Work Plan	• Supporting documents to be submitted	Yes / No
14.	Undertaking for Cloud	• As per Annexure - 19	Yes / No
15.	Response to be submitted by bidder for vendor assessment	• As per Annexure - 22	Yes / No
16.	Contact details along with escalation matrix of Central Helpdesk / support center (Bidder and OEM)	• Contact details along with escalation matrix of Central Helpdesk / support center (Bidder and OEM)	Yes / No
17.	Signed Copy of RFP, Bank's Response to pre-Bid queries and Corrigendum (if any)	• Signed copy of RFP (all the pages to be signed). Signed copy of Bank's Responses, Corrigenda and addenda, if, any, to be submitted	Yes / No
18.	All other documents as asked in the scope, eligibility, compliance, evaluation & annexures	• Supporting documents to be submitted	Yes / No

21. INSTRUCTIONS TO BIDDER – ONLINE MODE (ANNEXURE-21)

21.1. DEFINITIONS:

21.1.1. C1 India Pvt. Ltd.: Service provider to provide the e-Tendering Software.

21.1.2. IDBI Bank e-Procurement Portal: An e-tendering portal of IDBI Bank introduced for the process of e-tendering which can be accessed on https://c1.eproc.in

21.2. ACCESSING / PURCHASING OF BID DOCUMENTS :

21.2.1. It is mandatory for all the bidders to have Class-III Digital Signature Certificate (With Both DSC Components, i.e. Signing & Encryption) from any of the licensed Certifying Agency under CCA, Ministry of Electronics and Information Technology, Government of India to participate in e-tendering portal of IDBI Bank. Bidders can see the list of licensed CA's from the link www.cca.gov.in C1 India Pvt. Ltd. also facilitate Class III Digital Signature Certificate (With Both DSC Components, i.e. Signing & Encryption) to the bidders. Bidder may contact C1 India Pvt. Ltd. at mobile no. +91-8130606629 for DSC related queries or can email at vikas.kumar@c1india.com

21.2.2. To participate in the e-bid, it is mandatory for the Applicants to get themselves registered with the IDBI Bank e-Tendering Portal (https://c1.eproc.in) to have a user ID & Password with no registration fee.

21.2.3. The amendments / clarifications to the tender, if any, will be posted on the IDBI Bank e-Tendering Portal (https://c1.eproc.in).

21.2.4. The Bidder may modify or withdraw their bid after submission prior to the Bid Due Date. No Bid shall be modified or withdrawn by the Bidder after the Bid Due Date and Time.
Both 'EMD' and 'Tender Document Fee', if any, are mentioned in individual tender document published at IDBI Bank e-Tendering Portal (https://c1.eproc.in).

21.2.5. For helpdesk, please contact e-Tendering Cell and Help Desk Support Monday to Friday
Ph: 0124-4302033/36/37, eprocsupport@c1india.com .

Note: Bidders are advised to submit their bids well within the stipulated timeline. It is further advise that bidders should submit the bid well within the time instead of the last date to avoid complications Bid submitted beyond the stipulated date and time will not be considered. In view of this context, IDBI Bank will not be responsible for such eventualities.

22. RESPONSE TO BE SUBMITTED BY BIDDER FOR VENDOR ASSESSMENT (ANNEXURE-22)

(To be submitted by successful Bidder)

Reference: **RFP for Procurement, Implementation and Maintenance of Cloud CRM Solution (REF No: IDBI-Bank/ITD/ RFP/ 24-25 / 74 : 29-03-2025)**

Control No.	Domain	Assessment Pre-Requisites	Bidder Response
1	Access Management	Do you have a process for granting and documenting access, including access for subcontractors and remote access? List the person(s)/group(s) responsible for granting access. Please describe the process, including any tools utilized.	
2	Access Management	Is access to information and technology resources role based on a need-to-know basis?	
3	Access Management	Does separation of duties exist between individuals who request access, authorize access, enable access, and verify access? Please describe access management lifecycle.	
4	Access Management	Do you periodically (at least annually, to include cloud services if used) review reports or other authorization lists of user access rights? Describe the reports to review user access rights, including frequency and platforms/applications/network components/remote users. Please name the role or groups responsible for this task.	
5	Access Management	Do you have procedures to manage access for terminated/transferred employees and contractors? Please describe the process used to terminate or transfer an employee/contractor, including timeframes for access-related changes. What is the timeframe between the request and systemic activation?	
6	Access Management	Do you have procedures for managing inactive user accounts and do they include remote users? If yes, describe if accounts are disabled after a period of inactivity (i.e., 90 days) and if accounts are deleted after a period of inactivity (i.e., 180 days).	

7	Access Management	Do you have any additional provisions on how administrator accounts are set-up and super-user accounts are utilized (e.g., day to day accounts versus super-user accounts, privileges assigned to accounts, uniqueness of accounts, accountability, utilization of multi-factor authentication)? Describe the detail for those accounts to include accounts for cloud services, virtualized environments, and or third party break glass repositories if used.	
8	Access Management	Do you enforce a password management policy for access to all platforms, applications and databases? Describe the password management policy.	
9	Application	Does the application protect authentication credentials in storage?	
10	Application	Does the application follow required record retention and have a backup policy that defines the dataset, frequency and retention period in accordance with operational recovery requirements, which is certified regularly on an annual basis?	
11	Application	Is the bank-related information encrypted (either by the transmission protocol or by encrypting prior to sending) before transmitting between environments or over any network link?	
12	Application	Does the application provide a mechanism for secured storing of the Company-related information at rest using one of the methods listed in the guidelines?	
13	Application	If the Bank production data is used in a non-production environment, does the Vendor receive authorization from the Company's information owner prior to using it in a non-production environment?	
14	Application	Is the application in scope as part of regularly-scheduled DR testing? If the application is in scope, how frequently is the DR test conducted?	
15	Application	If message queuing is used in the application, does it secure the transaction through an appropriate solution ensuring message integrity.	
16	Application	Are the passwords for system accounts periodically changed (at least once in 180 days)?	

17	Application	Does the application have a minimum automatic time-out for users to re-authenticate? If yes, what is the specified time-out period?	
18	Application	Has a Penetration Test been performed on the application, and were all critical and high findings remediated prior to production implementation?	
19	Application	Has a Static Scan been performed on the application, and were all critical and high vulnerabilities remediated prior to production implementation?	
20	Application	Has a Dynamic Scan been performed on the application, and were all critical and high vulnerabilities remediated prior to production implementation?	
21	Application	Has an Open Source Scan been performed for the application, and were all critical and high vulnerabilities remediated prior to production implementation?	
22	Application	Have all default accounts been disabled, deleted, or have their passwords changed prior to deployment in production?	
23	Application	Does the application have a Disaster Recovery (DR) Plan which has been reviewed and approved within the last 365 days?	
24	Application	After a failed login attempt, does the application show a generic failure message that only says that login was unsuccessful, and does not explicitly call out the main reason for the failure?	
25	Application	Is the application integrated with the Company Federation/SSO solution, or has the application implemented connectivity restrictions to only allow access from the Company network?	
26	Application	Does the web-application remove all elements cached on the server upon session termination?	
27	Application	Do the application prevent display of server information such as web server name and version number related to the application on server banners?	
28	Application	Has the application disabled interactive login for system IDs?	

29	Asset Management	Do you have a technology asset management policy or program that has been approved by management to maintain inventory of hardware, software, information assets (e.g., databases, applications) and physical assets to include services hosted in the cloud? Please describe if the program includes periodic asset recertification.	
30	Asset Management	Do you periodically assess (at least annually) unauthorized, unlicensed and unsupported hardware/software? If Yes, please describe the process in detail.	
31	Asset Management	Do you have a process to remove information prior to decommissioning or reuse of software/solutions/licenses that housed, stored, processed, controlled or accessed information? Describe your procedures for the decommissioning process. Describe if the same procedure is utilized for non-repairable software/solutions/licenses.	
32	Asset Management	Do you prohibit your employees and contractors from performing business using personal devices? Please describe your policies for personal devices.	
33	Backup	Do you have a documented process for how system, application and data backups are performed? Describe routine for backups (full, incremental, differential; continuous, daily, weekly, etc.). Indicate how you ensure the backup process was successful.	
34	Backup	Do you have a physical security plan for your off-site storage facility, including fire authority certification? Describe the location and provider of the offsite storage facility, and indicate what access controls are implemented.	
35	Backup	Do you encrypt the devices (e.g., hard drives, USB devices, backup tapes, and storage media) that are used for backup? Please describe the controls.	
36	Backup	Do you implement controls to safeguard media and information during transfer to and from offsite location? Please describe specific controls including if insured carriers are utilized.	

37	Business Continuity and Disaster Recovery	Do you have a documented business continuity plan in place?	
38	Business Continuity and Disaster Recovery	Do your plans cover multiple recovery strategies to maximize the ability of the firm to fully recover from various disaster scenarios impacts such as 1) loss of site 2) loss of technology 3) unavailability of staff (to include pandemic) and 4) loss of critical third party? Example of recovery options include: - Multiple operation sites in different geographical zones - Ability to move staff to an alternate location - Ability to work from home - Transfer work to trained staff at other locations - Ability to rely on alternate vendors	
39	Business Continuity and Disaster Recovery	Are your plans physically tested at least annually or more frequently when significant operational changes are implemented? (e.g., new products or services and expansion or relocation of staff)	
40	Change Management	Do you have a Change Control Policy and Procedure? Please describe different components included in the change control policy and procedure (e.g., infrastructure components, physical/environmental, network, applications, databases and patches) Please provide a copy of this procedure. Describe if emergency changes follow this same procedure.	
41	Change Management	Do you log and communicate significant changes that affect clients, prior to implementing the change? Please describe the procedures.	
42	Change Management	Do you enforce separation of duties among personnel who authorize changes and personnel who implement the changes? Please provide evidence.	
43	Change Management	Do you perform a security review for any changes as part of the overall change approval process?	
44	Cloud Security	Do you use a security configuration management solution to monitor all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services for compliance with all cloud service provider security requirements?	

45	Cloud Security	Do you ensure that any physical storage media that is removed from production use is purged or destroyed in a timely manner using methods that comply with NIST Special Publication 800-88 Revision 1 following termination of production use? Please describe if the data and media sanitation methods ensures that any data is unrecoverable.	
46	Cloud Security	Do you ensure that any logical storage in which cloud service customer data is stored is purged using methods that comply with NIST Special Publication 800-88 Revision 1 immediately following termination of use by cloud service customer? Please describe if the data and media sanitation methods ensures that any cloud service customer data is unrecoverable.	
47	Cloud Security	Do you ensure that any cloud service customer systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) and data is uniquely identifiable and logically segregated from all other cloud service provider customers?	
48	Cloud Security	Do you ensure that all egress communications, including encrypted communications, use network-based Data Loss Prevention (DLP) solutions for detecting cloud service customer Personally Identifiable Information (PII) data at the perimeter of any cloud service environments? Please describe intrusion detection and investigation process of any suspicious or anomalous events.	
49	Cloud Security	Do you ensure that all hosts that are used to provide cloud services use host-based Data Loss Prevention (DLP) solutions for detecting cloud service customer Personally Identifiable Information (PII) data? Please describe intrusion detection and investigation process of any suspicious or anomalous events.	
50	Cloud Security	Do you ensure that end-to-end encryption is implemented such that cloud service customer data is encrypted at-rest and in-transit at all times?	
51	Cloud Security	Do you encrypt data in-transit for remote management of systems (i.e., servers, networking, storage, virtualization and security) that are used to provide cloud services?	
52	Cloud Security	Do you encrypt data in-transit for virtualization operations (e.g., virtual machine migration) used to provide cloud services?	

53	Cloud Security	Do you ensure that cloud service customer data is encrypted at-rest at all times using application-level encryption (ALE), field-level database encryption, full database encryption, file/object encryption or volume encryption? Please describe data-at-rest encryption mechanisms used to protect cloud service customer data.	
54	Cloud Security	Do you ensure that all hosts in cloud service environments either use an encrypted file system or store the file system using volume-level encryption including boot partitions and swap/paging files?	
55	Cloud Security	Do you ensure that all encryption keys are protected using a cloud service provider hosted (private and on premise) highly available FIPS 140-2 Level 3 compliant physical Hardware Security Module (HSM)? Please describe encryption key management mechanisms ensure Key Encrypting Keys (KEK) and Data Encrypting Keys (DEK) are stored in the HSM.	
56	Cloud Security	Do you ensure that cloud service customer data is encrypted using unique encryption keys for all instances of application-level encryption (ALE), field-level database encryption, full database encryption, file/object encryption or volume encryption?	
57	Cloud Security	Do you ensure that all hosts in cloud service environments use unique encryption keys for encrypting file systems or volumes that store file systems?	
58	Cloud Security	Does your encryption Key Management System (KMS) solution support cloud service customer managed encryption keys such that a compromise of any cloud service provider encryption key(s) in the hierarchy would not impact cloud service customer data?	
59	Cloud Security	Do you use cloud service customer managed encryption keys when using any cloud service provider hosted encryption key management system or hardware security module?	
60	Cloud Security	Do you support the ability for cloud service customers to import, rotate (at-least annually), and revoke cloud service customer managed encryption keys as needed, without impacting cloud service availability?	
61	Cloud Security	Do you prevent the ability to logically access cloud service customer managed encryption keys. If not please	

		describe logical access controls and ability to access cloud service customer managed encryption keys?	
62	Cloud Security	Do you ensure that cloud service customer data is encrypted at-rest at all times using application-level encryption (ALE) or field-level database encryption?	
63	Cloud Security	Do you prevent storage of any cloud service customer managed encryption keys on any persistent storage device?	
64	Cloud Security	Do you restrict any individuals from maintaining access to any accounts with full administrative access to manage systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services?	
65	Cloud Security	Do you require multi-factor authentication and network address restrictions be used for any accounts with full or privileged access to manage systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services?	
66	Cloud Security	Do you recertify at least annually any accounts with access to manage systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services?	
67	Cloud Security	Do you prohibit storing or replicating authentication credentials from identity and access management stores to cloud service environments?	
68	Cloud Security	Do you prohibit storing, processing or transmitting any account credentials in plaintext in source code, metadata, configuration files or any other unencrypted location?	
69	Cloud Security	Do you mutually agree upon with Cloud service customers and use reliable external time sources to synchronize the system clocks of all applicable systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are either hosted in cloud service environments or are used to provide cloud services?	
70	Cloud Security	Do you use host-based firewalls for all hosts that are hosted in cloud service environments?	

71	Cloud Security	Do you support the ability for cloud service customers to ensure that the confidentiality and integrity of all cloud service customer virtual machine images and snapshots are maintained at all times.	
72	Cloud Security	Do you ensure that security events from all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security), application programming interface (API) activity, access, configuration changes and network flow that are used to provide cloud services are logged and transferred in near real-time to a Security Information and Event Management (SIEM) for monitoring?	
73	Cloud Security	Do you use a use a Security Information and Event Management (SIEM) solution for performing analysis, correlation and triage of events from all cloud services and systems that are hosted in cloud service environments? Please describe if suspicious or anomalous events are investigated in timely manner.	
74	Cloud Security	Do you store any cloud service customer data in cloud service provider logs?	
75	Cloud Security	Do you store all required event logs in a cloud service provider hosted (private and on premise) environment that is managed independently and logically segregated from primary cloud service environments?	
76	Cloud Security	Do you use multi-tier network architecture such that there is segmentation between network tiers (i.e., web/presentation, application/logic and database/data) for any environments used to provide cloud services?	
77	Cloud Security	Do you use isolated network segments for out-of-band management of physical systems that are either used to provide cloud services?	
78	Cloud Security	Do you ensure that environments with any external or internet-facing components have all ingress communications, including encrypted communications, route through perimeter security (i.e., firewall, intrusion detection/prevention, and web application firewall and web threat detection) solutions at the perimeter of any environments used to provide cloud services?	
79	Cloud Security	Do you ensure that environments with any external or internet-facing components have all egress communications, including encrypted communications, route through perimeter security (i.e., firewall, intrusion	

		detection/prevention, and content filtering proxy and data loss prevention) solutions at the perimeter of any environments used to provide cloud services?	
80	Cloud Security	Do you ensure that all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services are evaluated at least bi-weekly to ensure timely evaluation and implementation of security updates?	
81	Cloud Security	Do you ensure that all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services are hardened using a secure baseline configuration that complies with cloud service providers security requirements which align with provider and industry best practices (e.g., CIS Security Benchmarks and DISA STIGs)?	
82	Cloud Security	Do you ensure that access to any virtualization management functions, administrative consoles, Application Programming Interfaces (APIs) or any other management components must be restricted to individuals based upon the principles of least privilege and supported through technical controls (i.e., multi-factor authentication, IP address filtering, encryption in-transit, network segmentation and audit logging)?	
83	Cloud Security	Do you use jump / bastion hosts for any human access using accounts with full or privileged administrative access to cloud services and systems that are hosted in cloud service environments?	
84	Cloud Security	Do you ensure that access to any jump hosts are restricted to individuals based upon the principles of least privilege and supported through technical controls (i.e., multi-factor authentication, network address restrictions, encryption in-transit and audit logging)?	
85	Cloud Security	Do you use a host-based threat protection solution (e.g., file integrity monitoring, intrusion detection or intrusion prevention) to monitor critical components for all operating systems, applications and databases that are hosted in cloud service environments?	
86	Cloud Security	Do you ensure access to jump / bastion hosts are secured using a host-based Data Loss Prevention (DLP) solution and keystroke logging?	

87	Cloud Security	Do you perform authenticated and unauthenticated application and network vulnerability scans at least bi-weekly for all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services?	
88	Cloud Security	Do you perform authenticated and unauthenticated application and network penetration testing prior to all major releases and at least annually for all systems (i.e., servers, operating systems, applications, databases, networking, storage, virtualization and security) that are used to provide cloud services?	
89	Compliance	Does the service provider comply with terms and conditions mentioned in Contract / MSA / SOW?	
90	Compliance	Does the service provider comply with applicable rules and regulatory requirements as per the core business operations?	
91	Customer Contact	Do you train customer facing employees or subcontractors to safeguard against social engineering tactics?	
92	Customer Contact	Do you train the customer service agents to authenticate the identity of the customer before sharing any information with the customer?	
93	Email Security	Do you prohibit employees / contractors from accessing public external e-mail servers?	
94	Email Security	Do you scan all attachments in the e-mails (e.g., for viruses or malicious code)? Please explain in- and out-bound scanning.	
95	Email Security	Do you prohibit auto-forwarding of e-mails (e.g., Are e-mails prevented from being forwarded via automatic or manual e-mail rules to such places as home-type accounts, chat rooms, user groups, blogs)?	
96	Email Security	Do you enforce e-mail related controls over corporate hand held devices (e.g., blackberry, cell phones, pagers) used for receiving/sending/storing client related information? Please describe the devices and control mechanisms.	

97	Email Security	Do you encrypt emails that contains confidential, highly confidential or client personal information before it leaves the organization? Describe how your employees are made aware of requirements to encrypt specific client information. If information is encrypted, describe what mechanisms are available to encrypt.	
98	Email Security	Do you have controls over external e-mails sent on behalf of the Bank? If yes, describe the specific controls you have in place to reduce fraudulent e-mail activity Please describe if you: - Publish SPF records and enforce controls for outbound mail streams (i.e. Hard fail)? - Sign mails via Domain Keys Identified Mail for outbound mail streams? - Have implemented DMARC (DMARC.ORG)? - Have a Trusted Registry Provider (e.g. Agari.com), that provides analysis of mail streams for assisting in policy enforcement and intelligence (i.e. failed message feeds)? - Apply email authentication controls to your inbound mail streams? If you do not send e-mail to external parties on behalf of the Bank, please indicate "N/A.	
99	Encryption	Do you have documented policies and procedures for encryption key management, segregation, access controls, and maintenance of on premise and remote keys? If yes, do these policies include maximum key life provisions and the owner of key management role?	
100	Encryption	Does your data-security policy dictate when and how encryption should be employed? Please provide encryption policy, including the minimum encryption strength.	

101	Encryption	Do you encrypt client's highly confidential, confidential or personal information in transit? If yes, describe the method of transmission and encryption.	
102	Encryption	Do you encrypt specific highly confidential data elements (e.g., credit card numbers, SSN) in storage? If yes, please describe nature of information and encryption method.	
103	Encryption	Are mobile devices encrypted (e.g., laptops, wireless devices)? Please describe the tools or solutions for encryption.	
104	Encryption	Do you encrypt removable storage devices (e.g., flash drives, removable storage media)? If yes, describe the encryption method for removable storage devices. If removable storage devices are not used, please indicate "N/A.	
105	Financial	Does the service provider perform regular statutory audits via an external third party auditor to ensure the following 1. Financial soundness of the firm 2. Adherence with the applicable financial rules and regulatory requirements	
106	Financial	If Yes, were there any negative findings highlighted in the audit report. How were they addressed?	
107	Incident Management	Do you have documented and tested incident response process and procedures and tested (at least annually)?	
108	Incident Management	Do you classify/prioritize incidents? If yes, describe the classifications and/or priorities.	
109	Incident Management	Will client informed immediately in regards to actual or potential Security Incident relevant to client data?	
110	Information Security	Do you have a process to approve exceptions to the established security policies? Please describe the process.	
111	Information Security	Do you communicate the information security policy to all employees, contractors and Service Providers? Please describe if you have an information security awareness program and method(s) of communication to employees, contractors and Service Providers.	
112	Information Security Policy	Do you have an information security policy that has been reviewed and approved by management? Who is the	

		owner of this document? How is the policy communicated to employees?	
113	Information Security Policy	Does the information security policy cover the following areas at minimum: a) Risk Management b) Procedure for corrective action and prevention c) Key management d) Network security e) Human resources security f) Asset management g) Access control h) Physical and environmental security i) Communication policy j) Information security incident management k) Supplier relationship policy l) Compliance policy m) User policy and procedure n) Asset management o) Access control p) Social media policy q) Information systems acquisition, development and maintenance policy r) Business continuity s) Change management	
114	Mobile Application	Does the mobile application provided by Vendor limit caching of the Company-related information on the device?	
115	Mobile Application	Does the mobile application check for rooted or jail broken devices and for supported operating system version?	
116	Mobile Application	If the mobile app is deployed to a public app store, is post-production scanning performed on the application?	
117	Mobile Application	Is certificate pinning performed for all communications originating from the mobile application?	
118	Mobile Application	On application startup, does the mobile application check the current version which it is running and provide the ability for the user to upgrade if there is a newer version?	
119	Mobile Application	If the application runs on operating systems other than iOS or Android, is the application sandboxed?	
120	Mobile Application	If the mobile application is Company employee-facing, is it only downloaded only from the Company App Store,	

		the Apple App Store, the Google Play App Store, or the Amazon App Store?	
121	Network Security	Do you have a network diagram depicting the environment of services provided to the Bank (to include subcontractors e.g. Cloud) and corresponding access controls list(s)? Please describe if the network diagram includes firewalls, routers, network servers, applications, critical databases, network time, and workstations. Please provide a copy of this diagram.	
122	Network Security	Do you have a Data Flow Diagram for the service being provided to the Bank? Please provide a copy. Please describe any data sent to remote or other third parties. Please name the remote or other third parties.	
123	Network Security	Do you have a firewall structure that monitors and controls external boundaries of systems and internal boundaries within information systems (e.g. web, applications and databases)	
124	Network Security	Do you have a dedicated group/individual(s) that administer the firewall rules? If yes, identify the individual or group and how permissions are granted to access the firewall	
125	Network Security	Is your production network firewalled or physically isolated from development or User Acceptance Test networks?	
126	Network Security	Do you allow only authorized ports and services?	
127	Network Security	Do you configure remote access methods (e.g., modems) to prevent unauthorized connections (e.g., war dialing)? Describe how these methods have been configured to prevent unauthorized access.	
128	Network Security	Do you secure client's information during remote connectivity (e.g., multi factor authentication, encryption, VPN Client technology, or other tools)? Please describe the methods or tools used.	

129	Network Security	Do you encrypt the data from transmission to or from wireless device? If Yes, describe the encryption algorithm and strength.	
130	Other	Do you have experience in delivering similar services in the industry as is being provided to the Company?	
131	Other	Is your organization financially sound and has the ability to service commitments even under adverse conditions?	
132	Other	Is there any litigation history/ ongoing against your organization by any of the customers/clients or your key-management personnel? If yes, what is the current status?	
133	Other	Does the vendor or its Key management personnel belong to global watch lists (Dow Jones/World Compliance and open internet checks) or sanctions list?	
134	Other	Any adverse media related to the services provided or customer complaints against you or your key management personnel ever been reported? What is the current status?	
135	Other	Are there any conflict of interest noted in providing services to the Company?	
136	Other	Do you have operations in any of the sanctioned / high risk countries? If yes then are the services to the Company being provided from that country?	
137	Personnel Security	Are background checks performed on all of your employees and, in addition, on the personnel of your Subcontractors' that have access to client's sensitive information or systems? If so, please describe in detail the scope of the background checks.	
138	Personnel Security	Do your subcontractors sign a contract covering at least: - Non-disclosure or confidentiality agreement - Acceptable usage policy - Information security responsibilities	
139	Physical and Environmental Security	Do you have a physical and environmental security program to protect client resources (information, documentation etc.)? Provide physical and environmental security program details.	

140	Physical and Environmental Security	Do you control access to your facility through the use of badges or access cards? Do you have a process for visitor access to the facility? Provide the authorization process for requesting access, including changes. Also, provide your visitor access logs.	
141	Physical and Environmental Security	Do you prevent removal of information or related assets from the premises? Provide the information security policy.	
142	Physical and Environmental Security	Do you maintain retention schedules of physical control access logs, security tapes, and other physical security monitoring devices?	
143	Physical and Environmental Security	Do you have a separate area for Various clients support?	
144	Physical and Environmental Security	Do you have controls in place to ensure employees desks, employee workstations, and office software/solutions/licenses are all cleared of materials? Provide your employee clean desk/clear screen policy and evidence of policy enforcement.	
145	Physical and Environmental Security	Is the access to your facility controlled by the use of a badge or access card? Describe the periodic recertification for access. If badge access is not used, describe current process.	
146	Physical and Environmental Security	Is the server/computer room electrical power supplied via an Uninterruptible Power Supply (UPS) system and are there emergency power generators? Have the UPS and generators been serviced and tested periodically?	
147	Physical and Environmental Security	Are there fire suppression systems placed within the environment? Have the fire suppression system been serviced and tested periodically? Provide evidence of servicing and testing.	
148	Physical records management	Do you follow a required retention schedule for client's confidential physical records? Describe the retention schedule followed for paper records.	

149	Physical records management	Do you require that confidential physical materials are shredded when no longer needed? Describe the process for shredding and provide evidence of destruction.	
150	Physical records management	Do you utilize a third party for transportation of electronic media or paper records to an off-site facility? Provide the company(s) used, and describe the method of transportation used. Also, provide the license and bonding information for the company(s) used.	
151	Physical records management	Do you have controls to safeguard the information during transport? Describe the controls of the secure transportation environment.	
152	Privacy	Do you have a privacy awareness training program? Please provide evidence and describe frequency.	
153	Privacy	Is there assigned responsibility for privacy, such as a Chief Privacy Officer or Data Privacy Office (DPO), who is responsible for the privacy program, policy and assessments?	
154	Regulatory Compliance	Do you have a process in place to escalate to clients, issues of non-compliance with legislative and regulatory requirements in each applicable jurisdiction?	
155	Risk Assessment	Do you have a documented Risk Management Policy in place?	
156	Risk Assessment	Do you perform Business Impact Assessments (BIA) which includes all critical assets (environments, processes, applications, computer systems, networks and specialist systems) that support critical processes pertaining to the service provided to The Bank, to establish values and potential impact on the organization should these assets were compromised.	
157	Risk Assessment	Do you conduct a regularly scheduled (at least annual) risk and control assessment (self-, internal-, external audits)?	
158	Service Level Agreement	Does the contract between the Bank and the service provider include clause around timelines to report the identified incidents and root cause analysis?	

159	Service Level Agreement	Was there any deviation from the service level agreement clause defined in the contract?	
160	SOC	Do you have strong authentication mechanisms for SOC systems and tools?	
161	SOC	Do you enforce least privilege access and role-based access control (RBAC) for SOC personnel?	
162	SOC	Do you regularly review and revoke access rights for personnel who no longer require them?	
163	SOC	Do you have a process for monitoring and detecting network which includes but is not limited to: a) Deploy and maintain a Security Information and Event Management (SIEM) system. b) Continuously monitor network traffic, system logs, and security events. c) Establish baseline behavior and set up alerts for anomalous activities. d) Regularly tune and update detection rules and signatures.	
164	SOC	Do you conduct regular training and drills to ensure familiarity with incident response processes?	
165	SOC	Do you subscribe to threat intelligence feeds and integrate them into monitoring and detection processes? Do you conduct threat hunting activities to proactively search for indicators of compromise (IoCs)?	
166	SOC	Do you have a change management process for SOC systems, tools, and configurations?	
167	SOC	Are key performance indicators (KPIs) for SOC operations defined and tracked? Do you generate regular reports on incident metrics, response times, and resolution rates? Are the metrics used to identify areas for improvement and measure the effectiveness of SOC controls?	
168	SOC	Do you have backup procedures for critical SOC data and configurations? Is the backup restoration testing performed periodically?	
169	Staff Augmentation	Do you have a process to obtain prior written approval from the Company before using subcontracted recruiters or staffing firms in sourcing candidates for the Company? If yes, please describe and provide any supporting process documentation and a list of any such subcontractors.	

170	Staff Augmentation	Do you verify candidate's identity by examining and recording multiple sources of identification at appropriate checkpoints of the screening process? If yes, please describe and provide any supporting process documentation.	
171	Staff Augmentation	Do you monitor consultant performance during assignments? If yes, please describe and provide any supporting process documentation.	
172	Staff Augmentation	Do you comply with all laws and regulations relevant to Recruitment, Hiring Practices, Employment Law, and all National and other Laws and Regulations relevant to the services provided? If yes, please describe.	
173	Staff Augmentation	Do you require personnel to provide notification if they are arrested/have pending charges and provide supporting documentation related to the matter? If yes, please describe the process/procedure including reporting.	
174	Staff Augmentation	Do you require employees to undergo mandatory trainings prior to being deployed on the Company's account?	
175	Standard Builds	Does the security patch process includes a risk assessment to prioritize patches? Describe the security patch process including the risk assessment and the tools used to prioritize patches and the implementation timeframe associated with each priority.	
176	Standard Builds	Are all read/writeable devices controlled at the desktop (e.g., IPODs, CD burners, DVD, zip drives, USB drives)? Describe how these devices are controlled (e.g., diskless workstations are deployed).	
177	System Development	Are security requirements are given due consideration in the Software Development Life Cycle (SDLC) process?	
178	System Development	Is the development environment segregated from the testing and production environments?	
179	System Development	Has the organization appropriately tested the source code or software for security vulnerabilities through source code reviews, vulnerability testing and penetration testing prior to delivering the product to client?	
180	Third Party Management	Do you use third parties (subcontractors) to provide any services?	

181	Third Party Management	Does your review of subcontractors include a process to assess the criticality of those subcontractors and perform appropriate due diligence, e.g. financial viability, performance monitoring, negative news, etc., and periodic risk assessment(s)?	
182	Third Party Management	Do your contracts with subcontractors incorporate elements of the information security policy requirements and document roles and responsibilities, if applicable? Describe the details of these elements, to include data protection and transmission controls.	
183	Vulnerability Management	Do you perform vulnerability assessments or penetration tests (e.g., network, server and clients) periodically? Describe who performs these tests, identifying the third party if they are external to your organization. Also, describe the type, scope of testing, frequency and latest results.	
184	Vulnerability Management	Is antivirus software deployed, updated and maintained for all desktops and servers (to include virtualized environments, host and guests)? Describe what anti-virus products are used with each platform within your environment. Are anti-virus/ anti-malware tools configured to run periodic scans to detect, log and disposition malware?	
185	Vulnerability Management	Have you deployed intrusion detection / prevention tools in your environment? Please describe how they are updated (manual or automatic subscription/signatures deployed) and whether they are network or host based.	
186	Vulnerability Management	Have you enabled logging for applications, platforms, network devices, in accordance with security best practices to track user activity? If yes, please describe the different events that are captured in the log files.	
187	Vulnerability Management	Do you periodically review the logs (e.g., unsuccessful logons, access violations, privilege access)? Please describe the process to review all logs, timeframe, responsibility for the review, as well as any other information relevant to reviewing logs (e.g., central logging server). Provide detail whether special procedures exist for retrieving logs for investigative purposes. Describe how issues identified during the review of logs are tracked and managed to close.	

188	Access Management (Cyber Security)	Do you have a process for granting and documenting access? If yes, Is access to information and technology resources role based on a need-to-know basis?	
189	Email Security (Cyber Security)	Do you prohibit employees / contractors from accessing public external e-mail servers and have controls over external e-mails sent on behalf of the Bank?	
190	Encryption (Cyber Security)	Do you have documented policies and procedures for encryption	
191	Incident Management (Cyber Security)	Do you have documented and tested incident response process and procedures as per the Regulatory and/or Statutory guidelines.	
192	Information Security Policy (Cyber Security)	Do you have an information security policy that has been reviewed and approved by management?	
193	Network Security (Cyber Security)	Do you have a network diagram depicting the environment of services provided to the Bank (to include subcontractors e.g. Cloud) and corresponding access controls list(s)? Note: network diagram should include firewalls, routers, network servers, applications, critical databases, network time, and workstations. Do you have a Data Flow Diagram for the service being provided to the Bank?	
194	Personnel Security (Cyber Security)	Are background checks performed on all of your employees?	
195	Physical and Environmental Security (Cyber Security)	Do you have a physical and environmental security program to protect client resources (information, documentation etc.)?	
196	Physical records management	Are confidential physical materials shredded when no longer needed?	

	(Cyber Security)		
197	Privacy (Cyber Security)	Do you have a Information security / Privacy awareness training program?	
198	SOC (Cyber Security)	Do you have a process for LOG monitoring and detecting network incidents, which includes but is not limited to: a) Deploy and maintain a Security Information and Event Management (SIEM) system. b) Continuously monitor network traffic, system logs, and security events. c) Establish baseline behavior and set up alerts for anomalous activities. d) Regularly tune and update detection rules and signatures.	
199	Vulnerability Management (Cyber Security)	Do you perform vulnerability assessments or penetration tests (e.g., network, server and clients) periodically?	
200	Patch Management (Cyber Security)	Are the Network, Server and clients are patched periodically?	

Note: Bidders are required to respond according to the relevant domains based on the services they will provide to IDBI Bank. If successfully on boarded, they must submit evidence during the Vendor Risk Assessment audit conducted by the Bank/Consultant appointed by Bank.

******* END OF RFP DOCUMENT ********